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Bharatiya Nagarik Suraksha Sanhita, 2023

Landmark and Recent Case Laws

501 Supreme Court decisions, arranged topic-wise
with the corresponding provisions of the Cr.P.C., 1973

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GENERAL PRINCIPLES AND DEFINITIONS

***Shivjee Singh v. Nagendra Tiwari*, AIR 2010 SC 2261**

The provisions of the Code must be read in the light of the settled rule of construction that procedural law exists to do substantial justice, and not to defeat it.

***Mowu v. Superintendent, Special Jail, Nowgong, Assam*, (1971) 3 SCC 936; Saptawana v. State of Assam, (1972) 4 SCC (N) 945; Naga People's Movement of Human Rights v. Union of India, (1998) 2 SCC 109**

Although the Cr.P.C. (now BNSS) does not extend to certain districts of Nagaland, this means only that its rules as such do not apply; the authorities there remain governed by the substance of those rules.

***Extra-Judicial Execution Victim Families Assn. v. Union of India*, (2016) 14 SCC 536**

Where another enactment lays down its own procedure and thereby derogates from the Code, that procedure is unaffected by the Cr.P.C. (now BNSS).

***Jagjeet Singh v. Ashish Mishra @ Monu*, (2022) 9 SCC 321**

A victim has a legally vested right to be heard at every stage after the offence occurs, including at the hearing of the accused's bail application. The victim enjoys unbridled participatory rights from the investigation until the proceedings culminate in appeal or revision.

***Jagjeet Singh v. Ashish Mishra @ Monu*, (2022) 9 SCC 321**

Victim and informant are distinct concepts in criminal jurisprudence. The complainant or informant need not be the victim; even a stranger to the crime may be the informant, and equally a victim need not be the complainant or the informant.

***B.N. John v. State of U.P.*, AIR 2025 SC 759**

Under Section 2(d) of the Cr.P.C. (now Section 2(1)(h) of the BNSS) a complaint is an allegation made orally or in writing to a Magistrate with the intention of setting the law in motion. That Magistrate must be a Judicial Magistrate competent to take cognizance. Judicial Magistrates exercise judicial functions, including the power to try and punish; Executive Magistrates discharge administrative and executive functions such as the maintenance of public order.

***Securities and Exchange Board of India v. Ajay Agarwal*, AIR 2010 SC 3466**

An offence means any act of commission or omission made punishable by the law in force at the relevant time.

***Varinder Kumar v. State of H.P.*, (2020) 3 SCC 1**

The rights of the accused are undoubtedly important, but so is the societal interest in bringing the offender to book and in the system sending the right message. Human rights belong to the victim no less than to the accused.

CONSTITUTION OF CRIMINAL COURTS AND OFFICES

***Md. Shahabuddin v. State of Bihar*, 2011 Cri LJ (Supp) 870 (SC)**

The language of Section 9 of the Code (now Section 8 of the BNSS) shows that the High Court need not hear the accused while deciding the venue of trial. Where, however, the Court of Session proposes to change the place of trial, the parties are entitled to a hearing.

***Mohd. Aslam @ Bhure v. State of U.P.*, 2007 Cri LJ 3200 (SC)**

A State Government notification constituting a Special Court of a Judicial Magistrate First Class without consulting the High Court, and omitting the crime number in question, is a technical defect. It may be cured by a fresh notification issued after consultation with the High Court.

***Delhi Judicial Service Association, Tis Hazari Court, Delhi v. State of Gujarat*, 1991 Cri LJ 3086 (SC)**

A Judicial Officer should not visit a police station on his own except in connection with his official or judicial duties. Where such a visit is necessary for official purposes, the officer must inform the District and Sessions Judge in advance.

***R.D. Jain and Co. v. Capital First Ltd.*, AIR 2022 SC 4820**

Having regard to the scheme of the SARFAESI Act, and to Section 14 in particular, the power conferred on the Chief Metropolitan Magistrate or District Magistrate is not exercised by him as persona designata. The Additional Chief Metropolitan Magistrate is not subordinate to the Chief Metropolitan Magistrate so far as the exercise of judicial powers is concerned.

***Abdul Wahab K. v. State of Kerala*, AIR 2018 SC 4265**

The Public Prosecutor must act responsibly and must not be guided solely by the instructions of the Government. His function is to assist the Court, and it is for the Court to consider the precedents and pass appropriate orders.

***Rekha Murarka v. State of West Bengal*, AIR 2020 SC 100**

The Public Prosecutor occupies a position of importance in the criminal justice system. Though appointed by the Government, he is neither its servant nor the agent of the investigating agency. As an officer of the Court his duty is to assist the Court in discovering the truth by placing all relevant material on behalf of the prosecution, remaining fair to the Court, to the investigating agency and to the accused alike.

***Jayaben Tejas Kanubhai Zala*, AIR 2022 SC 358**

The office of Director of Prosecution is of great importance to the administration of criminal justice. It is his duty to take prompt decisions, and since crime is treated as a wrong against society, his role in the administration of justice is crucial.

POWER OF COURTS

***State of Karnataka v. Raju*, (2007) 10 SCC 543**

A sentencing system should either correct or deter, according to the facts of the case, and should be stern where sternness is called for and lenient where leniency is warranted. The nature of the crime, the planning and execution behind it, the motive, the conduct of the accused and the weapons used are all to be considered.

***State of U.P. v. Kishan*, (2005) 10 SCC 420**

The object of sentencing is to protect society and to deter the criminal by imposing an appropriate punishment. Courts must apply the sentencing system so as to accord with the conscience of society, and a sentence passed without regard to its effect on the social order will often prove ineffective.

***Sharad Hiru Kolambe v. State of Maharashtra*, (2018) 18 SCC 718**

A default sentence must run in excess of, or in addition to, the substantive sentence. It cannot be directed to run concurrently either with another default sentence or with the substantive sentence.

***Gagan Kumar v. State of Punjab*, (2019) 5 SCC 154**

It is a mandatory legal requirement that where an accused is convicted of two or more offences, the court must specify whether the sentences are to run concurrently or consecutively.

***Premnath v. State of Rajasthan*, AIR 1967 SC 1599**

A civil judge cannot be invested with the powers of an Additional Sessions Judge unless he is appointed as such under Section 9 of the Code (now Section 8 of the BNSS).

***Gokarau v. Rangaraju*, AIR 1981 SC 1473**

A judgment delivered by a Sessions Judge cannot be assailed on the ground that his appointment was subsequently declared invalid.

***Kaushik Chatterjee v. State of Haryana*, (2020) 10 SCC 92**

An offence under a special law is to be tried by the court specified in that law. Where the special law is silent, the offence may be tried by the High Court or by any other court shown as competent in the First Schedule to the Cr.P.C. (now BNSS).

***Malkeet Singh Gill v. State of Chhattisgarh*, (2022) 8 SCC 204**

Both the trial court and the appellate court have full discretion, consistently with Section 31 of the Cr.P.C. (now Section 25 of the BNSS), to direct that sentences run concurrently where there is a conviction for two or more offences.

***Ramashraya Chakiravarti v. State of M.P.*, AIR 1976 SC 392**

In judging the adequacy of a sentence the court ordinarily weighs the nature of the offence, the circumstances in which it was committed, the age and character of the offender, the harm caused to individuals or to society, the effect of the punishment upon the offender and the prospect of his correction and rehabilitation.

ARREST

***State of Haryana v. Dinesh Kumar*, (2008) 3 SCC 222**

Custody and arrest are not synonymous. Every arrest involves custody, but not every custody is an arrest; custody may amount to arrest in some cases and not in others. Custody means physical control, or the presence of the accused in court coupled with submission to its jurisdiction. A person is in custody both when the police arrest him and when he surrenders before the court.

Guidelines for arrest

***Arnesh Kumar v. State of Bihar*, (2014) 8 SCC 273**

The Supreme Court laid down the following:

- The law of arrest balances individual rights, liberties and privileges on the one hand against individual duties, obligations and responsibilities on the other.
- No arrest may be made in a routine manner on a mere allegation that a person has committed an offence.
- No arrest should be made without a reasonable satisfaction, reached after some investigation, as to the genuineness and bona fides of the complaint, and a reasonable belief both as to the person's complicity and as to the need to effect the arrest.
- A person accused of an offence punishable with imprisonment for a term which may be less than seven years, or which may extend to seven years with or without fine, cannot be arrested by the police unless the conditions in Section 41(1)(b) of the Cr.P.C. (now Section 35(1)(b) of the BNSS) are satisfied.
- Police officers were directed not to arrest automatically where a case is registered under Section 498-A of the IPC, or where the offence is punishable with imprisonment which may be less than seven years or may extend to seven years. They must satisfy themselves as to the necessity of arrest under the parameters of Section 41 of the Cr.P.C. (now Section 35 of the BNSS).

***Joginder Kumar v. State of U.P.*, (1994) 4 SCC 260**

The registration of an FIR and the arrest of the accused are two distinct things. It is not correct to say that merely because an FIR has been registered the accused may be arrested.

***Sheela Barse v. State of Maharashtra*, (1983) 2 SCC 96**

The Magistrate must inform the accused of his right to have himself medically examined.

***Mohammed Zubair v. State of NCT of Delhi*, AIR 2022 SC 3649**

Reiterating Arnesh Kumar v. State of Bihar, the Court held that police officers are duty bound to apply their mind to the case before them and to ensure that the conditions in Section 41 of the Cr.P.C. (now Section 35 of the BNSS) are satisfied before making an arrest.

***(Dr.) Rini Johar v. State of M.P.*, AIR 2016 SC 2679**

A person accused of an offence punishable with imprisonment of up to seven years, with or without fine, cannot be arrested merely because the police officer believes that he has committed the offence. The officer must further be satisfied that the arrest is necessary to prevent the commission of further offences, to ensure a proper investigation, to prevent the destruction or tampering of evidence, to prevent the accused from influencing witnesses, or to secure his presence in court when required.

***Bhavesh Jayanti Lakhani v. State of Maharashtra*, AIR 2009 SC (Supp) 2432**

A person wanted for an offence in a foreign jurisdiction may be arrested only where the act is also recognised as an offence under Indian law and the person is liable to arrest in India, whether under the extradition laws or under any other applicable provision.

Guidelines for arrest: D.K. Basu's case

***D.K. Basu v. State of West Bengal*, (1997) 1 SCC 416**

The Supreme Court laid down the following requirements:

- The police personnel carrying out the arrest and handling the interrogation should bear accurate, visible and clear identification marks with their designations.
- The officer carrying out the arrest shall prepare a memo of arrest, attested by at least one witness.
- The arrested person is entitled to have a friend or relative informed of his arrest.
- He must be made aware of his right to have someone informed.
- The arrestee must be examined at the time of arrest and every injury, major or minor, recorded.
- The arrestee shall be medically examined by a trained doctor every forty-eight hours.
- Copies of all documents, including the memo of arrest, shall be sent to the Magistrate for record.
- The arrestee must be produced before a Magistrate within twenty-four hours.
- He must be permitted to meet his lawyer during interrogation.
- A police control room should be provided at every district and State headquarters.

***Chotkau v. State of Uttar Pradesh*, AIR 2022 SC 4688**

The prosecution may take the chance of not having the accused medically examined where the victim of rape is alive and able to testify. But where the victim is dead and the offence is sought to be proved only by circumstantial evidence, medical evidence assumes great importance, and the failure to produce it leaves a gaping hole in the prosecution case and raises serious doubt. Section 53A of the Cr.P.C. (now Section 52 of the BNSS) enables the prosecution to secure a significant piece of evidence in proof of the charge.

Guidelines for arrest of Judicial Officers

***Delhi Judicial Services Association v. State of Gujarat*, (1991) 4 SCC 406**

The Supreme Court laid down the following guidelines for arresting a judicial officer:

- A judicial officer should be arrested for any offence only under intimation to the District Judge or the High Court.
- Where immediate arrest is necessary, only a technical or formal arrest may be effected.
- The fact of the arrest must be immediately communicated to the District and Sessions Judge and to the Chief Justice of the High Court.
- The judicial officer shall not be taken to the police station without the prior order or direction of the District and Sessions Judge of the district concerned.
- Ordinarily there should be no handcuffing of the judicial officer.
- Immediate facilities shall be provided to him for communication with his family members, legal advisers and fellow judicial officers.
- No statement of a judicial officer under arrest shall be recorded, nor any panchnama drawn, nor any medical test conducted, except in the presence of his legal adviser.

***Mukesh Singh v. State (NCT of Delhi)*, 2023 (11) SCALE 580**

After the introduction of Section 54A of the Cr.P.C. (now Section 54 of the BNSS) an accused is under an obligation to stand for a test identification parade, and cannot resist it on the ground that he may not be compelled. Where compulsion is sought to be used to obtain from an accused evidence that cannot be procured save through a positive volitional act on his part, Article 20(3) of the Constitution protects him; where the evidence can be obtained without any such positive volitional evidentiary act, Article 20(3) has no application. In submitting to a test identification parade the accused neither produces evidence nor performs any evidentiary act.

***Vihaan Kumar v. State of Haryana*, AIR 2025 SC 1388**

Non-compliance with Section 50 of the Cr.P.C. (now Section 47 of the BNSS), which requires the particulars of the arrest to be communicated to the persons nominated by the accused, also vitiates the arrest.

***Selvi v. State of Karnataka*, (2010) 7 SCC 263**

The amended Explanation to Section 53 of the Cr.P.C. (now Section 51 of the BNSS) now expressly includes DNA profiling among the permissible medical examinations. A DNA profile is a record generated from samples analysed by forensic experts; maintaining the profiles of offenders and suspects is useful, since freshly collected samples can readily be compared with existing records, and DNA matching has become an essential tool for connecting suspects to particular crimes.

***Ritesh Sinha v. State of Uttar Pradesh*, AIR 2019 SC 3592; (2019) 8 SCC 1**

Until Parliament makes express provision in the Code (now the BNSS), a Judicial Magistrate must be held to possess the authority to direct a person to furnish a voice sample for the purposes of a criminal investigation, and may do so even without that person’s consent.

PROCESS TO COMPEL APPEARANCE AND PRODUCTION OF THINGS

***Tarsem Lal v. Directorate of Enforcement*, AIR 2024 SC 2512**

Where the accused does not appear after a summons has been served, or fails to appear on a subsequent date, the Special Court is well within its powers to issue a warrant under Section 70 of the Cr.P.C. (now Section 72 of the BNSS). It should in the first instance issue a bailable warrant, and only where service of the bailable warrant cannot be effected may recourse be had to a non-bailable warrant.

***Vimalben Ajitbhai Patel v. Vatslaben Ashokbhai Patel*, AIR 2008 SC 2675**

Section 82 of the Code (now Section 84 of the BNSS) is intended to secure the presence of the accused. Once that object is achieved the attachment must be withdrawn and the attached property restored. The Code (now the BNSS) does not permit the sale of the property, even where the absconding accused has surrendered and been granted bail.

***Daljit Singh v. State of Haryana*, AIR 2025 SC 511**

The status of a proclaimed offender under Section 82 of the Cr.P.C. (now Section 84 of the BNSS) does not cease automatically upon acquittal in the main offence; but once the accused is acquitted the need to secure his presence is gone and the proclamation may be quashed. Section 174A of the IPC (now Section 209 of the BNS) creates an independent substantive offence, and a prosecution under it may continue even though the proclamation under Section 82 is no longer in force. Where, however, the accused has been acquitted in the main offence, the court may treat that as a ground for closing the proceedings under Section 174A, depending on the circumstances.

Guidelines for issuance of a non-bailable warrant

***Inder Mohan Goswami v. State of Uttaranchal*, (2007) 12 SCC 1**

Arrest and imprisonment deprive an individual of his most precious right, and courts must therefore be extremely careful before issuing a non-bailable warrant. Liberty is as precious to the individual as the maintenance of law and order is to society, and both are vital to the survival of a civilised society. A non-bailable warrant should be issued to bring a person to court only where a summons or a bailable warrant would be unlikely to have the desired result, that is to say:

- where it is reasonable to believe that the person will not voluntarily appear in court; or
- where the police authorities are unable to find the person to serve him with a summons; or
- where it is considered that the person could harm someone if he is not taken into custody immediately.

***Tarsem Lal v. Directorate of Enforcement*, AIR 2024 SC 2512**

Where the accused has furnished bonds under Section 88 of the Cr.P.C. (now Section 91 of the BNSS) but fails to appear on subsequent dates, the Special Court has authority under Section 89 (now Section 92 of the BNSS), read with Section 70 (now Section 72 of the BNSS), to issue a warrant for his arrest and production. The accused may then apply for cancellation of the warrant on giving an undertaking to the Special Court to appear on all scheduled dates, and while cancelling it the court may require him to undertake to attend every hearing unless specifically exempted.

***Sarla Gupta v. Directorate of Enforcement*, 2025 INSC 645**

An accused under the PMLA is entitled to a list of the statements, documents, material objects and exhibits that the Enforcement Directorate does not rely upon, so that he knows of their existence and may apply for their production under Section 91 of the Cr.P.C. (Section 94 of the BNSS) at the defence stage.

***State of Gujarat v. Shyamlal*, AIR 1965 SC 1251**

Section 91 does not apply to an accused person. He cannot be summoned to produce a document or thing which is incriminating or which may be used in evidence against him.

***State of Kerala v. Babu*, (1999) 4 SCC 621**

The case diary is a document within Section 91 and may be summoned by the court.

***Shento Varghese v. Julfikar Husen*, AIR 2024 SC 2984**

An order of seizure may be challenged on the ground that the seizing officer lacked jurisdiction to act under Section 102(1) of the Cr.P.C. (now Section 106 of the BNSS), or that the article seized does not answer the description of property, or that the property seized could not have given rise to any suspicion of the commission of a crime. The validity of the power exercised under Section 102(1) does not depend upon compliance with the duty cast on the police officer by Section 102(3). The obligation to report the seizure to the Magistrate is neither a jurisdictional pre-requisite to the exercise of the power of seizure nor a condition subject to which it is exercised, and a seizure is therefore not vitiated by delay in reporting it to the Magistrate.

***Nevada Properties Private Limited v. State of Maharashtra*, AIR 2019 SC 4554**

Section 102 of the Cr.P.C. (now Section 106 of the BNSS) does not carry the power to seize immovable property. The section is meant to aid the investigation and to enable the police officer to collect and collate the evidence to be produced in proof of the charge set up in the charge-sheet. The expression any property in Section 102 does not take in immovable property, though the police may seize the papers and documents relating to it.

***Suresh Nanda v. C.B.I.*, AIR 2008 SC 1414**

Although the police may seize a passport under Section 102(1) of the Code (now Section 106 of the BNSS), they have no power to impound it. Only the passport authority may impound a passport, under Section 10(3) of the Passports Act, 1967.

***Teesta Atul Setalvad v. State of Gujarat*, (2018) 2 SCC 372**

The bank account of the accused, or of any of his relations, is property within the meaning of Section 102 of the Code (now Section 106 of the BNSS). In the course of investigation the police officer may seize such an account, or prohibit its operation, where the assets have a direct link with the commission of the offence.

MAINTENANCE

***Nanak Chandra v. Chandra Kishore*, (1969) 3 SCC 802**

The provisions of Sections 125 to 128 (now Sections 144 to 147 of the BNSS) apply to persons of every religion and have no connection with the personal law of the parties.

***Bhagwan Dutt v. Kamala Devi*, (1975) 2 SCC 386**

The Supreme Court identified the objects of Section 125 of the Code (now Section 144 of the BNSS):

- The remedy under Section 125 (now Section 144 of the BNSS) is speedier and more economical than a suit in the civil court, and is therefore of benefit to persons in need.
- It aims at preventing destitution and vagrancy, which lead to the commission of crime.

***Yamunabai v. Anantrao*, AIR 1988 SC 644; Savitaben v. State of Gujarat, AIR 2005 SC 1089**

The word wife means a legally wedded wife, and a second wife cannot claim maintenance.

***Dr. Swapan Kumar Banerjee v. State of West Bengal*, (2019) 19 SCC 342**

A wife who has been divorced by her husband on the ground that she deserted him is entitled to claim maintenance under Section 125 of the Code of Criminal Procedure (now Section 144 of the BNSS).

Relationships in the nature of marriage: live-in relationship

***D. Velusamy v. D. Patchaiammal*, (2010) 10 SCC 469**

A woman in a marriage-like relationship, though not legally married, may claim maintenance. Not every live-in relationship, however, amounts to a relationship in the nature of marriage; such a relationship must satisfy the following conditions:

- The couple must hold themselves out to society as being akin to spouses.
- They must be of legal age to marry.
- They must be otherwise qualified to enter into a legal marriage.
- They must have voluntarily cohabited for a significant period of time.

***Vijay Manohar v. Kashi Rao Raja Ram*, AIR 1987 SC 1100**

A daughter, whether married or not, is equally liable to pay maintenance.

***Sunita Kachwaha v. Anil Kachwaha*, (2014) 16 SCC 715**

A wife must show her inability to maintain herself as a condition of receiving maintenance. She must claim and prove that she cannot sustain herself, and must also establish that her husband has sufficient means and has neglected to provide for her.

***Chaturbhuj v. Sita Bai*, (2008) 2 SCC 316**

The phrase unable to maintain herself refers to the means available to the deserted wife while she was living with her husband, and does not take in the efforts she makes after desertion to survive somehow.

***Kamala v. M.R. Mohan Kumar*, (2019) 11 SCC 491**

To give effect to the true spirit of this beneficial legislation, strict proof of marriage is not required under Section 125 of the Cr.P.C. (now Section 144 of the BNSS). Long cohabitation between a man and a woman may raise a presumption of marriage entitling the woman and the children born to them to maintenance. The presumption is rebuttable.

***Reema Salkan v. Sumer Singh Salkan*, (2019) 12 SCC 303**

In fixing the quantum of maintenance under Section 125 of the Cr.P.C. (now Section 144 of the BNSS), the wife is entitled in law to live in the manner in which she would have lived in her husband's house. It is the statutory obligation of the husband to see that she is not reduced to destitution.

***V.D. Bhanot v. Savita Bhanot*, (2012) 3 SCC 183**

The extension of the definition of wife to cover a divorced wife is intended to prevent unscrupulous husbands from defeating the legitimate claims of their wives by divorcing them. The explanation is aimed at securing social justice to women of the poorer classes.

***Mohd. Ahmad Khan v. Shah Bano Begum*, AIR 1985 SC 945**

There is no conflict between Section 125 (now Section 144 of the BNSS) and Muslim personal law. Muslim personal law limits the husband's liability to maintain the divorced wife to the period of iddat, and if she is able to maintain herself his liability expires with that period. But where the divorced wife is unable to maintain herself she may have recourse to Section 125 of the Code of Criminal Procedure (now Section 144 of the BNSS), which applies to a divorced Muslim woman until she remarries.

***Begum Sabano v. A.M. Abdul Gafoor*, (1987) 2 SCC 285**

Bigamy is permitted under Muslim law and the husband is not criminally liable for contracting a second marriage. A Muslim wife is nevertheless entitled to live separately and claim maintenance on the sole ground that her husband's second marriage has caused her mental agony and cruelty, and in such a situation the husband cannot take shelter behind his personal law and claim immunity from Section 125 (now Section 144 of the BNSS).

***Sanjeev Kapoor v. Chandana Kapoor*, (2020) 13 SCC 172**

A court does not become functus officio after passing a judgment or final order under Section 125 of the Cr.P.C. (now Section 144 of the BNSS). Section 125 itself contains provisions under which an order passed may be cancelled or altered, and the case is covered by the exception contained in Section 362 of the Cr.P.C. (now Section 403 of the BNSS).

***Rajnesh v. Neha*, (2021) 2 SCC 324**

An order or decree of maintenance may be enforced like a decree of a civil court, through the modes available for enforcing a money decree, including civil detention and attachment of property as provided by the Code of Civil Procedure.

***Anju Garg v. Deepak Kumar Garg*, 2022 (14) SCALE 234**

Section 125 of the Cr.P.C. (now Section 144 of the BNSS) was conceived to relieve the agony, anguish and financial suffering of a woman obliged to leave the matrimonial home, so that some suitable arrangement might be made to enable her to sustain herself and her children. An able-bodied husband is obliged to earn by legitimate means and to maintain his wife and minor child.

***Abhilasha v. Prakash*, (2021) 13 SCC 99**

After the enactment of the Family Courts Act, 1984, a Family Court also exercises the jurisdiction of a Magistrate of the First Class under Chapter IX of the Cr.P.C. (now Chapter X of the BNSS) in relation to orders for the maintenance of wives, children and parents. Family Courts have jurisdiction only in respect of a city or town whose population exceeds one million; where there is no Family Court, proceedings under Section 125 of the Cr.P.C. (now Section 144 of the BNSS) lie before the Magistrate of the First Class.

- An unmarried Hindu daughter may claim maintenance from her father until her marriage under Section 20(3) of the Hindu Adoptions and Maintenance Act, 1956, but she must establish that she is unable to maintain herself, and the claim must be made under Section 20 of that Act.

***N. Usha Rani v. Moodudula Srinivas*, 2025 INSC 129**

A woman is entitled to claim maintenance under Section 125 of the Cr.P.C. (now Section 144 of the BNSS) from her second husband even though her first marriage was not legally dissolved; a formal decree of dissolution is not essential. Where she and her first husband mutually agreed to separate, the absence of a legal divorce does not prevent her from seeking maintenance from the second husband. Maintenance under Section 125 is not a benefit conferred upon a wife but a legal and moral duty owed by the husband.

***Rina Kumari @ Rina Devi @ Reena v. Dinesh Kumar Mahto @ Dinesh Kumar Mahato*, 2025 INSC 55**

A wife's refusal to comply with a decree for restitution of conjugal rights does not by itself disqualify her from claiming maintenance under Section 125 of the Cr.P.C. (now Section 144 of the BNSS). The refusal must be judged on the facts and circumstances of each case, including whether she had justifiable reasons for not returning to the matrimonial home. The purpose of Section 125 is to secure social justice and prevent destitution, and a decree for restitution of conjugal rights does not automatically bar a wife from claiming maintenance where she has valid reasons for refusing to return to her husband.

MAINTENANCE OF PUBLIC ORDER AND TRANQUILLITY

***Istkar v. State of Uttar Pradesh*, (2022) 10 SCC 195**

The scope and nature of Section 107 of the Cr.P.C. (now Section 126 of the BNSS) is preventive and not punitive. The provisions of Chapter VIII of the Code (now Chapter IX of the BNSS) are merely preventive in character and are not to be used as a vehicle for punishment.

***Anita Thakur v. State of J&K*, (2016) 15 SCC 525**

Before ordering the use of force to disperse an unlawful assembly the Magistrate must satisfy himself that:

- there is an unlawful assembly with the object of committing violence, or an assembly of five or more persons likely to cause a disturbance of the public peace;
- the Executive Magistrate has ordered the unlawful assembly to disperse; and
- the assembly has not dispersed even after such an order.

***State of M.P. v. Kedia Leather and Liquor Ltd.*, AIR 2003 SC 3236**

The primary aim of Section 133 of the Code (now Section 152 of the BNSS) is to prevent public nuisance, and the emphasis is on urgency; if the Magistrate does not act promptly the result may be irreversible harm to the public.

***Suhelkhan Khudyarkhan v. State of Maharashtra*, AIR 2009 SC 1868**

Proceedings under Section 133 of the Code (now Section 152 of the BNSS) are not meant to resolve private disputes between individuals; they are designed to protect the public as a whole from inconvenience.

***Kachrulal Bhagirath Agrawal v. State of Maharashtra*, AIR 2004 SC 4818**

The word community in clause (b) of Section 133(1) of the Code (now Section 152(1)(b) of the BNSS) does not mean the residents of a single house; it bears the wider sense of the general public or the residents of an entire locality.

- Nuisance is of two kinds, public and private. A public or common nuisance, as defined in Section 268 of the Indian Penal Code, 1860 (now Section 270 of the BNS), is an act causing annoyance to the community at large, or the omission of a duty essential for the common good, whereas a private nuisance affects particular individuals rather than the general public.

***Anuradha Bhasin v. Union of India*, (2020) 3 SCC 637**

The power under Section 144 of the Cr.P.C. (now Section 163 of the BNSS) is both remedial and preventive, and may be exercised where there is present danger or even an apprehension of danger. It must not be misused to suppress the lawful expression of opinion, grievance or democratic rights. The Constitution safeguards diverse viewpoints and legitimate dissent, and the power can be invoked only where there is substantial evidence of a potential incitement to violence, a threat to public safety, or danger.

***M. Siddiq v. Suresh Das*, (2020) 1 SCC 1**

Where property is attached and placed in custodia legis under Section 145 of the Cr.P.C. (now Section 164 of the BNSS), there is no change in its possession. The Magistrate holds possession on behalf of the party ultimately found entitled to it.

***Gurmej Singh v. State of Haryana*, AIR 2009 SC 2699**

Where a dispute is already before a civil court with an application for an ad interim injunction pending, proceedings under Section 145 of the Cr.P.C. (now Section 164 of the BNSS) may be quashed. If there is an apprehension of a breach of the peace, the Executive Magistrate may instead invoke Sections 107 and 151 of the Cr.P.C. (now Sections 126 and 170 of the BNSS).

***Mallada K. Sri Ram v. State of Telangana*, (2022) 5 SCC 107**

A mere apprehension of a breach of law and order does not meet the standard of adversely affecting the maintenance of public order. The personal liberty of an accused cannot be sacrificed on the altar of preventive detention merely because he is implicated in a criminal proceeding. The powers of preventive detention are exceptional and even draconian.

***Shanti Kumar Panda v. Shakuntala Devi*, AIR 2004 SC 115**

The expression competent Court in Section 146(1) of the Cr.P.C. (now Section 165(1) of the BNSS) is not confined to a civil court. It means any court having jurisdiction to decide questions of title, right or possession in respect of the property which is the subject of the proceedings before the Executive Magistrate.

***Dharampal v. Ramshri*, AIR 1993 SC 1361**

The Magistrate has authority to attach the disputed property until the competent court decides which of the parties is entitled to possession.

***Ahmed Noormohmed Bhatti v. State of Gujarat*, (2005) 3 SCC 647**

A person arrested under Section 151 of the Code (now Section 170 of the BNSS) should ordinarily not be kept in custody for more than twenty-four hours, and must be released on the expiry of that period unless his detention is found necessary under some other provision of the Code or any other law in force, in which case custody may continue accordingly.

INFORMATION TO THE POLICE AND POWERS TO INVESTIGATE

***H.N. Rishbud v. State of Delhi*, AIR 1955 SC 196**

The investigation of an offence generally consists of:

- proceeding to the spot;
- ascertaining the facts and circumstances of the case;
- discovery and arrest of the offender;
- collection of evidence relating to the commission of the offence, which may consist of the examination of various persons and the search and seizure of various things; and
- formation of the opinion whether, on the material collected, the accused has committed the offence.

***Vinubhai Haribhai Malviya v. State of Gujarat*, (2019) 17 SCC 1**

The ultimate aim of every investigation and inquiry, whether by the police or by the Magistrate, is to ensure that those who have actually committed the crime are correctly booked. It is the hovering omnipresence of Article 21 over the Cr.P.C. (now the BNSS) that must inform the interpretation of all its provisions, so that Article 21 is followed in letter and in spirit.

***State of Orissa v. Sharat Chandra Sahu*, (1996) 6 SCC 435**

While investigating a cognizable offence the police are not debarred from investigating any non-cognizable offence arising out of the same facts.

***Baljinder Kaur v. State of Punjab*, (2015) 2 SCC 629**

Criminal investigation occupies a crucial and distinctive place in the administration of justice. The investigating officer plays a key role in upholding law and order and in securing justice, and police investigation is therefore the foundation upon which the entire structure of the criminal law is built.

***Parvinderjit Singh v. State (U.T. Chandigarh)*, (2008) 4 SCC 2873**

The role of the investigator is well defined and the jurisdictional scope for interference by the court during investigation is limited. The court will ordinarily not interfere with the investigation of a crime or with the arrest of an accused in a cognizable offence.

***Ishwar Pratap Singh v. State of U.P.*, (2018) 13 SCC 612**

No external agency may dictate the course of investigation in a criminal case; that lies within the exclusive jurisdiction of the police. Courts cannot supervise an investigation, and only in exceptional circumstances may superior courts monitor it, which is not the same thing as supervision.

***Lalit Chaturvedi v. State of Uttar Pradesh*, (2024) SCC Online (SC) 171**

The power of the police is to investigate allegations which disclose a criminal act. The police have no power or authority to recover money or to act as a civil court for the recovery of money.

***Central Bureau of Investigation v. State of Gujarat*, AIR 2007 SC 2522**

Routine cases should not be entrusted to the CBI, since the State investigating agencies are capable of handling such matters efficiently. Where, however, it is shown that the investigation is not being properly conducted, or there are valid concerns of negligence, the CBI may be directed to take over the investigation in a suitable case.

First Information Report (FIR)

***Habib v. State of Bihar*, (1972) 4 SCC 773**

The purposes of an FIR are:

- to set the criminal law in motion; and
- to obtain early information of the alleged offence from the informant and to reduce it to writing before his memory fades.

***State of U.P. v. Raghuvir*, (2018) 13 SCC 732**

Delay in lodging an FIR is normally viewed with suspicion because of the possibility of concoction, and the courts subject the evidence to close scrutiny.

***State of M.P. v. Chhaakki Lal*, (2019) 12 SCC 326; Satpal v. State of Haryana, (2018) 6 SCC 610; Latesh v. State of Maharashtra, (2018) 3 SCC 66**

An FIR is not an encyclopaedia, and need not set out every minute detail of the occurrence.

***Sunil Khergade v. State of Maharashtra*, (2016) 15 SCC 773**

A first information report need not necessarily contain the details of each and every injury sustained by the deceased.

***Motiram Padu Joshi v. State of Maharashtra*, (2018) 9 SCC 429**

An omission as to the names of the assailants or of witnesses is not in every case fatal to the prosecution, where the FIR has been lodged without delay.

***Soma Bhai v. State of Gujarat*, (1973) 3 SCC 114**

Even a telephonic message, if it discloses a cognizable offence, may constitute an FIR.

***Netaji Achyut Shinde (Patil) v. State of Maharashtra*, AIR 2021 SC 1655**

A telephone call which is unclear, or which lacks complete particulars of the commission of a cognizable offence, cannot necessarily be treated as a first information report.

***Patai alias Krishna Kumar v. State of Uttar Pradesh*, AIR 2010 SC 2254**

For information to qualify as an FIR there must be something in the nature of a complaint or accusation regarding the commission of a cognizable offence. A cryptic message merely recording an occurrence cannot be termed an FIR.

***State of Haryana v. Bhajan Lal*, 1992 Supp (1) SCC 335**

The word information in Section 154 (now Section 173 of the BNSS) is not qualified by the word reasonable. By omitting the words reasonable and credible the legislature has made it clear that no discretion is given to the police as to the lodging of an FIR.

Guidelines for mandatory registration of FIR

***Lalita Kumari v. Govt. of Uttar Pradesh*, 2013 (13) SCALE 559**

Registration of an FIR is mandatory under Section 154 (now Section 173 of the BNSS) if the information discloses the commission of a cognizable offence, and no preliminary inquiry is permissible in such a situation. In certain categories of case, however, a preliminary inquiry may be conducted before registration, namely:

- matrimonial and family disputes;
- commercial offences;
- medical negligence cases;
- corruption cases; and
- cases where there is abnormal delay or laches in initiating criminal proceedings.

First Information Report (FIR)

***Pradeep Nirankarnath Sharma v. State of Gujarat*, 2025 INSC 350**

Lalita Kumari v. Government of Uttar Pradesh does not lay down an absolute rule that a preliminary inquiry must precede the registration of every FIR. That decision reaffirmed the settled principle that the police are bound to register an FIR where the information received prima facie discloses a cognizable offence. The scope of a preliminary inquiry is confined to cases where the information does not prima facie disclose a cognizable offence but requires verification; where it clearly discloses one, the police have no discretion to hold a preliminary inquiry before registering the FIR.

***Social Action Forum for Manav Adhikar v. Union of India*, (2018) 10 SCC 443**

A preliminary inquiry before registration of an FIR may be held in matters relating to matrimonial and family disputes. Such an inquiry is not for testing the veracity of the information but for ascertaining whether it discloses a cognizable offence.

***XYZ v. State of Maharashtra*, AIR 2022 SC 3957**

It is not open to a police officer to decline to register an FIR when a complaint disclosing the commission of a cognizable offence is received. He may file a final report after completing the investigation.

***Gajanan Dashrath Kharate v. State of Maharashtra*, (2016) 4 SCC 604; Mukesh v. State of NCT of Delhi, (2017) 2 SCC (Cri) 673**

The object of insisting upon the prompt registration of an FIR is to obtain early information not only about the accused but also about the part played by him, the nature of the incident and the names of the witnesses.

***Damodarprasad Chandrikaprasad v. State of Maharashtra*, (1972) 1 SCC 107**

The FIR is an important document which sets the criminal law in motion, but it is not substantive evidence of the facts recorded in it.

***Aghnoo Nagesia v. State of Bihar*, AIR 1966 SC 119**

An FIR may be used to corroborate the informant under Section 157 of the Indian Evidence Act (now Section 160 of the BSA), or to contradict him under Section 145 of that Act (now Section 148 of the BSA), if he is called as a witness at the trial.

***Lalita v. Vishwanath*, 2025 INSC 173**

An FIR is not substantive evidence by itself unless it falls under Section 32 as a dying declaration (now Section 26 of the BSA), or is used to corroborate or contradict the informant's version under Section 157 or Section 145 of the Evidence Act (now Sections 160 and 148 of the BSA respectively).

***Bathula Nagamalleswara Rao v. State*, 2008 INSC 512**

A conjoint reading of Sections 157 and 159 (now Sections 176 and 178 of the BNSS) makes it clear that the purpose of sending the occurrence report is to avoid the possibility of improvement in the prosecution story.

***Yogesh Singh v. Mahabir Singh*, (2017) 11 SCC 195; Anjan Dasgupta v. State of W.B., (2017) 11 SCC 222**

Under Section 157 (now Section 176 of the BNSS) the police officer is required to forward a copy of the FIR to the Magistrate empowered to take cognizance promptly and without delay. It cannot be laid down as a rule of universal application that whenever there is some delay in sending the FIR to the Magistrate the prosecution version becomes unreliable. Where the FIR was recorded promptly and the investigation started on its basis, then in the absence of prejudice to the accused it cannot be said that the investigation was tainted or the prosecution story unreliable.

***Arnab Ranjan Goswami v. Union of India*, (2020) 14 SCC 12**

A subsequent FIR in respect of the same or a connected cognizable offence is not permissible, and such a second or multiple FIR is liable to be quashed.

Circumstances in which a second FIR is permissible

***State of Rajasthan v. Surendra Singh Rathore*, 2025 INSC 248**

A second FIR for the same offence is impermissible, though a second FIR for a distinct offence is permissible. The Court outlined the following circumstances in which a second FIR may be registered:

- where the second FIR is a counter-complaint, or presents a rival version of facts relating to an earlier FIR;
- where the two FIRs differ in scope although arising out of the same circumstances;
- where investigation reveals the earlier FIR to be part of a larger conspiracy;
- where new facts or circumstances come to light through the investigation or through related persons; and
- where the incident is separate, whether or not the offences are similar or different.

First Information Report (FIR)

***M. Subramaniam v. S. Janaki*, (2020) 16 SCC 728**

Where the police refuse to register an FIR, the informant must first approach the Superintendent of Police under Section 154(3) (now Section 173(4) of the BNSS) and thereafter the Magistrate under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS). A writ petition cannot be the first recourse unless these remedies are exhausted.

***Palani v. State of Tamil Nadu*, (2020) 16 SCC 401**

Delay in lodging an FIR is normally viewed by the courts with suspicion, because of the possibility of concoction of evidence against the accused. It is the duty of the prosecution to explain the delay satisfactorily and to offer a plausible explanation.

***Central Bureau of Investigation v. Thommandru Hannah Vijayalakshmi*, (2021) 18 SCC 135**

A preliminary enquiry by the Central Bureau of Investigation in corruption cases is not mandatory. Where the information received by the CBI, through a complaint or from a source, discloses the commission of a cognizable offence, it may directly register a regular case instead of conducting a preliminary enquiry, provided the officer is satisfied that the information discloses such an offence. An FIR is not vitiated merely because no preliminary enquiry was conducted.

***Krishna Lal Chawla v. State of U.P.*, (2021) 5 SCC 435**

A second FIR which is not a cross-case, in respect of an offence or of different offences committed in the course of the same transaction, is not only impermissible but violates Article 21 of the Constitution.

***Tarak Dash Mukharjee v. State of Uttar Pradesh*, (2022) 14 SCC 767**

The registration of multiple FIRs is an abuse of the process of law, for it entangles the accused in several criminal proceedings for the same alleged offence. The registration of successive FIRs on the same set of facts and allegations at the instance of the same informant will not stand the scrutiny of Articles 21 and 22 of the Constitution.

***Mohammad Wajid v. State of U.P.*, 2023 INSC 683**

Delay in the registration of an FIR cannot by itself be a ground for quashing it. Delay coupled with other attending circumstances appearing from the record, which render the entire prosecution case inherently improbable, may at times furnish a good ground for quashing the FIR and the consequential proceedings.

***Imran Pratapgadhi v. State of Gujarat*, 2025 INSC 410**

Where the offences alleged concern speech and expression, a preliminary inquiry must be conducted before lodging the FIR.

Section 175

***Amar Nath Chaubey v. Union of India*, AIR 2021 SC 109**

Where the court, on a review of the available material, finds that the police have not conducted a proper investigation or have been negligent, it is under a constitutional duty to ensure that the investigation is carried out lawfully. Directions issued by the court to that end, so long as they remain within the legal framework, cannot be regarded as interference with the investigation.

***H.N. Rishbud v. State of Delhi*, AIR 1955 SC 196**

Section 156(2) (now Section 175(2) of the BNSS) makes it clear that an irregularity in the investigation will not vitiate the trial.

***Dilawar Singh v. State of Delhi*, (2007) 12 SCC 641**

Even where an FIR has been registered and the police have made, or are making, an investigation which the aggrieved person considers improper, such a person may approach the Magistrate under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS), and if the Magistrate is satisfied he may order a proper investigation and take suitable steps.

***Srinivas Gundluri v. SEPCO Electric Power Construction Corpn.*, (2010) 8 SCC 206**

Even where a complaint has been filed, the Magistrate may, instead of taking cognizance upon it, order an investigation under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS).

***Sakiri Vasu v. State of Uttar Pradesh*, (2008) 2 SCC 409; Sudhir Bhaskarrao Tambe v. Hemant Yashwant Dhage, (2016) 6 SCC 277**

The Magistrate has implied and incidental powers to make an express power effective. Where he orders investigation under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS) and the police officer does not investigate or investigates improperly, there is no need to approach the High Court under Section 482 of the Code (now Section 528 of the BNSS) or under Article 226 of the Constitution. The Magistrate himself has the incidental power to pass a further order for investigation or for a proper investigation. This does not mean that the Magistrate will interfere in the investigation.

***Babu Venkatesh v. State of Karnataka*, (2022) 5 SCC 639**

Applications under Section 156(3) of the Cr.P.C. (now Section 173(4) read with Section 175(3) of the BNSS) must be supported by an affidavit duly sworn by the complainant, so that persons are deterred from casually invoking the authority of the Magistrate; and if such an affidavit is found to be false, the person is liable to prosecution in accordance with law.

***A.R. Antulay v. R.S. Nayak*, (1992) 1 SCC 225; P. Ramchandra Rao v. State of Karnataka, (2002) 4 SCC 578**

The court shall not interfere in investigation proceedings, as that is the prerogative of the executive.

***Suresh Chandra Jain v. State of Madhya Pradesh*, (2001) 2 SCC 628**

The Magistrate has authority to treat an application under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS) as a complaint.

***XYZ v. State of Maharashtra*, AIR 2022 SC 3957**

Where the Magistrate not only finds that a cognizable offence is disclosed on a prima facie reading of the complaint, but facts are also brought to his notice which clearly indicate the need for police investigation, the discretion granted by Section 156(3) of the Cr.P.C. (now Section 173(4) read with Section 175(3) of the BNSS) can only be read as making it his duty to order the police to investigate. Especially in cases alleging sexual harassment, sexual assault or any similar criminal allegation, where the victim has possibly already been traumatised, the courts should not further burden the complainant and should press upon the police to investigate.

***Ahmad Quraishi v. State of U.P.*, (2020) 13 SCC 435**

The rejection of an application under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS) does not preclude the complainant from filing a complaint under Section 200 (now Section 223 of the BNSS).

***Suresh Kankra v. State of Uttar Pradesh*, (2022) SCC Online SC 1947**

A Judicial Magistrate must be conscious of the consequences while passing an order under Section 156(3) of the Code of Criminal Procedure (now Section 173(4) read with Section 175(3) of the BNSS), and the relevant material is expected to be taken note of.

***Jayant v. State of M.P.*, (2021) 2 SCC 670**

When the Magistrate applies his mind for the purpose of ordering investigation under Section 156(3) of the Code (now Section 173(4) read with Section 175(3) of the BNSS) he cannot be said to have taken cognizance of the offence. His order is in the nature of a pre-emptory reminder or intimation to the police to exercise their primary duty and power of investigation.

***Usha Chakraborty v. State of West Bengal*, 2023 SCC OnLine 90**

In order to cause the registration of an FIR and a consequential investigation, the petition filed under Section 156(3) of the Cr.P.C. (now Section 173(4) read with Section 175(3) of the BNSS) must satisfy the essential ingredients attracting the alleged offences. Where the allegations in the petition are vague and are not specific with respect to the alleged offences, they cannot lead to an order for registration of an FIR and investigation.

***Ramesh Kumar Bung v. State of Telangana*, 2024 SCC Online SC 264**

The directions given in Priyanka Srivastava v. State of Uttar Pradesh, (2015) 6 SCC 287, are mandatory. An affidavit is necessary with an application under Section 156(3) of the Cr.P.C. (now Section 173(4) read with Section 175(3) of the BNSS).

Note. Under the Code of Criminal Procedure the application was made under Section 156(3) and the Magistrate was empowered to pass the order under Section 156(3) itself. Under the BNSS the position has changed: the application is filed before the Magistrate under Section 173(4), while the Magistrate is empowered to pass the order under Section 175(3). The corresponding provision has accordingly been cited throughout as Section 173(4) read with Section 175(3) of the BNSS.

Procedure for investigation

***Chotkau v. State of Uttar Pradesh*, AIR 2022 SC 4688**

The word forthwith in Section 157(1) of the Code (now Section 176 of the BNSS) is to be understood in the context of the facts and circumstances of each case, and no straitjacket formula can be applied. But where the ocular evidence is found to be unreliable and thus unacceptable, a long delay has to be taken note of by the court, and the inordinate delay in the FIR reaching the jurisdictional court assumes significance.

***Mukesh Singh v. State (Narcotic Branch of Delhi)*, AIR 2020 SC 4794**

Under Section 157 of the Cr.P.C. (now Section 176 of the BNSS), where the officer in charge of a police station receives information, or otherwise suspects the commission of an offence which he is empowered to investigate under Section 156 (now Section 173(4) read with Section 175(3) of the BNSS), he must forthwith report it to a Magistrate having jurisdiction to take cognizance, and must also proceed to the spot to investigate the facts and circumstances and, if required, take steps for the discovery and arrest of the offender.

***Ombir Singh v. State of Uttar Pradesh*, AIR 2020 SC 2609**

Delay in complying with Section 157 of the Code (now Section 176 of the BNSS) is not by itself a sufficient ground for acquitting the accused.

***Ramji Singh v. State of Uttar Pradesh*, AIR 2020 SC 169**

A mere delay in complying with Section 157 of the Code (now Section 176 of the BNSS) is not inherently detrimental to the prosecution. It only raises the suspicion that the prosecution narrative may have been fabricated at a later stage.

Power to hold investigation or preliminary inquiry

***Jafarudheen v. State of Kerala*, (2022) 8 SCC 440**

The jurisdictional Magistrate plays a pivotal role during the investigation, which is meant to make the investigation just and fair. The investigating officer is to keep the Magistrate in the loop as to the progress of his investigation, the object being to avoid any possible foul play. The Magistrate has a role to play under Section 159 of the Cr.P.C. (now Section 178 of the BNSS).

Police officer's power to require attendance of witnesses

***State Rep. by Inspector of Police v. N.M.T. Joy Immaculate*, AIR 2004 SC 2282**

Section 160 of the Code (now Section 179 of the BNSS) is intended to secure the presence of persons able to furnish essential information about the commission of an offence and to serve as witnesses during the inquiry or trial.

***Charansingh v. State of Maharashtra*, AIR 2021 SC 1620**

A statement given by a public servant, and the information obtained during a discreet inquiry, serve only to determine whether an offence under Section 13(1)(e) of the Prevention of Corruption Act, 1988 is made out. Such a statement is neither a confession nor a statement under Section 160 of the Code (now Section 179 of the BNSS).

Examination of witnesses by the police and use of statements

***Nandini Satpathy v. P.L. Dani*, (1978) 2 SCC 424**

The area covered by Article 20(3) and by Section 161(2) (now Section 180(2) of the BNSS) is substantially the same, and Section 161(2) is a parliamentary gloss on the constitutional clause.

***Harbeer Singh v. Sheeshpal*, (2016) 16 SCC 418**

Delay in recording the statements of witnesses does not necessarily discredit their testimony. The court may rely upon such testimony if it is cogent and credible and the delay is explained to the satisfaction of the court.

***Virender Singh v. State of Haryana*, (2017) 11 SCC 126**

A statement recorded under Section 161 of the Cr.P.C. (now Section 180 of the BNSS) does not constitute evidence upon which the court may rely to convict the accused in the absence of substantive evidence.

***Charansingh v. State of Maharashtra*, (2021) 5 SCC 469**

The statement of a person against whom a pre-FIR enquiry is being conducted cannot be said to be a statement under Section 160 of the Cr.P.C. (now Section 179 of the BNSS). Such a statement can be used only to ascertain whether a cognizable offence is disclosed.

***Dipakbhai Jagdishchandra Patel v. State of Gujarat*, (2019) 16 SCC 547**

The bar of Section 162 of the Cr.P.C. (now Section 181 of the BNSS) operates only from the beginning of the investigation until its termination. Where a statement which does not amount to a confession, but is relevant as an admission, is made before the investigation commences, it is admissible and the bar of Section 162 does not operate.

***Raghunandan v. State of U.P.*, (1974) 4 SCC 186**

Section 162 (now Section 181 of the BNSS) is limited in its scope to use by the parties. The court may put any question, whether by way of corroboration or of contradiction, under Section 165 of the Indian Evidence Act (now Section 168 of the BSA); Section 162 does not control Section 165.

***Raghu Nandan v. State of U.P.*, AIR 1974 SC 463**

While examining a person as a court witness under Section 311 of the Code, or putting any question to a witness under Section 165 of the Evidence Act (now Section 168 of the BSA), the court may make use of previous statements, and the restrictions imposed by Section 162 of the Code (now Section 181 of the BNSS) do not apply.

***Tehsildar Singh v. State of U.P.*, AIR 1959 SC 1012**

Significant omissions in a statement made to the police during the investigation are deemed to be part of the statement and may amount to contradiction.

***Birbal Nath v. State of Rajasthan*, 2023 INSC 957**

A statement given to the police during investigation under Section 161 of the Cr.P.C. (now Section 180 of the BNSS) is a previous statement under Section 145 of the Evidence Act (now Section 148 of the BSA) and may therefore be used to cross-examine a witness. But this is only for the limited purpose of contradicting the witness, and even where the defence succeeds in contradicting her, it does not always follow that the contradiction between her two statements wholly discredits her.

***P. Krishna Mohan Reddy v. State of Andhra Pradesh*, 2025 INSC 725**

Statements of an accused recorded under Section 161 of the Cr.P.C. (now Section 180 of the BNSS) cannot be used against a co-accused at the stage of anticipatory or regular bail. Such statements, whether exculpatory or inculpatory, are subject to the Evidence Act, 1872 (now the BSA), and lack evidentiary value against a co-accused at the bail stage.

***Anees v. State Govt. of NCT*, AIR 2024 SC 2297**

A witness's statement recorded by the police under Section 161(1) of the Cr.P.C. (now Section 180 of the BNSS) may be used only to contradict that witness at the trial. Such statements are not substantive evidence and serve a limited purpose:

- allowing the accused to contradict the witness under Section 145 of the Evidence Act (now Section 148 of the BSA);
- permitting the prosecution to contradict the witness with the court's approval; and
- enabling the witness to be re-examined if necessary.

***Allarakha Habib Memon v. State of Gujarat*, AIR 2024 SC 4201**

Where the police deliberately delay registering the FIR after receiving information of a cognizable offence, and instead prepare it after on-site discussion and deliberation, such an FIR is not the actual FIR but a statement made during the investigation falling under Section 162 of the Cr.P.C. (now Section 181 of the BNSS). Failure to register the FIR promptly casts doubt upon the credibility of the investigation, since it creates the opportunity for fabricating evidence and misleading leads. A deliberately delayed FIR compromises the integrity of the investigation and is inadmissible under Section 162. The non-production of the daily diary (roznamcha) may further indicate an attempt to fabricate or conceal material facts.

***Munna Pandey v. State of Bihar*, 2023 SCC OnLine 1103**

The restriction imposed by the first part of Section 162 of the Cr.P.C. (now Section 181 of the BNSS) relates to the purpose of contradicting, by the use of a previous statement made to the police, the evidence given in favour of the State by a prosecution witness; it does not relate to the procedure which may be adopted to effect this purpose. The proviso, which sets out the limited purpose, also indicates the manner in which an accused may contradict the witness with his previous statement to the police, but it does not take away the power of the court to look into any document which it considers necessary for the ends of justice, or to put such questions to a witness as it considers necessary to elicit the truth. The proviso prevents the court from using statements made to a police officer in the course of investigation for any purpose other than that mentioned in it, but does not otherwise affect the power of the court to look into documents or to put questions to witnesses suo motu.

Statements and confessions under Section 183

Manoharan v. State, (2020) 5 SCC 782

Section 164 of the Cr.P.C. (now Section 183 of the BNSS) does not contemplate that a confession or statement must necessarily be made in the presence of an advocate, except where the confessional statement is recorded by audio-video electronic means. What is mandatory is that the Magistrate must satisfy himself of the voluntariness of the statement and that all the statutory safeguards are meticulously complied with.

Somasundaram v. State, (2020) 7 SCC 722

A statement under Section 164 of the Cr.P.C. (now Section 183 of the BNSS) is not a substantive piece of evidence, and a conviction based upon it in the absence of any substantive evidence in court against the accused would be impermissible.

Ajai @ Ajju v. State of Uttar Pradesh, AIR Online 2023 SC 117

The non-examination of a statement under Section 164 of the Cr.P.C. (now Section 183 of the BNSS) has no relevance to or bearing upon the findings and conclusions reached by the courts below. It was for the investigating officer to have the statement under Section 164 recorded; if in his wisdom he did not think it necessary, that cannot bear upon the testimony of the prosecution witness or the other material evidence led at the trial.

Significance and evidentiary value of statements under Section 183

Vijaya Singh v. State of Uttarakhand, 2024 INSC 905

A statement recorded under Section 164 of the Cr.P.C. (now Section 183 of the BNSS) is not substantive evidence, but it holds significant evidentiary value for corroboration and contradiction under Section 157 of the Indian Evidence Act, 1872 (now Section 160 of the BSA). Since such statements are recorded by a Judicial Magistrate they carry more credibility than statements under Section 161 of the Cr.P.C. (now Section 180 of the BNSS) and are not subject to the restrictions of Section 162 (now Section 181 of the BNSS). The primary purpose of recording a statement under Section 164 is to discourage witnesses from retracting or altering their testimony and to ensure legal accountability. Such statements are particularly important where witnesses are vulnerable to external influence, whether through association with or pressure from the accused. The reliability and evidentiary weight of such statements depend upon the witness's consistency and the circumstances surrounding any retraction; ultimately their credibility is tested at the trial, where they are evaluated alongside the other evidence.

Statements and confessions under Section 183

Miss 'A' v. State of Uttar Pradesh, AIR 2020 SC 4903

The mere filing of the charge-sheet does not automatically entitle the accused to access every relevant document, including the victim's statement recorded under Section 164 of the Code (now Section 183 of the BNSS).

Search by a police officer

State of M.P. through CBI v. Paltan Mallah, AIR 2005 SC 733

Evidence relating to a seizure cannot be discarded merely on the ground that the witness present at the search and seizure was not from the same locality.

> ***Manish Dixit v. State of Rajasthan*, AIR 2001 SC 93**
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> An investigating officer of one police station may, in certain urgent circumstances, conduct a search within the jurisdiction of another police station. He must, however, notify the officer in charge of that police station and furnish a copy of the search list, and copies of the search documents should be sent to the nearest Magistrate empowered to take cognizance of the offence.

> ***Kamalabai Jethamal v. State of Maharashtra*, AIR 1962 SC 1189**
>
> Some irregularity in making a search does not by itself render the search illegal or the evidence collected inadmissible.

REMAND AND DEFAULT BAIL

***CBI v. Anupam Kulkarni*, (1992) 3 SCC 141**

Police remand should not be resorted to after fifteen days from the date of arrest. (Note the change in the law under the BNSS.)

***Hussainara Khatoon (5) v. State of Bihar*, (1980) 1 SCC 108**

It is the duty of the Magistrate to inform the accused that he has a right to be released on bail under the proviso to Section 167(2) (now Section 187(3) of the BNSS).

***Sanjay Dutt v. State*, (1994) 4 SCC 410; Aslam Babalal Desai v. State of Maharashtra, (1992) 4 SCC 272**

Bail granted under the proviso to Section 167 (now Section 187(3) of the BNSS) remains valid until it is cancelled, and the receipt of the charge-sheet in court is not by itself a ground for cancellation of bail.

***Rakesh Kumar Paul v. State of Assam*, (2017) 15 SCC 67**

Where the investigation is not completed within sixty or ninety days, as the case may be, and no police report is filed on the sixtieth or ninetieth day, the accused acquires an indefeasible right to default bail. The accused must apply for default bail and must be prepared to furnish bail.

- The right to personal liberty includes the right to a speedy investigation and the entitlement to default bail where the statutory period for filing the charge-sheet has expired and the accused has applied and is willing to furnish bail. In matters concerning personal liberty and penal statutes, an obligation is cast upon the court to inform the accused that he is entitled to free legal assistance and to default bail as a matter of right.

***Kamlesh Chaudhary v. State of Rajasthan*, (2021) 1 SCC 553**

An accused released on default bail cannot be re-arrested upon the filing of the charge-sheet by the police. It is open to the prosecution to apply for cancellation of bail on grounds known to law, but the receipt of the charge-sheet in court can by itself be no ground for cancellation.

***Serious Fraud Investigation Office v. Rahul Modi*, 2022 SCC OnLine (SC) 153**

The indefeasible right to claim bail under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS) arises only where the charge-sheet is not filed within the statutory period. The non-taking of cognizance by the Magistrate is no ground for granting default bail. The accused continues in the custody of the Magistrate until cognizance is taken by the court trying the offence, which then assumes custody of the accused for the purpose of remand.

***Venkatesan Balasubramaniyan v. The Intelligence Officer, D.R.I., Bangalore*, (2020) 5 SCC 735**

Default bail granted under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS) may be cancelled under Section 439(2) (now Section 483(3) of the BNSS). The proviso to Section 167 clarifies that every person released on bail under Section 167(2) shall be deemed to be so released under Chapter XXXIII, and where a person has been illegally or erroneously released on bail his bail may be cancelled by an appropriate order under Section 439(2).

***State through CBI v. T. Gangi Reddy @ Yerra Gangi Reddy*, 2023 (123) ACC 706 (SC); (2023) 1 SCC 204**

Where an accused has been released on default bail under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS), and thereafter, on the filing of the charge-sheet, a strong case is made out and special reasons appear from the charge-sheet that he has committed a non-bailable offence, his bail may be cancelled on merits having regard to Section 437(5) (now Section 480(5) of the BNSS) and Section 439(2) (now Section 483(3) of the BNSS); the courts are not precluded from considering such an application. The mere filing of the charge-sheet after release on default bail is not itself a ground for cancellation. Any other interpretation would place a premium on the lethargy or negligence of the investigating agency. The object and purpose of the proviso to Section 167(2) is to impress upon the need for an expeditious investigation within the prescribed time limit and to prevent laxity; an order of release under that proviso is not an order on merits.

Right of default bail cannot be defeated by subsequent filing of a police report

***M. Ravindran v. The Intelligence Officer, Directorate of Revenue Intelligence*, 2020 SCC OnLine SC 867**

Where the accused has already applied for default bail, the prosecutor cannot defeat the enforcement of his indefeasible right by subsequently filing a final report, an additional complaint or a report seeking extension of time. Once the accused files an application for bail under the proviso to Section 167(2) (now Section 187(3) of the BNSS) he is deemed to have availed of or enforced his right to be released on default bail, which accrues after the expiry of the stipulated period for investigation. That right continues to remain enforceable notwithstanding the pendency of the bail application, the subsequent filing of the charge-sheet or of a report seeking extension of time, or the filing of the charge-sheet during the interregnum while a challenge to the rejection of the bail application is pending before a higher court.

- Where, however, the accused fails to apply for default bail when the right accrues to him, and a charge-sheet, additional complaint or report seeking extension of time is thereafter preferred before the Magistrate, the right to default bail is extinguished. The Magistrate is then at liberty to take cognizance of the case or to grant further time for completion of the investigation, though the accused may still be released on bail under other provisions of the Cr.P.C. (now the BNSS).

***Bikramjit Singh v. State of Punjab*, (2020) 10 SCC 616**

The right to default bail becomes complete and indefeasible as soon as an application for it is made on the expiry of the maximum period prescribed, before the charge-sheet is filed. Once the application is made the indefeasible right cannot be defeated by the filing of the charge-sheet, nor by the non-disposal or the wrong disposal of the application. No condition requiring the deposit of any amount involved in the alleged crime may be imposed by the court while granting default bail, for such a condition would frustrate the very object and purpose of default bail.

***Pradeep Ram v. State of Jharkhand*, (2019) 17 SCC 326**

An accused may be remanded under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS) during investigation so long as cognizance has not been taken by the court. Even after cognizance is taken, if the accused is subsequently arrested in further investigation he may also be remanded under Section 167(2). But where cognizance has been taken and the accused was in custody at that time, or where an inquiry or trial is being held in respect of him, he may be remanded to judicial custody only under Section 309(2) of the Cr.P.C. (now Section 346(2) of the BNSS).

***Fakhrey Alam v. State of Uttar Pradesh*, (2021) SCC OnLine (SC) 192**

The period for investigation specified under Section 167 of the Code of Criminal Procedure (now Section 187 of the BNSS) cannot be extended by seeking to file a supplementary charge-sheet qua UAPA offences. The State cannot take advantage of filing one charge-sheet first and then seeking time to file supplementary charge-sheets so as to extend the time limit under Section 167(2) (now Section 187(3) of the BNSS). The Court reiterated that default bail under the first proviso to Section 167(2) is a fundamental right and not merely a statutory one.

***CBI v. Vikas Mishra @ Vikash Mishra*, (2023) 6 SCC 49**

Although in Central Bureau of Investigation v. Anupam J. Kulkarni, (1992) 3 SCC 141, it was observed that there can be no police custody beyond fifteen days from the date of arrest, that view requires reconsideration, as no accused can be permitted to play with the investigation or with the process of the court, or to frustrate the judicial process by his conduct.

Calculation of the period for default bail

***Enforcement Directorate v. Kapil Wadhawan*, 2023 SCC OnLine 972**

The stipulated sixty or ninety day remand period under Section 167 of the Cr.P.C. (now Section 187 of the BNSS) is to be computed from the date on which the Magistrate authorises remand. If the first day of remand were excluded, the remand period would extend beyond the permitted sixty or ninety days, resulting in unauthorised detention beyond the period envisaged by the section. Where the charge-sheet or final report is filed on or after the sixty-first or ninety-first day, the accused is entitled to default bail; in other words, the very moment the stipulated period expires an indefeasible right to default bail accrues to the accused.

***Central Bureau of Investigation v. Kapil Wadhawan*, AIR 2024 SC 905**

Once the court, from the material produced with the charge-sheet, is satisfied about the commission of an offence and takes cognizance of it, it is immaterial whether further investigation under Section 173(8) (now Section 193(9) of the BNSS) is pending. The pendency of further investigation qua the other accused, or for the production of documents not available when the charge-sheet was filed, neither vitiates the charge-sheet nor entitles the accused to claim default bail on the ground that the charge-sheet was incomplete or was not filed in terms of Section 173(2) of the Cr.P.C. (now Section 193(3) of the BNSS).

Directions with respect to default bail

***Ritu Chhabaria v. Union of India*, 2023 SCC OnLine SC 502**

The Supreme Court held:

- Without completing the investigation, a charge-sheet or prosecution complaint cannot be filed by an investigating agency merely to deprive an arrested accused of his right to default bail under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS).
- Such a charge-sheet, filed by an investigating authority without first completing the investigation, would not extinguish the right to default bail under Section 167(2) (now Section 187(3) of the BNSS).
- The trial court in such cases cannot continue to remand an arrested person beyond the maximum stipulated time without offering him default bail.
- The Court also observed that the right of default bail under Section 167(2) of the Cr.P.C. (now Section 187(3) of the BNSS) is not merely a statutory right but a fundamental right flowing from Article 21 of the Constitution of India.

GENERAL DIARY AND CASE DIARY

***State v. H. Srinivas*, (2018) 7 SCC 572**

The obligation to maintain the General Diary is part of the course of conduct of the officer concerned. Non-maintenance of the General Diary may not by itself have any bearing on the criminal trial unless some grave prejudice going to the root of the matter is shown.

***Balakram v. State of Uttarakhand*, (2017) 7 SCC 668**

The right of an accused to cross-examine a police officer with reference to entries in the police diary is very limited in extent, and even that limited scope arises only where the police officer uses the diary to refresh his memory; it is subject to Sections 145 and 161 of the Indian Evidence Act (now Sections 148 and 164 of the BSA). There is nothing in Section 172 (now Section 192 of the BNSS) enabling the court, the prosecution or the accused to use the police diary to contradict any witness other than the police officer. The court has unfettered power to call for and examine the entries in the police diaries maintained by the investigating officer.

Right of the accused to use the case diary

***Shailesh Kumar v. State of U.P. (now State of Uttarakhand)*, 2024 INSC 143**

Section 172(3) of the Cr.P.C. (now Section 192(5) of the BNSS) makes specific reference to Sections 145 and 161 of the Evidence Act (now Sections 148 and 164 of the BSA). Therefore, whenever a case is made out either under Section 145 or under Section 161 of the Evidence Act, the benefit conferred by those provisions, along with the benefit of Section 172(3), must be extended to the accused. The accused thus has a right to cross-examine a police officer as to the recording made in the case diary whenever the officer uses it to refresh his memory. Similarly, where the court uses the case diary for the purpose of contradicting a police officer, the accused is entitled to peruse the statement so recorded, to the extent it is relevant, and to cross-examine the officer on that count. Sections 145 and 161 of the Evidence Act on the one hand and Section 172(3) of the Cr.P.C. on the other are to be read in consonance with each other, subject to the limited right conferred by Section 172(3).

POLICE REPORT

***Dinesh Dalmia v. CBI*, (2007) 8 SCC 413**

So long as the police report is not filed under Section 173(2) (now Section 193(3) of the BNSS) the investigation remains pending. The submission of a report under Section 173(2) does not preclude further investigation under Section 173(8) (now Section 193(9) of the BNSS).

***Union of India v. Prakash Hinduja*, (2003) 6 SCC 195**

The formation of the opinion whether there is sufficient evidence or reasonable ground of suspicion to justify forwarding the case to the Magistrate is to be that of the officer in charge of the police station, and the Magistrate has no role to play in it.

***Saurav Das v. Union of India*, 2023 SCC OnLine (SC) 58**

A copy of the charge-sheet along with the necessary documents cannot be said to be a public document within the definition in Section 74 of the Evidence Act (now Section 74 of the BSA). If all charge-sheets and the relevant documents produced with them were put in the public domain or on the websites of the State Governments, it would be contrary to the scheme of the Code of Criminal Procedure and might violate the rights of the accused as well as of the victim and even of the investigating agency. Putting the FIR on a website cannot be equated with putting charge-sheets along with the relevant documents in the public domain.

***Abhinandan Jha v. Dinesh Mishra*, AIR 1968 SC 117**

The Magistrate cannot compel a police officer to submit a charge-sheet.

***Sampat Singh v. State of Haryana*, (1993) 1 SCC 561**

Where a final report is filed, the court should scrutinise it and take a decision either to accept or to reject it.

***Bhagwant Singh v. Commissioner of Police*, (1985) 2 SCC 537**

The complainant should be heard before the Magistrate drops the case.

***Youth Bar Association of India v. Union of India*, AIR 2016 SC 4136**

An accused is entitled to a copy of the FIR at a stage earlier than that prescribed by Section 207 of the Cr.P.C. (now Section 230 of the BNSS). The FIR must be uploaded on the police website within twenty-four hours, unless the case is sensitive in nature, such as a sexual offence or an offence pertaining to insurgency or terrorism.

***Bikash Ranjan Rout v. State*, (2019) 5 SCC 542**

A Magistrate has no jurisdiction to pass an order suo motu for further investigation or reinvestigation after he has discharged the accused.

***Ramswaroop Soni v. State of M.P.*, AIR 2019 SC 3801**

A Magistrate, on receipt of a closure or refer report, cannot direct the police to file a charge-sheet; such a direction is wholly unsustainable.

***Neetu Kumar Nagaich v. State of Rajasthan*, (2020) 16 SCC 777**

In appropriate cases, even where the charge-sheet has been filed, it is open to the Supreme Court or to the High Court to direct that the investigation be handed over to the CBI or to any other independent agency in order to do complete justice.

***Aman Preet Singh v. CBI*, 2021 SCC OnLine SC 941**

While accepting a charge-sheet the Magistrate or the court is required invariably to issue a process of summons and not a warrant of arrest. Where an accused in a non-bailable offence has been enlarged and free for many years, and was not even arrested during the investigation, it would be contrary to the governing principles for the grant of bail suddenly to direct his arrest merely because the charge-sheet has been filed.

***Luckose Zachariah @ Zak Nedumchira Luke v. Joseph Joseph*, (2022) 1 SCC 452**

Citing Vinay Tyagi v. Irshad Ali alias Deepak and Vinubhai Haribhai Malaviya v. State of Gujarat, the Court held that in considering whether there is ground for presuming that the persons named as accused have committed the offence, the court must read conjointly the initial report submitted under Section 173(2) of the Cr.P.C. (now Section 193(3) of the BNSS) and the supplementary report submitted after further investigation under Section 173(8) (now Section 193(9) of the BNSS).

***Siddharth v. State of Uttar Pradesh*, (2020) 17 SCC 90**

Section 170 of the Cr.P.C. (now Section 190 of the BNSS) does not impose an obligation on the officer in charge to arrest each and every accused at the time of filing the charge-sheet. The practice of some trial courts of insisting on the arrest of an accused as a pre-requisite formality for taking the charge-sheet on record is misplaced and contrary to the very intent of the section.

***Rajesh Yadav v. State of U.P.*, (2022) 12 SCC 200**

A final report cannot be termed a substantive piece of evidence. It is nothing but a collective opinion of the investigating officer. Section 173(2) of the Cr.P.C. (now Section 193(3) of the BNSS) calls upon the investigating officer to file a report before the court; being a report it is not a piece of evidence, but forms a mere opinion of the investigating officer upon the material collected by him.

***Bohatie Devi (Dead) Through LR v. State of Uttar Pradesh*, 2023 INSC 465**

Section 173(3) of the Cr.P.C. read with Section 158 (now Section 193(4) read with Section 177 of the BNSS) does not permit the Secretary (Home) to order further investigation or reinvestigation by an agency other than the officer in charge of the police station concerned or his superior officer. Reinvestigation without the prior permission of the Magistrate, even while exercising the powers under Section 173(8) of the Cr.P.C. (now Section 193(9) of the BNSS), is not permissible.

***State of Uttarakhand v. Umesh Kumar Sharma*, (2023) 5 SCC 740**

Where criminal proceedings or FIRs are quashed by the High Court, there is no question of preparing or filing a closure report under Section 173 of the Cr.P.C. (now Section 193 of the BNSS); the Court directed that if such a practice is being followed by the State it should be stopped immediately.

***CBI v. Narottam Dhakad*, 2023 SCC OnLine SCC 1069**

There is no specific provision in the Cr.P.C. (now the BNSS) requiring the investigating agency or officer to file the report in the language of the court determined under Section 272 of the Cr.P.C. (now Section 307 of the BNSS). Even if such a requirement were read into Section 173 (now Section 193 of the BNSS), the proceedings would not per se be vitiated if the report is not in the language of the court; the test of failure of justice laid down in Section 465 of the Cr.P.C. (now Section 511 of the BNSS) would have to be applied.

***Dablu Kujur v. State of Jharkhand*, 2024 INSC 197**

Police officers must adhere to the requirements of Section 173(2) of the Cr.P.C. (now Section 193(3) of the BNSS) when submitting the police report or charge-sheet to the Magistrate, as also to the State Police Manual. Officers in charge of every police station nationwide are mandated strictly to comply, and any failure will be scrutinised by the court before which the charge-sheet or police report is lodged.

***Sameer Sandhir v. Central Bureau of Investigation*, 2025 INSC 776**

The prosecution may produce documents inadvertently omitted from the charge-sheet, whether collected before or after the investigation, provided no prejudice is caused to the accused. Procedural lapses in submitting evidence may be rectified after the charge-sheet without invoking Section 173(8) of the Cr.P.C. (now Section 193(9) of the BNSS).

***Subrata Choudhury @ Santosh Choudhury v. State of Assam*, AIR 2024 SC 5690**

There is no bar to the maintainability of a second protest petition against a negative final report or charge-sheet if the Magistrate believes that the core of the two complaints is different. Where the earlier protest was disposed of on merits, a second protest on almost identical facts already raised in the first would not be maintainable. There is no bar to entertaining a second protest on the same facts, but it will be entertained only in exceptional circumstances, that is, where the earlier order of dismissal suffers from some infirmity.

FURTHER INVESTIGATION

***Mariam Fasihuddin v. State by Adugodi Police Station*, 2024 INSC 49**

The expression further investigation in Section 173(8) of the Cr.P.C. (now Section 193(9) of the BNSS) obliges the officer in charge of the police station concerned to obtain further evidence, oral or documentary, and only then to forward a supplementary report regarding such evidence in the prescribed form. In the absence of any new evidence substantiating the conclusions drawn by the investigating officer in the supplementary report, a Judicial Magistrate is not compelled to take cognizance.

***Peethambaran v. State of Kerala*, 2023 INSC 481**

A Magistrate has the power to order further investigation, while fresh investigation, reinvestigation and de novo investigation fall within the jurisdiction of a higher court. The distinction is that further investigation is a continuation of the previous investigation and is undertaken on the discovery of fresh material, whereas the latter can be ordered only by a definite order of the court to that effect, which must state the reasons why the previous investigation is incapable of being acted upon.

Guidelines for further investigation

***State through CBI v. Hemendhra Reddy*, 2023 SCC OnLine SC 515**

The Supreme Court held:

- There is no bar against conducting further investigation under Section 173(8) of the Cr.P.C. (now Section 193(9) of the BNSS) after the final report submitted under Section 173(2) (now Section 193(3) of the BNSS) has been accepted.
- Prior to carrying out further investigation under Section 173(8) it is not necessary that the order accepting the final report should be reviewed, recalled or quashed.
- Further investigation is merely a continuation of the earlier investigation, and it cannot therefore be said that the accused are being subjected to investigation twice over. Investigation cannot be put on a par with prosecution and punishment so as to fall within Article 20(2) of the Constitution, and the principle of double jeopardy is therefore not applicable to further investigation.
- There is nothing in the Cr.P.C. (now the BNSS) to suggest that the court is obliged to hear the accused while considering an application for further investigation under Section 173(8) (now Section 193(9) of the BNSS).

***XXX v. State Represented through the Inspector of Police*, (2024)**

An application for further investigation may be regarded as a protest petition if it appears at first glance to demonstrate the commission of the offences. Such an application cannot be dismissed strictly on the sole ground that the procedural step of filing a protest petition was not followed.

INQUEST REPORT

***Rhea Chakraborty v. State of Bihar*, AIR 2020 SC 3826**

Proceedings under Section 174 of the Cr.P.C. (now Section 194 of the BNSS) are confined to a police inquiry directed at determining the apparent cause of an unnatural death. They do not constitute a full-fledged investigation such as is conducted after the registration of an FIR under Section 154 of the Cr.P.C. (now Section 173 of the BNSS).

***Tehseen Poonawalla v. Union of India*, (2018) 6 SCC 72; Yogesh Singh v. Mahabeer Singh, (2017) 11 SCC 195**

An inquest report is not a substantive piece of evidence. Its purpose is limited to ascertaining the nature of the injuries and the cause of death, and its object is to ascertain whether the death was suicidal, homicidal or accidental, or caused by animals or machinery. It states the manner in which, and by what weapon or instrument, the injuries appear to have been inflicted.

***Amit Kumar v. Union of India*, 2025 INSC 384**

An investigation under Section 174 (now Section 194 of the BNSS) is limited in scope and confined to ascertaining the apparent cause of death. It should not be equated with an investigation into cognizable offences under Sections 160 and 161 of the Cr.P.C. (now Sections 179 and 180 of the BNSS respectively). The procedure under Section 174 is for the purpose of discovering the cause of death, and the evidence taken is very short.

***Narpal Singh v. State of Haryana*, AIR 1977 SC 1066**

Statements of witnesses made in an inquest report are hit by Section 162 of the Code (now Section 181 of the BNSS). They are inadmissible in evidence if the signatories were not examined as witnesses.

JURISDICTION

***Manoj Kumar Sharma v. State of Chhattisgarh*, (2016) 9 SCC 1**

Section 177 of the Code (now Section 197 of the BNSS) lays down the general rule as to the place of inquiry or trial, while Section 178 (now Section 181 of the BNSS) addresses situations where the exact location of the offence is uncertain or spans multiple jurisdictions. During the investigation stage the territorial jurisdiction of the Station House Officer cannot be questioned. Once the investigation is complete, however, if it is found that the cause of action for filing the FIR did not arise within his jurisdiction, the case must be forwarded to the appropriate Magistrate having authority to take cognizance of the offence.

***Rupali Devi v. State of Uttar Pradesh*, (2019) 5 SCC 384**

The courts at the place where the wife takes shelter after leaving, or being driven away from, the matrimonial home on account of acts of cruelty committed by the husband or his relatives would, depending on the factual situation, also have jurisdiction to entertain a complaint alleging offences under Section 498A of the Indian Penal Code (now Section 85 of the BNS).

***State (NCT of Delhi) v. Brijesh Singh*, (2017) 10 SCC 779**

Even where the crime is committed in one State it may be tried in another State if the detrimental effect is felt in that State. The principle that crime is local does not apply in such cases.

***Kaushik Chatterjee v. State of Haryana*, 2020 INSC 568**

The determination of a court's jurisdiction to try an offence, including territorial jurisdiction, rests on facts proved by evidence. Where the issue concerns territorial jurisdiction it must be resolved in accordance with Sections 177 to 184 of the Code (now Sections 197 to 204 of the BNSS). Such matters should be raised before the trial court, which is obliged to consider and decide them.

***Nerella Chiranjeevi Kumar v. State of Andhra Pradesh*, (2021) SCC OnLine (SC) 916**

The trial of a criminal case against an Indian citizen for offences committed outside India cannot commence without the sanction of the Central Government under Section 188 of the Code of Criminal Procedure (now Section 208 of the BNSS). Such previous sanction is not, however, required at the stage of cognizance.

***Sartaj Khan v. State of Uttarakhand*, 2022 INSC 336**

Section 188 of the Code of Criminal Procedure (now Section 208 of the BNSS) is attracted where the entirety of the offence is committed outside India, the grant of sanction enabling such an offence to be enquired into or tried in India. But where part of the offence was committed within India, so that on normal principles the offence could be tried by an Indian court, Section 188 would not apply.

***Rana Ayyub v. Directorate of Enforcement*, 2023 SCC OnLine 109**

The issue of territorial jurisdiction cannot be decided in a writ petition, especially where there is a serious factual dispute about the place of commission of the offence. The question should be raised before the Special Court, since the answer would depend upon evidence as to the places where one or more of the processes or acts constituting the crime were carried out. This question of fact will depend upon the evidence that unfolds before the trial court.

***A. Sreenivasa Reddy v. Rakesh Sharma*, 2023 INSC 682**

Although a person working in a nationalised bank is a public servant, Section 197 of the Cr.P.C. (now Section 218 of the BNSS) is not attracted at all, since Section 197 applies only where the public servant is one who is not removable from his office save by or with the sanction of the Government.

CONDITIONS REQUISITE FOR INITIATION OF PROCEEDINGS

Cognizance

***M.L. Sethi v. R.L. Kapur*, AIR 1967 SC 528**

The expression taking cognizance is not defined in the Code. It is used to indicate the point at which the Magistrate takes judicial notice of an offence with a view to initiating criminal proceedings.

***HDFC Securities Ltd. v. State of Maharashtra*, (2017) 1 SCC 640**

The words may take cognizance in Section 190(1) (now Section 210(1) of the BNSS) cannot be equated with must take cognizance; the word may gives the Magistrate a discretion. On receiving a complaint the Magistrate is not bound to take cognizance if the facts alleged do not disclose the commission of a cognizable offence. Where on perusing the complaint he finds that the allegations disclose the commission of a cognizable offence, and that forwarding the complaint to the police for investigation under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS) will be conducive, he is justified in adopting that course as an alternative to taking cognizance.

***Subramanian Swamy v. Manmohan Singh*, AIR 2012 SC 1185**

Cognizance is the taking of judicial notice by a court of law, possessing jurisdiction, of a matter presented before it, so as to decide whether there is any basis for initiating proceedings.

***Fakhruddin Ahmad v. State of Uttaranchal*, (2008) 17 SCC 157**

Where the Magistrate applies his mind, is satisfied that the allegations if proved would constitute an offence, and decides to initiate proceedings in respect of the alleged offence, it may positively be said that he has taken cognizance of the offence.

***Ajay Kumar Parmar v. State of Rajasthan*, (2012) 12 SCC 406**

The Magistrate, in exercise of his power under Section 190 (now Section 210 of the BNSS), may refuse to take cognizance if the material on record warrants it. The Magistrate performs a judicial function, but he cannot appreciate the evidence on record to reach a conclusion; it is impermissible for him to weigh the evidence and balance the probability of the case at this stage.

***Mahendra Singh Dhoni v. Yerraguntla Shyamsundar*, (2017) 7 SCC 760**

A Magistrate conferred with the power of taking cognizance and issuing process must carefully scrutinise whether the allegations made in the complaint meet the basic ingredients of the offence, whether territorial jurisdiction is satisfied, and whether the accused needs to be summoned.

***Bholu Ram v. State of Punjab*, (2008) 9 SCC 140**

It is settled law that a court can take cognizance of an offence only once, and that once cognizance is taken the court becomes functus officio. There can be no recall of an order of cognizance.

***Mohd. Yusuf v. Afaq Jahan*, (2006) 1 SCC 627**

Before taking cognizance of an offence the Magistrate may direct an investigation under Section 156(3) (now Section 173(4) read with Section 175(3) of the BNSS). It is open to him to direct the police officer to register an FIR, and even if he does not say so in so many words while directing investigation, it is the duty of the officer in charge of the police station concerned to register the FIR.

Sections 213 to 222

***Union of India v. Ashok Kumar Sharma*, 2021 Cri LJ 2006 (SC)**

Under Section 193 of the Cr.P.C. (now Section 213 of the BNSS) a Court of Session cannot directly take cognizance of an offence as a court of original jurisdiction unless the case has been committed to it by a Magistrate in accordance with the Cr.P.C. (now the BNSS).

***Sri A.M.C.S. Swamy, ADE/DPE/Hyd (Central) v. Mehdi Agah Karbalai*, 2019 Cri LJ 4171 (SC)**

Where a special Act expressly empowers the Special Court to take cognizance of an offence without the accused being committed to it, such cognizance cannot be deemed a violation of Section 193 of the Code of Criminal Procedure, 1973 (now Section 213 of the BNSS).

***Vishnu Chandra Gaonkar v. N.M. Desai*, (2018) 5 SCC 422**

Section 195(1)(b)(ii) (now Section 215 of the BNSS) applies only where the offences enumerated in it have been committed in respect of a document after that document has been produced or given in evidence in a proceeding in any court. That is to say, the offence must have been committed when the document was in custodia legis and not prior to that.

***Bandekar Brothers Pvt. Ltd. v. Prasad Vassudev Keni*, (2020) 20 SCC 1**

A private complaint under Section 190 of the Cr.P.C. (now Section 210 of the BNSS) cannot be filed alleging offences under Sections 191 and 192 of the IPC (now Sections 227 and 228 of the BNS), even where the false evidence is created outside the court premises.

- Where in the course of the same transaction two separate offences are made out, one to which Section 195 of the Cr.P.C. (now Section 215 of the BNSS) applies and another to which it does not, and it is not possible to split them up, the procedure under Section 195 must be followed for all the offences. The provisions of Section 195 cannot be evaded by resorting to devices or camouflages, or by describing the offence as punishable under some other section of the IPC (now the BNS).

***Saloni Arora v. State (NCT of Delhi)*, (2017) 3 SCC 286**

The procedure prescribed by Section 195 of the Cr.P.C. (now Section 215 of the BNSS) is mandatory, and a prosecution initiated in the absence of that procedure is void ab initio.

Sanction for prosecution

***Devendra Prasad Singh v. State of Bihar*, (2019) 4 SCC 351**

In order to attract the rigour of Section 197 (now Section 218 of the BNSS), the offence alleged against a government officer must have some nexus with the discharge of his official duties.

***Choudhury Parveen Sultana v. State of West Bengal*, AIR 2009 SC 1404**

All acts done by a public servant in the purported discharge of his official duties cannot as a matter of course be brought under the protective umbrella of Section 197 (now Section 218 of the BNSS). The underlying object of the section is to enable the authorities to scrutinise allegations made against a public servant so as to shield him against frivolous, vexatious or false prosecution initiated with the main object of causing embarrassment and harassment. Where, however, the authority vested in a public servant is misused for doing things not otherwise permitted by law, such acts cannot claim the protection of Section 197.

***Sanjaysinh Ramrao Chavan v. Dattatray Gulabrao Phalke*, (2015) 3 SCC 123**

Where the prosecution is merely intended to harass, sanction for prosecution should not be granted. This is a key factor which the competent authority must consider in deciding whether to accord sanction.

***A. Srinivasulu v. State represented by the Inspector of Police*, 2023 SCC OnLine SC 900**

A public servant would be considered to have acted in the discharge of his official duty at the time of the commission of an alleged offence if he could take cover, rightly or wrongly, under any existing policy, and would as such be granted protection under the Code of Criminal Procedure, 1973 (now Section 218(1) of the BNSS). Sanction would thus be required even for acts done in excess of official duty.

***S.K. Miglani v. State NCT of Delhi*, (2019) 6 SCC 111**

A public servant working in a nationalised bank cannot claim the benefit of sanction under Section 197(1) of the Code of Criminal Procedure (now Section 218 of the BNSS).

***Noorulla Khan v. Karnataka State Pollution Control Board*, (2021) 7 SCC 422**

The protection of sanction under Section 197 of the Code of Criminal Procedure (now Section 218 of the BNSS) is not available to public servants prosecuted under Section 48 of the Water (Prevention and Control of Pollution) Act.

***Indra Devi v. State of Rajasthan*, (2021) 8 SCC 768**

Sanction from the competent authority under Section 197 of the Code of Criminal Procedure (now Section 218 of the BNSS) is required to prosecute a public servant if the alleged act is directly concerned with his official duty. The yardstick is to form a prima facie view whether the act or omission for which the accused was charged had a reasonable connection with the discharge of his duties.

***Minu Kumari v. State*, AIR 2006 SC 1937**

Where the Magistrate decides not to take cognizance and to drop the proceedings, notice to the informant and an opportunity of hearing must be given.

***CBI v. B.A. Srinivasan*, (2020) 2 SCC 153**

The protection under Section 197 of the Cr.P.C. (now Section 218 of the BNSS) is available to a public servant where the offence is said to have been committed while acting, or purporting to act, in the discharge of his official duty. Where the acts are performed using the office as a mere cloak for unlawful gains, they are not protected.

***Suneeti Toteja v. State of U.P.*, 2025 INSC 267**

The Bharatiya Nagarik Suraksha Sanhita, 2023 introduces a deemed sanction under Section 218(1), allowing a prosecution to proceed if sanction is not granted within one hundred and twenty days; but this does not apply to the Cr.P.C. The absence of a valid sanction vitiated the criminal proceedings, leading to the quashing of the charge-sheet, the summoning order and the subsequent actions of the trial court against the appellant. The initiation of criminal proceedings without a valid sanction under Section 197 of the Cr.P.C. is invalid, and the concept of deemed sanction does not exist under the Cr.P.C.

Directions to the court while deciding the question of sanction

***Om Prakash Yadav v. Niranjan Kumar Upadhyay*, 2024 INSC 979**

The necessity of obtaining sanction may not always be apparent at the initial stage of a complaint or police report, but may become evident as the case progresses. The requirement of sanction may therefore be assessed at any stage of the proceedings on the emerging facts. In some instances a definitive decision on the need for sanction may require allowing the defence to lead evidence, and the accused may introduce material during the trial to establish that the alleged acts were closely linked to his official duties, thereby necessitating protection under Section 197 of the Cr.P.C. (now Section 218 of the BNSS). In deciding the issue of sanction courts are not confined to the allegations in the complaint but may consider the entire record at the relevant stage. Courts should refrain from prematurely staying or quashing criminal trials in their early stages, as that could result in the loss of crucial evidence essential for adjudicating the case. The question of sanction is dynamic and context-dependent, requiring a thorough analysis of the evolving facts and evidence, so as to uphold justice while safeguarding the legitimate interests of public officials.

Sanction for prosecution

***Punjab State Warehousing Corp. v. Bhushan Chander*, 2016 Cri LJ 3579 (SC)**

There must be a reasonable link between the act or omission and the discharge of official duties, or the act must have been performed under the guise of the official's position. Where the act is entirely unrelated to official duties, Section 197 of the Cr.P.C. (now Section 218 of the BNSS) cannot be invoked.

***Shadakshari v. State of Karnataka*, 2024 INSC 42**

Section 197 of the Cr.P.C. (now Section 218 of the BNSS) does not extend its protective cover to every act or omission of a public servant while in service. It is restricted to those acts or omissions which are done by public servants in the discharge of official duties, and the manufacture or fabrication of records cannot be part of the official duty of a public servant.

***Subramanian Swamy v. Union of India*, 2016 Cri LJ 3214 (SC)**

A public servant has the right to file a complaint through a public prosecutor in matters relating to his official duties. Section 199(6) of the Cr.P.C. (now Section 222(6) of the BNSS) ensures that public servants retain the same legal rights as any other citizen and cannot be denied those rights. The provision serves to protect them in matters concerning their official functions.

***K.K. Mishra v. State of M.P.*, (2018) 6 SCC 676**

In order to avail of the remedy under Sections 199(2) and 199(4) (now Sections 222(2) and 222(4) of the BNSS), the statements must not only be defamatory but there must also be a nexus between the statement and the discharge of public duties of office.

***P.C. Joshi v. State of Uttar Pradesh*, AIR 1961 SC 387**

The rationale for the special procedure provided by Section 199(2) (now Section 222(2) of the BNSS) is that the offence of defamation committed against the functionaries mentioned in it is really an offence committed against the State, as it relates to the discharge of public functions by State functionaries.

COMPLAINTS TO MAGISTRATE

***Rekha Sharad Ushir v. Saptashrungi Mahila Nagari Sahakari Patsanstha Ltd.*, 2025 INSC 399**

Recording the complainant's statement on oath under Section 200 of the Cr.P.C. (now Section 223 of the BNSS) is not an empty formality. The object of recording the statements of the complainant and of the witnesses, if any, is to ascertain the truth, and the Magistrate is duty bound to put questions to the complainant to elicit the truth. The examination is necessary to enable the court to satisfy itself whether there are sufficient grounds to proceed against the accused. After considering the complaint, the documents produced with it, and the statements of the complainant and of the witnesses, if any, the Magistrate has to apply his mind to ascertain whether there is sufficient ground for proceeding against the accused.

***Manhari Bhai v. Shailesh Bhai*, (2012) 10 SCC 517**

Section 202 of the Code (now Section 225 of the BNSS) has two objects:

- it enables the Magistrate to scrutinise the allegations in the complaint with a view to preventing harassment to the accused; and
- it helps the Magistrate to find out whether there is some material to support the allegations in the complaint.

***Govind Prasad Kejriwal v. State of Bihar*, AIR 2020 SC 1079**

During an inquiry under Section 202 of the Cr.P.C. (now Section 225 of the BNSS) the Magistrate must examine:

- whether a prima facie case is established;
- whether the criminal proceedings constitute an abuse of the process of law;
- whether the matter is strictly of a civil nature; and
- whether a civil dispute is being misrepresented as a criminal case.

Circumstances in which a second complaint is permissible

***Poonam Chand Jain v. Fazru*, (2010) 2 SCC 631**

An order dismissing a complaint is neither an order of acquittal nor an order of discharge, and the principle incorporated in Section 300 (now Section 337 of the BNSS) is therefore not applicable. A second complaint can be entertained only in exceptional circumstances, which may be:

- where the previous order of dismissal was passed on an incomplete record;
- where the previous order was the result of a misunderstanding of the nature of the complaint, or was manifestly absurd or unjust; or
- where new facts are adduced in the second complaint which could not, with reasonable diligence, have been brought on record in the previous proceedings.

***Abhijit Pawar v. Hemant Madhukar Nimbalkar*, (2017) 3 SCC 528**

The requirement of conducting an inquiry, or of directing an investigation, under Section 202 (now Section 225 of the BNSS) before issuing process is not an empty formality. No specific mode or manner of inquiry is provided in the section. In the inquiry envisaged by Section 202 the witnesses are examined, whereas under Section 200 (now Section 223 of the BNSS) the examination of the complainant alone is necessary, with the option of examining the witnesses, if any.

***Deepak Gaba v. State of Uttar Pradesh*, AIR 2023 SC 228**

It is well established that when summoning an accused residing outside the court's jurisdiction, as required by the amendment to Section 202 of the Cr.P.C. (now Section 225 of the BNSS), the Magistrate must conduct an inquiry personally, or direct an investigation by a police officer or other designated officer, to determine whether sufficient grounds exist for proceeding against the accused.

***S.R. Sukumar v. S. Sunaad Raghuram*, (2015) 9 SCC 609**

There is no enabling provision in the Code (now the BNSS) permitting the amendment of a complaint. However, where the amendment sought relates to a simple infirmity which is curable by a formal amendment, and allowing it would cause no prejudice to the other side, the court may permit the amendment notwithstanding the absence of an enabling provision.

***Chand Devi Daga v. Manju K. Humatani*, (2018) 1 SCC 71**

The legal heirs of a deceased complainant have the right to continue the proceedings after the death of the complainant in a warrant case.

***Samta Naidu v. State of M.P.*, (2020) 5 SCC 378**

An order of dismissal under Section 203 of the Cr.P.C. (now Section 226 of the BNSS) is no bar to the entertainment of a second complaint on the same facts, but it will be entertained only in exceptional circumstances, that is, where the previous order was passed on an incomplete record, or on a misunderstanding of the nature of the complaint, or was manifestly absurd, or where new facts appear which could not have been brought on record despite due diligence.

***Amrutbhai Shambhubhai Patel v. Sumanbhai Kantibhai Patel*, (2017) 4 SCC 177**

A direction for investigation under Section 202 of the Cr.P.C. (now Section 225 of the BNSS) is in the nature of an inquiry to derive satisfaction as to whether the proceedings initiated ought to be furthered or not. Such a direction is not in the nature of further investigation as contemplated by Section 173(8) (now Section 193(9) of the BNSS).

Procedure where the offence is exclusively triable by a Court of Session

***Rosy v. State of Kerala*, AIR 2000 SC 637**

Where it appears to the Magistrate that the offence complained of is triable exclusively by the Court of Session, a direction for investigation by a police officer is not permissible, and he is required to hold the inquiry himself. During that inquiry he may decide to examine the witnesses on oath. The reason is that in a private complaint required to be committed to the Court of Session for trial, it would safeguard the interest of the accused, who would not be taken by surprise at the trial, and it would reveal the version of the witnesses whose list is required to be filed by the complainant under Section 204(2) (now Section 227(2) of the BNSS) before issuance of process. The irregularity or non-compliance would not vitiate the further proceedings in all cases. A person complaining of such irregularity should raise objection at the earliest stage and should point out how prejudice is caused or is likely to be caused by not following the proviso; if he fails to raise such objection at the earliest stage, he is precluded from raising it later.

***Shiv Jatia v. Gian Chand Malick*, 2024 INSC 142**

Once the Magistrate has called for a police report under Section 202 of the Code of Criminal Procedure (now Section 225 of the BNSS), he cannot issue summons unless the report is submitted by the police.

***Mukhtar Zaidi v. State of Uttar Pradesh*, 2024 INSC 316**

The right of a complainant to file a petition under Section 200 of the Cr.P.C. (now Section 223 of the BNSS) is not taken away merely because the Magistrate concerned does not direct that the protest petition be treated as a complaint; and where summons was issued by the Magistrate by recording satisfaction based on the protest petition, he ought to have followed the procedure prescribed by Chapter XV of the Cr.P.C. (now Chapter XVI of the BNSS).

***Vishnu Kumar Tiwari v. State of Uttar Pradesh through Secretary Home, Civil Secretariat Lucknow*, 2019 Cri LJ 4000 (SC)**

If a protest petition meets the criteria of a complaint, the Magistrate has authority to treat it as such and to proceed in accordance with Section 200 (now Section 223 of the BNSS), in conjunction with Section 202 of the Code (now Section 225 of the BNSS).

COMMENCEMENT OF PROCEEDINGS BEFORE MAGISTRATE

***India Carat (P) Ltd. v. State of Karnataka*, (1989) 2 SCC 132**

At the stage of issuing process the Magistrate is mainly concerned with the allegations made in the complaint, and need only be prima facie satisfied that there are sufficient grounds for proceeding against the accused. It is not the province of the Magistrate to enter into a detailed discussion of the merits or demerits of the case.

***Sunil Bharti Mittal v. Central Bureau of Investigation*, (2015) 4 SCC 609**

The Magistrate has a broad discretion in granting or refusing process, which must be exercised judicially. An individual should not be summoned to court solely on the filing of a complaint. Where a prima facie case is established the Magistrate must issue process, and cannot decline merely on the assumption that a conviction is unlikely.

***Aniruddha Khanwalkar v. Sharmila Das*, 2024 INSC 342**

For the summoning of an accused only a prima facie case is to be made out, on the basis of the allegations in the complaint and the pre-summoning evidence led by the complainant.

Directions regarding the role of the Magistrate while summoning the accused

***Delhi Race Club (1940) Ltd. v. State of Uttar Pradesh*, AIR 2024 SC 4531**

The issuance of summons in a criminal case is a serious matter and cannot be done mechanically. The Magistrate must apply his mind to the facts alleged in the complaint, consider the evidence, and ensure that sufficient grounds exist for proceeding further. This requires a careful evaluation of whether the complaint discloses an offence and whether the accused is prima facie answerable. The vicarious liability of corporate office bearers cannot be assumed unless expressly provided for in the statute, and direct allegations against them must be demonstrated. The process of summoning may be challenged under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) if it is shown that the Magistrate failed to exercise due discretion and formed an opinion without sufficient material. The Magistrate's order must reflect a subjective satisfaction based upon proper scrutiny.

***Inox Air Products v. State of Andhra Pradesh*, 2025 INSC 128**

The summoning of an accused in a criminal case is a serious matter. The order of the Magistrate summoning the accused must reflect that he has applied his mind to the facts of the case and to the law applicable. The Magistrate is required to examine the nature of the allegations made in the complaint and the evidence, both oral and documentary, in support of them, and to consider whether that would be sufficient for proceeding against the accused. The Magistrate is not a silent spectator at the time of recording preliminary evidence before summoning the accused.

***Pramila Devi v. State of Jharkhand*, 2025 INSC 560**

A Magistrate's order taking cognizance of a police report under Section 204 of the Cr.P.C. (now Section 227 of the BNSS) cannot be faulted merely for lacking explicit reasons, provided the Magistrate records a finding of a prima facie case based on the case records, such as the case diary.

***Gurbachan Singh v. State of Punjab*, AIR 1957 SC 623**

The object of furnishing the accused with copies of the statements and documents is to put him on notice of what he has to meet at the time of inquiry or trial, and to enable him to prepare his defence.

***P. Gopalkrishnan @ Dileep v. State of Kerala*, 2019 Supreme (SC) 1306**

A Magistrate cannot withhold any document submitted by the investigating officer along with the police report, except where it is voluminous; in the case of voluminous documents the accused may be permitted to take inspection of the document concerned either personally or through his pleader in court. The furnishing of documents required under Section 207 of the Cr.P.C. (now Section 230 of the BNSS) is a facet of the right of the accused to a fair trial under Article 21 of the Constitution. The Magistrate's duty under Section 207 is in the nature of administrative work, whereby he is required to ensure full compliance with that section.

***K. Sitaram v. CFL Capital Financial Service Ltd.*, (2017) 5 SCC 725**

Unless the Magistrate is satisfied that there is sufficient ground to proceed, or sufficient material to justify the issue of process, he should not order the issue of process. The wide discretion given by the law to the Magistrate in granting or refusing process should be exercised with proper care and caution.

***State of Gujarat v. Afroz Mohammed Hasanfatta*, 2019 (2) JT 212**

In a case instituted upon a police report, it is not necessary for the Magistrate, when summoning the accused, to examine the merits and demerits of the case or whether the material collected is adequate to support a conviction. The Magistrate is not required to record reasons for summoning the accused in cases instituted on a police report.

***CBI v. Narottam Dhakad*, 2023 SCC OnLine SCC 1069**

Where a copy of the report and the documents are supplied to the accused under Section 207 or Section 208 (now Sections 230 and 231 of the BNSS), the objection that the accused does not understand the language in which the final report or the statements or documents are written must be raised at the earliest, and he may be supplied translated copies only if he is himself defending or if his counsel also is not conversant with the language of the court. The reason is that the accused must get a fair opportunity to defend himself and must know and understand the material against him in the charge-sheet. However, a charge-sheet filed within the period provided by Section 167 of the Cr.P.C. (now Section 187 of the BNSS), or by any other relevant statute, in a language other than the language of the court or a language which the accused does not understand, is not illegal, and no one can claim default bail on that ground.

***Miss 'A' v. State of Uttar Pradesh*, 2021 Cri LJ 1885 (SC)**

The accused can obtain copies of the documents specified in Sections 207 and 208 of the Code (now Sections 230 and 231 of the BNSS) only after cognizance has been taken and process has been issued. Merely filing the charge-sheet does not grant the accused the right to receive any relevant document, including a statement recorded under Section 164 of the Code (now Section 183 of the BNSS).

***Hardeep Singh v. State of Punjab*, AIR 2014 SC 1400**

At the stage of proceedings under Sections 207 to 209 of the Cr.P.C. (now Sections 230 to 232 of the BNSS), the Magistrate is expressly prohibited by Section 319 of the Code (now Section 358 of the BNSS) from evaluating the merits of the case or deciding whether any accused should be added to or removed from the trial before the Court of Session.

CHARGE

Meaning and object of charge

***Birichh Bhuian v. State of Bihar*, AIR 1963 SC 1120**

A charge may be defined as a precise formulation of the specific accusation made against a person of an offence alleged to have been committed by him.

***V.C. Shukla v. State*, AIR 1980 SC 962**

The charge serves the purpose of notice or intimation to the accused, giving him clear and unambiguous notice of the nature of the accusation, so that he has a clear idea of what he is being tried for. It is an important step in a criminal trial, and it separates the stage of inquiry from the trial.

***Willie Slaney v. State of M.P.*, AIR 1956 SC 116**

The object of the charge is to give the accused notice of the matter with which he is charged. If the necessary information is conveyed to him and no prejudice is caused by the charges, the accused cannot succeed merely by showing that the charges framed were defective.

***Sohan Lal alias Sohan Singh v. State of Punjab*, AIR 2003 SC 4466**

Section 211 of the Cr.P.C. (now Section 234 of the BNSS) mandates that the charge against the accused must be clearly stated. Further, under sub-section (4) of Section 211 (now Section 234(4) of the BNSS), the charge must specify the law and the relevant section under which the offence is alleged to have been committed.

***Soundarajan v. State*, 2023 SCC OnLine SC 424**

Trial courts ought to be very meticulous when it comes to the framing of charges. Apart from the duty of the trial court, the Public Prosecutor also has a duty to be vigilant, and if a proper charge is not framed it is his duty to apply to the court to frame an appropriate charge.

Alteration of charge

***Jaswinder Saini v. State (Govt. of NCT of Delhi)*, (2013) 7 SCC 256**

The Code gives ample power to the court to alter or amend a charge, whether to the trial court or to the appellate court.

***Mala Singh v. State of Haryana*, (2019) 5 SCC 127**

A combined reading of Sections 216, 386 and 464 of the Cr.P.C. (now Sections 239, 427 and 510 of the BNSS) shows that an alteration of charge, where no prejudice is caused to the accused or to the prosecution, is well within the powers and jurisdiction of the court, including the appellate court. It is only where an omission to frame a charge, initially or until the culmination of the proceedings or at the appellate stage, results in a failure of justice or causes prejudice, that the same may vitiate the trial in an appropriate case.

***Nallapareddy Sridhar Reddy v. State of A.P.*, (2020) 12 SCC 467**

The alteration or addition of a charge may be made if in the opinion of the court there was an omission in the framing of the charge, or if upon a prima facie examination of the material brought on record the court is led to form a presumptive opinion as to the existence of the factual ingredients constituting the offence. The test to be adopted is that the material brought on record must have a direct link or nexus with the ingredients of the alleged offence.

***Kalicharan v. State of Uttar Pradesh*, 2021 SCC OnLine (SC) 773**

Where the court of appeal is called upon to decide whether any failure of justice has been occasioned by an omission to frame a charge, or by an error in the charge, the court is duty bound to examine the entire record of the trial, including all exhibited documents, the depositions, and the statement of the accused recorded under Section 313 of the Cr.P.C. (now Section 351 of the BNSS).

***S. Nitheen v. State of Kerala*, 2024 INSC 420**

No person other than the spouse to the second marriage could have been charged with the offence punishable under Section 494 of the IPC (now Section 82(1) of the BNS) simpliciter. This is, however, a curable defect, and the charge may be altered at any stage under Section 216 of the Cr.P.C. (now Section 239 of the BNSS).

***Directorate of Revenue Intelligence v. Raj Kumar Arora*, 2025 INSC 498**

Section 216 of the Cr.P.C. (Section 239 of the BNSS) permits only the addition or alteration of charges and does not confer the power to delete charges already framed by the trial court under Section 228 of the Cr.P.C. (now Section 251 of the BNSS). Once charges are framed, the accused cannot be discharged under Section 227 or Section 216 of the Cr.P.C. (now Sections 250 or 239 of the BNSS), and the trial must proceed to either conviction or acquittal.

Joinder of charges

***State of Jharkhand v. Lalu Prasad Yadav*, (2017) 8 SCC 1**

Separate trial is the rule and joint trial the exception. A joint trial would be improper if the court allows innumerable offences spread over a long period of time and committed by a large number of persons to be tried jointly under the protective wings of an all-embracing conspiracy.

***In Re: Expeditious Trial of Cases under Section 138 of N.I. Act, 1881*, AIR 2021 SC 1957**

A single trial for more than three offences of the same nature committed within twelve months under Section 138 of the Negotiable Instruments Act, 1881, can only be permitted through an amendment. To ease the workload of the criminal courts the Supreme Court suggested incorporating a provision in the Act allowing a person to be tried in one trial for multiple offences of the same kind within a twelve-month period, despite the limitation imposed by Section 219 of the Code (now Section 242 of the BNSS).

***Shaukat Hussain Guru v. State (NCT) Delhi*, AIR 2008 SC 2419**

Section 222 of the Code (now Section 245 of the BNSS) empowers the court to convict an accused of a lesser offence even where no specific charge for that offence was framed. The court is not required to frame a separate charge before convicting the accused of a minor offence.

***Suman Sood @ Kamal Jeet Kaur v. State of Rajasthan*, (2007) 5 SCC 634**

It is well established that where an accused is charged with a more serious offence, but the evidence led by the prosecution does not support that charge, the court may still convict him of a lesser offence if the evidence justifies it.

TRIAL

Meaning and object of trial

***Harchand Singh v. State of Haryana*, (1974) SCR (1) 583**

A trial may be defined as a proceeding to determine the guilt or innocence of the accused. A trial always ends either in acquittal or in conviction, and its purpose is to find out whether the accused is guilty or not.

***Suresh Chandra Jana v. State of W.B.*, (2017) 16 SCC 466**

The basic requirement that a trial must be fair is crucial for any civilised criminal justice system. It is essential in a society which recognises human rights and is based on values such as freedom, the rule of law, democracy and openness. The whole purpose of a trial is to convict the guilty and to protect the innocent.

***Ankush Maruti Shinde v. State of Maharashtra*, (2019) 15 SCC 470**

A fair trial includes a fair investigation as envisaged by Articles 20 and 21. The role of the police is to be a protector of life, liberty and property, and the aim of investigation is ultimately to search for the truth and to bring the offender to book.

***Ghulam Hassan Beigh v. Mohammad Maqbool Magrey*, AIR 2022 SC 5454**

Section 226 of the Cr.P.C. (now Section 249 of the BNSS) has over a period of time gone into oblivion. The understanding behind that provision is that before the court proceeds to frame the charge against the accused, the Public Prosecutor owes a duty to give a fair idea to the court as regards the case of the prosecution.

***Sarla Gupta v. Directorate of Enforcement*, 2025 INSC 645**

The right to a fair trial under Article 21 includes the accused's right to defend, which encompasses leading defence evidence, producing documents, examining witnesses, and recalling prosecution witnesses for cross-examination under Section 311 of the Cr.P.C. (now Section 348 of the BNSS) on the basis of the documents produced.

***Dinubhai Boghabhai Solanki v. State of Gujarat*, 2018 Cri LJ 907 (SC)**

The primary object of a criminal trial is to prevent injustice to any citizen by balancing the rights of both the accused and the victim. That balance is maintained through a fair trial, which is achievable only when witnesses give truthful testimony, for they serve as the eyes and ears of the court.

Framing of charge and discharge

***Union of India v. Prafulla Kumar*, 1979 CrLJ 154 (SC)**

While considering the question of framing charges under Section 227 (now Section 250 of the BNSS) the court has power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out.

***State of Gujarat v. Dilipsingh Kishorsinh Rao*, 2023 INSC 894**

The defence of the accused is not to be looked into at the stage when he seeks to be discharged. The expression the record of the case used in Section 227 of the Cr.P.C. (now Section 250 of the BNSS) is to be understood as the documents and articles, if any, produced by the prosecution. The Code gives no right to the accused to produce any document at the stage of framing of the charge, and the submission of the accused is to be confined to the material produced by the investigating agency.

***Krishna Lal Chawla v. State of U.P.*, (2021) 5 SCC 435**

Trial courts have power not merely to decide upon the acquittal or conviction of the accused after the trial, but also the duty to nip frivolous litigation in the bud, even before it reaches the stage of trial, by discharging the accused in fit cases.

***State of Rajasthan v. Ashok Kumar Kashyap*, (2021) 11 SCC 191**

At the stage of Section 227 of the Cr.P.C. (now Section 250 of the BNSS) the judge is required merely to sift the evidence to find out whether or not there are sufficient grounds for proceeding against the accused. Sufficiency of ground takes within its fold the nature of the evidence recorded by the police, or the documents produced before the court, which ex facie disclose suspicious circumstances against the accused so as to frame a charge against him. If the judge comes to the conclusion that there are sufficient grounds to proceed, he will frame the charge under Section 228 of the Code (now Section 251 of the BNSS); otherwise he will discharge the accused.

***Rukmini Narvekar v. Vijaya Satardekar*, AIR 2009 SC 1013**

There is no scope for the accused to produce any evidence in support of the submissions made on his behalf at the stage of framing of charge, and only such material as is indicated in Section 227 of the Cr.P.C. (now Section 250 of the BNSS) can be taken into consideration by the Magistrate at that stage.

***Hazrat Deen v. State of Uttar Pradesh*, 2022 SCC OnLine (SC) 1781**

Discrepancies between the FIR and any subsequent statement made under Section 164 of the Cr.P.C. (now Section 183 of the BNSS) may furnish a defence, but cannot be a ground for discharge without a trial.

***Md. Ghouseuddin v. Syed Riazul Hussain*, [SC-2021], Cr. Appeal No. 585/21**

The right to summon a document has to be exercised when the trial is in progress and not after the trial is completed. The efficacy of the trial cannot be whittled down by a belated application to summon documents.

***M.E. Shivalingamurthy v. C.B.I.*, (2020) 2 SCC 768**

While deciding a discharge application, only the material brought on record by the prosecution has to be considered. The accused is entitled to discharge where the evidence which the prosecution proposes to adduce to prove his guilt, even if fully accepted, cannot show that he has committed the offence. The court must, without making a roving inquiry into the pros and cons, consider the broad probabilities and the total effect of the material before it.

***Vinubhai Haribhai Malviya v. State of Gujarat*, (2019) 17 SCC 1**

The trial commences when charges are framed, and not when cognizance is taken.

***State v. Eluri Srinivasa Chakravarthi*, 2025 INSC 758**

The court must evaluate a discharge plea under Section 239 of the Cr.P.C. (now Section 262 of the BNSS) solely on the prosecution's charge-sheet and documents, without considering defence material or conducting a premature assessment on the merits.

***Nitya Dharmanand v. Gopal Sheelum Reddy*, (2018) 2 SCC 93**

At the stage of framing of charge the accused cannot ordinarily invoke Section 91 of the Code (now Section 94 of the BNSS). The court is, however, not debarred from exercising the power under Section 91 in the interest of justice, where it is satisfied that material available with the investigator but not made part of the charge-sheet has a crucial bearing on the issue of framing of charge. Thus the court has ordinarily to proceed on the basis of the material produced with the charge-sheet, but where it is satisfied that the investigator has withheld certain documents important from the point of view of ensuring justice, the court is not debarred from summoning them.

Hearing on the question of sentence

***Dattatraya v. State of Maharashtra*, (2020) 14 SCC 290**

Where the court intends to inflict the death sentence, such a suggestion should be made to the accused at the stage of Section 235(2) (now Section 258 of the BNSS), so as to enable him to make an effective representation against the death sentence by placing mitigating circumstances before the court.

***Manoj Suryavanshi v. State of Chhattisgarh*, (2020) 4 SCC 451**

Hearing the accused on the same day on which the conviction is recorded would not vitiate the award of a death sentence if otherwise sufficient opportunity has been given to him to put forward his case on the question of sentence.

***B.A. Umesh v. High Court of Karnataka*, (2017) 4 SCC 124**

The convict has a right to be heard on the question of sentence, but there is no mandate to fix a separate date for the hearing on sentence. It depends upon the facts and circumstances of the case whether a separate date is required.

***Shatrughan Baban Meshram v. State of Maharashtra*, (2021) 1 SCC 596**

It cannot be laid down that the failure of the convicting court to hear the accused on the question of sentence must necessarily entail a remand to that court to afford him an opportunity of being heard. If for some reason the court omits to hear the accused on the question of sentence and he makes a grievance of it in the higher court, it would be open to that court to remedy the breach by giving him a hearing on the question of sentence.

***Bhagwani v. State of Madhya Pradesh*, AIR 2022 SC 527**

Where the order of conviction and the sentence are passed on the same day, the object and purpose of Section 235(2) of the Cr.P.C. (now Section 258 of the BNSS) is that the accused must be given an opportunity to make a representation against the sentence to be imposed on him. A bifurcated hearing for convicting and for sentencing is necessary to provide an effective opportunity to the accused, and adequate opportunity to produce relevant material on the question of the death sentence shall be provided to the accused by the trial court.

***Ranjit Sarkar v. Ravi Ganesh Bhardwaj*, 2025 INSC 415**

The non-appearance of a complainant will not always result in the acquittal of the accused. Acquittal is warranted only where the complainant is absent on the date set for the appearance of the accused. If the date was set for a purpose other than the appearance of the accused, the absence of the complainant on such a date will not warrant acquittal.

***Shahid Balwa v. Union of India*, AIR 2013 SC (Supp) 821**

When a superior court, in the exercise of its appellate or constitutional authority, directs that a trial be conducted on a day-to-day basis or completed within a specified timeframe, it is not interfering with the trial proceedings but rather ensuring a speedy trial, which is an essential aspect of Article 21 of the Constitution of India.

***Hukam Singh v. State of Rajasthan*, 2000 AIR SCW 4416**

If the Public Prosecutor has reliable information that certain witnesses cited by the investigating agency would not support the prosecution version, he is free to state that fact in court and to skip examining that witness as a prosecution witness. It is open to the defence to cite him and examine him as a defence witness.

***Gargi v. State of Haryana*, (2019) 9 SCC 738**

Merely because a co-accused has been acquitted, another accused in a criminal case may not be acquitted if cogent evidence is available against him.

***Sunder Lal v. State of Uttar Pradesh*, SLP (Crl) No. 10756/2023, 2 February 2024**

A witness who has been shown in the prosecution list but not examined on behalf of the prosecution may be permitted to be examined as a defence witness.

EVIDENCE IN INQUIRIES AND TRIALS

***Naim Ahamed v. State (NCT of Delhi)*, 2023 SCC OnLine SC 89**

All courts, while recording the evidence of witnesses, shall duly comply with Section 277 of the Cr.P.C. (now Section 312 of the BNSS). The evidence of the witness has to be recorded in the language of the court, or in the language of the witness as may be practicable, and then translated into the language of the court to form part of the record. Recording the evidence of the witness in translated form in English only, though the witness gives evidence in the language of the court or in his or her own vernacular, is not permissible. The text and tenor of the evidence and the demeanour of a witness can be appreciated in the best manner only when the evidence is recorded in the language of the witness. Even otherwise, where a question arises as to what exactly the witness stated in his or her evidence, it is the original deposition which has to be taken into account and not the translated memorandum in English prepared by the presiding judge.

***Shyam Narayan Ram v. State of U.P.*, 2024 INSC 800**

Once documents are admitted under Section 294 of the Cr.P.C. (now Section 330 of the BNSS), further formal proof is unnecessary unless the court requires it, thereby preventing unnecessary delays under the guise of fair trial violations. Documents whose genuineness is admitted by the defence may be read as substantive evidence without formal proof.

***Sukhpal Singh v. NCT of Delhi*, 2024 INSC 385**

Statements of prosecution witnesses recorded in the absence of the accused under Section 299 of the Cr.P.C. (now Section 335 of the BNSS) may be treated as substantive evidence where the witness cannot be located and brought to testify in court during the trial after the accused has been arrested.

GENERAL PROVISIONS AS TO INQUIRIES AND TRIALS

Double jeopardy

***Pritam Singh v. State of Punjab*, AIR 1956 SC 415**

The provisions of Section 300 (now Section 337 of the BNSS) are also based on the principle of res judicata, or issue estoppel. It means that a verdict of acquittal given by a competent court will be binding on the parties in all subsequent proceedings.

***State of Jharkhand v. Lalu Prasad Yadav*, (2017) 8 SCC 1**

Article 20(2) of the Constitution stipulates that no person shall be prosecuted and punished for the same offence more than once; this is the doctrine of double jeopardy. The object of the Article is to avoid the harassment that may be caused by successive criminal proceedings where a person has committed only one crime. It rests on the maxim nemo debet bis vexari, that no person shall be put twice in peril for the same offence. There are two aspects of the doctrine, autrefois convict and autrefois acquit: autrefois convict means that the person has been previously convicted in respect of the same offence, and autrefois acquit that he has been previously acquitted in respect of the same offence.

Appearance by public prosecutors and permission to conduct prosecution

***Rekha Murarka v. State of West Bengal*, AIR 2020 SC 100**

If certain aspects are left unaddressed by the Public Prosecutor during the examination of witnesses, private counsel may raise them only through the Public Prosecutor. Private counsel representing the victim is not allowed to cross-examine witnesses directly after the Public Prosecutor. The role of the victim's counsel should not extend to making oral arguments and examining witnesses; it is intended to be only secondary qua the Public Prosecutor. The word assist in the proviso to Section 24(8) (now the proviso to Section 18(8) of the BNSS) assigns only a supportive role to the victim's counsel, which is also in consonance with the mandate of Section 301(2) (now Section 338(2) of the BNSS).

***Dhariwal Industries Ltd. v. Kishore Wadhwani*, 2016 Cri LJ 5078 (SC)**

In a Court of Session the informant or private party has a limited role during the prosecution of a case, and his counsel must act under the directions of the Public Prosecutor. Under Section 302 of the Cr.P.C. (now Section 339 of the BNSS), however, the Magistrate has authority to permit the complainant to conduct the prosecution independently.

***Amir Hamza Shaikh v. State of Maharashtra*, AIR 2019 SC 3721**

While the Magistrate is not obliged to grant permission solely upon request, the victim has the right to assist the court during a trial before the Magistrate. The Magistrate may assess whether the victim is capable of aiding the court and whether the complexity of the trial is manageable by the victim; if satisfied, he has jurisdiction to permit the victim to take over the conduct of the pending case.

***Chand Devi Daga v. Manju K. Humatani*, (2018) 1 SCC 71**

In a criminal complaint relating to a warrant case, upon the death of the complainant during the proceedings the legal heirs of the deceased complainant may continue the prosecution after taking permission under Section 302 of the Cr.P.C. (now Section 339 of the BNSS).

Legal aid

***Khatri (2) v. State of Bihar*, (1981) 1 SCC 627**

The constitutional obligation to provide free legal aid arises not only when the trial commences, but when the accused is for the first time produced before a Magistrate, and also when he is remanded from time to time.

***Suk Das v. Union Territory of Arunachal Pradesh*, AIR 1986 SC 911**

A conviction ordered in a trial in which the accused was not provided legal aid has to be set aside as being in violation of Article 21.

***Mohd. Azmal Amir Kasab v. State of Maharashtra*, (2012) 9 SCC 1**

It is the duty of the Magistrate and of the courts to inform an indigent accused of his right to free legal aid.

***Mohd. Hussain alias Julfikar Ali v. State (Govt. of NCT), Delhi*, AIR 2012 SC 750**

Where an accused is too impoverished to afford legal representation and is made to undergo trial without legal aid, the trial cannot be considered fair, just or reasonable. Without a lawyer the accused risks conviction through a lack of knowledge of how to prove his innocence. A trial conducted without providing legal assistance cannot be deemed fair, and any conviction or sentence imposed in such circumstances is liable to be set aside.

Tender of pardon

***State through CBI, Chennai v. V. Arul Kumar*, 2016 Cri LJ 3127 (SC)**

Even where an offence is triable by a Sessions Judge, the Magistrate has the requisite power to take cognizance and grant a tender of pardon, and thereafter to commit the case to the Special Judge for trial.

***Santosh Kumar Satishbhushan Bariyar v. State of Maharashtra*, 2010 AIR SCW 1130**

If it were held that in each and every case pardon can be granted only at the initial stage, the power conferred upon the Sessions Judge by Section 307 of the Code (now Section 344 of the BNSS) would for all intents and purposes become otiose.

***Chhanni v. State of U.P.*, 2006 CrLJ 4068 (SC)**

Wherever the Probation of Offenders Act, 1958 is in force, Sections 360 and 361 of the Cr.P.C. (now Sections 401 and 402 of the BNSS) are not applicable in those areas.

***Lakhanlal v. State of M.P.*, (2021) 6 SCC 100**

The object of Section 360 (now Section 401 of the BNSS) is to prevent young persons from being committed to jail, who have committed the offence for the first time through ignorance or inadvertence or the bad influence of others.

Section 348

***V.N. Patil v. K. Niranjan Kumar*, AIR 2021 SC 1276**

The purpose of Section 311 of the Cr.P.C. (now Section 348 of the BNSS) is to prevent any failure of justice due to an oversight by either party in presenting crucial evidence, or due to ambiguities in witness testimony. The discretionary power granted by this provision must, however, be exercised prudently, for the broader the power the greater the need for caution in its judicial application.

***Mohanlal Shamji Soni v. Union of India*, AIR 1991 SC 1346**

The power of the court to recall any witness or witnesses already examined, or to summon any witness, may be invoked even after the evidence on both sides is closed, so long as the court retains seisin of the criminal proceedings.

***Ratanlal v. Prahlad Jat*, (2017) 9 SCC 340**

Section 311 (now Section 348 of the BNSS) has been enacted to enable the court to find out the truth and render a just decision. Under this provision the court may, at any stage of an inquiry, trial or other proceeding, summon any person as a witness, examine any person in attendance though not summoned as a witness, or recall and re-examine any person already examined. The object is to do justice from the point of view of the accused, the prosecution and society alike. The power has to be exercised only for strong and cogent reasons.

***Swapan Kumar Chatterjee v. CBI*, (2019) 14 SCC 328**

The filing of successive applications for the recall of a witness under Section 311 of the Code of Criminal Procedure (now Section 348 of the BNSS) should not be encouraged.

***Saud Faisal v. State of Uttar Pradesh*, Special Leave to Appeal (Crl.) No. 5647 of 2022, 21 June 2022**

Merely because a different statement was given by the same prosecution witness in another case relating to the same incident, that would not itself be a reason for recalling the witness under Section 311 of the Cr.P.C. (now Section 348 of the BNSS).

***Varsha Garg v. State of Madhya Pradesh*, AIR 2022 SC 3707**

The court is vested with a broad and wholesome power under Section 311 of the Cr.P.C. (now Section 348 of the BNSS) to summon and examine, or to recall and re-examine, any material witness at any stage, and the closing of the prosecution evidence is not an absolute bar. The broad powers under Section 311 are to be governed by the requirement of justice, and the power must be exercised wherever the court finds that any evidence is essential for the just decision of the case.

***Munilakshmi v. Narendra Babu*, 2023 INSC 943**

The power to recall witnesses under Section 311 of the Cr.P.C. (now Section 348 of the BNSS) ought to be exercised sparingly, and mere hostility on the part of a witness would not per se be a sufficient ground to infer misuse of the concession of bail.

***State of Rajasthan v. Asharam @ Ashumal*, 2023 SCC OnLine SC 423**

The discretion under Section 391 of the Cr.P.C. (now Section 432 of the BNSS) should be read as somewhat more restricted than that under Section 311 (now Section 348 of the BNSS), since the appellate court is dealing with an appeal after the trial court has reached a conclusion as to the guilt or otherwise of the person prosecuted. The appellate court may examine the evidence in depth and in detail, yet it does not possess all the powers of the trial court, as it deals with cases in which the decision has already been pronounced.

Principles governing an application under Section 348 of the BNSS

Sovaran Singh Prajapati v. State of Uttar Pradesh, 2025 INSC 225

The principles governing the application of Section 311 of the Cr.P.C. (now Section 348 of the BNSS) are:

- The section is divided into two parts, the first being directory with the use of the word may and the latter mandatory with the use of the word shall.
- The power of the court is couched in the widest terms possible, with no express limitation upon it.
- The exercise of such power is not only the prerogative but also the duty of the court, in connection with a witness who may be considered absolutely necessary in the interest of justice.
- The power is to be used for the benefit both of the prosecution and of the defence. To summon a witness because it serves the case of one of the parties and not the other would be improper.
- The power may be exercised at any stage of the proceedings, that is to say in an enquiry, a trial or any other proceeding.
- The power is to be exercised judiciously, since the wider the power the greater the requirement of the application of a judicial mind.
- If a witness so called under this power gives evidence against the complainant, the latter should be given an opportunity to cross-examine. That right arises not under Section 311 of the Cr.P.C. (now Section 348 of the BNSS) but under the Evidence Act, 1872 (now the BSA).
- A witness cannot be recalled by the use of this power simply to fill up a lacuna in the case of the prosecution.

Section 348

K.P. Tamilmaran v. State, 2025 INSC 576

Under Section 311 of the Cr.P.C. (now Section 348 of the BNSS) courts may permit the examination of an additional witness as a prosecution witness where such a person ought to have been included but was omitted through oversight or for other reasons. The wide discretionary powers under Section 311, exercisable suo motu or on the application of either party, are complementary to Section 165 of the Evidence Act (now Section 168 of the BSA), enabling courts to summon material witnesses or to question persons present at any stage of a trial, even after the evidence is closed, so as to ensure that the best evidence is available for a just decision. A court witness, summoned under Section 311 of the Cr.P.C. and Section 165 of the Evidence Act (now Section 348 of the BNSS and Section 168 of the BSA), cannot be cross-examined by the prosecution using prior statements made to the police under Section 161 of the Cr.P.C. (now Section 180 of the BNSS). The court itself, however, may under Section 165 of the Evidence Act question a court witness so as to contradict prior police statements, that provision not being limited by Section 162 of the Cr.P.C. (now Section 181 of the BNSS). The Court distinguished between additional witnesses and court witnesses, noting that the former admits of broader cross-examination while the latter is restricted to questions posed through the court.

Gaurav Maini v. State of Haryana, AIR 2024 SC 3601

A conjoint reading of Section 311 of the Cr.P.C. (now Section 348 of the BNSS) and Section 165 of the Evidence Act (now Section 168 of the BSA) makes it clear that the trial court is under an obligation not to act as a mere spectator and should participate proactively in the trial proceedings, so as to ensure that neither is any extraneous material permitted to be brought on record nor is any relevant fact left out. It is the duty of the trial court to ensure that all evidence essential for the just decision of the case is brought on record, irrespective of the fact that the party concerned omits to do so.

Section 351

Chetan v. State of Karnataka, 2025 INSC 793

The examination of an accused under Section 313 of the Cr.P.C. (now Section 351 of the BNSS) is an important component of the judicial scrutiny of the evidence sought to be relied upon by the prosecution. At the time of indictment and the framing of charges, the untested evidence marshalled by the investigating authority during the investigation is laid bare before the accused, who thus has an idea of the nature of the evidence and the case being built against him. This enables him to prepare and strategise his defence. He will have every opportunity to discredit any prosecution witness or to question any evidence through the tool of cross-examination, and will thereafter have the opportunity to lead his defence evidence, if any. It is in this context that the answers given by an accused assume great significance in the court's assessment of the evidence.

Edmund S. Lyngdoh v. State of Meghalaya, (2016) 15 SCC 572

A conviction cannot be sustained merely on the basis of statements under Section 313 (now Section 351 of the BNSS). Such statements are only the version of the accused stating the incriminating circumstances against him, and must not be considered in isolation but in conjunction with the other prosecution evidence.

Basavarai Pillai v. State of Karnataka, (2000) 8 SCC 740

The term personally used in Section 313 (now Section 351 of the BNSS), if given a strict and restrictive interpretation, would mean that the accused had to be physically present in court. This has to be considered in the light of changes in the technology of communication and transmission, and accordingly it was held that it is not necessary in all cases for the accused to answer by remaining present in court.

Principles regarding Section 351 of the BNSS

Sovaran Singh Prajapati v. State of Uttar Pradesh, 2025 INSC 225

The principles regarding Section 351 of the BNSS are:

- It is the duty of the trial court to put each material circumstance appearing in the evidence against the accused specifically, distinctively and separately. A material circumstance means the circumstance or the material on the basis of which the prosecution is seeking his conviction.
- The object of the examination of the accused under Section 313 (now Section 351 of the BNSS) is to enable the accused to explain any circumstance appearing against him in the evidence.
- The court must ordinarily eschew material circumstances not put to the accused from consideration while dealing with the case of that particular accused.
- The failure to put material circumstances to the accused amounts to a serious irregularity, and will vitiate the trial if it is shown to have prejudiced the accused.
- If an irregularity in putting the material circumstance to the accused does not result in a failure of justice, it becomes a curable defect; but in deciding whether the defect can be cured, one of the considerations will be the passage of time from the date of the incident.
- Where such an irregularity is curable, even the appellate court may question the accused on the material circumstance which was not put to him.
- In a given case the matter may be remanded to the trial court from the stage of recording the supplementary statement of the accused concerned under Section 313 of the Cr.P.C. (now Section 351 of the BNSS).
- In deciding whether prejudice has been caused to the accused by the omission, the delay in raising the contention is only one of several factors to be considered.

Section 351

***Subed Ali v. State of Assam*, (2020) 10 SCC 517**

Circumstances not put to an accused under Section 313 of the Cr.P.C. (now Section 351 of the BNSS) cannot be used against him and must be excluded from consideration.

***Shivaji Chintappa Patil v. State of Maharashtra*, (2021) 5 SCC 626**

A false explanation, or the absence of explanation, by the accused to the questions posed by the court under Section 313 of the Code of Criminal Procedure (now Section 351 of the BNSS) cannot be used as a link to complete the chain. It can be used only as an additional circumstance, where the prosecution has proved a chain of circumstances leading to no other conclusion than the guilt of the accused.

***Satbir Singh v. State of Haryana*, (2021) 6 SCC 1**

The examination of the accused under Section 313 of the Cr.P.C. (now Section 351 of the BNSS) cannot be treated as a mere procedural formality, since it is based on the fundamental principle of fairness. It incorporates the valuable principle of natural justice, audi alteram partem, and therefore imposes an obligation on the court to question the accused fairly, with care and caution.

***Sumeti Vij v. Paramount Tech Fab Industries*, AIR 2021 SC 1281**

A statement of the accused recorded under Section 313 of the Code of Criminal Procedure (now Section 351 of the BNSS) is not substantive evidence of defence to rebut the presumption under Section 139 of the Negotiable Instruments Act that the cheques were issued for consideration.

***Pramila v. State of Uttar Pradesh*, 2021 SCC OnLine (SC) 978**

The burden of proof on an accused in support of the defence taken under Section 313 of the Code of Criminal Procedure (now Section 351 of the BNSS) is not beyond all reasonable doubt, as it lies on the prosecution to prove the charge. The accused has merely to create a doubt, and it is then for the prosecution to establish beyond reasonable doubt that no benefit can flow from it to the accused.

***Kalicharan v. State of Uttar Pradesh*, 2021 SCC OnLine (SC) 773**

Questioning an accused under Section 313 of the Cr.P.C. (now Section 351 of the BNSS) is not an empty formality. The requirement of the section is that the circumstances appearing in the evidence against the accused must be explained to him so that he may offer an explanation. After being questioned under Section 313 the accused is entitled to take a call on the question of examining defence witnesses and leading other evidence.

***Mohd Firoz v. State of Madhya Pradesh*, (2022) 7 SCC 443**

No conviction can be based on the statement of the accused recorded under Section 313 of the Cr.P.C. (now Section 351 of the BNSS), and the prosecution must prove the guilt of the accused by leading independent and cogent evidence. Where the accused makes both inculpatory and exculpatory statements, the inculpatory part may be taken in aid to lend credence to the case of the prosecution.

***Jai Prakash Tiwari v. State of Madhya Pradesh*, AIR 2022 SC 3601**

The purpose of Section 313 of the Cr.P.C. (now Section 351 of the BNSS) is to afford the accused a reasonable opportunity to explain the adverse circumstances which have emerged against him in the course of the trial. A reasonable opportunity entails putting all the adverse evidence in the form of questions, so as to give the accused an opportunity to articulate his defence and give his explanation. If all the circumstances are bundled together and a single opportunity is given to the accused to explain himself, he may not be able to put forth a rational and intelligible explanation.

***Indrakunwar v. State of Chhattisgarh*, 2023 INSC 934**

No negative inference can be drawn in respect of a question or an incriminating circumstance which was not put to the accused while making a statement under Section 313 of the Cr.P.C. (now Section 351 of the BNSS).

***Premchand v. State of Maharashtra*, (2023) 5 SCC 522**

It is optional for the accused to explain the circumstances put to him under Section 313 of the Cr.P.C. (now Section 351 of the BNSS), but the safeguard it provides and the valuable right it envisions, if availed of or exercised, could prove decisive and have an effect on the final outcome, which would in effect promote the utility of the exercise rather than its futility. Once a written statement is filed by the accused under Section 313(5) of the Cr.P.C. (now Section 351 of the BNSS) and the court marks it as an exhibit, such statement must be treated as part of the accused's statement under sub-section (1) read with sub-section (4). In view of the latter sub-section, the written statement has to be considered in the light of the evidence led by the prosecution, so as to appreciate the truthfulness or otherwise of the case, and the contents of such statement weighed with the probabilities of the case either in favour of the accused or against him.

***Raj Kumar @ Suman v. State (NCT of Delhi)*, 2023 SCC OnLine SC 609**

When the trial judge prepares the questions to be put to the accused under Section 313 of the Cr.P.C. (now Section 351 of the BNSS), he may, before putting them to the accused, provide copies of those questions to the learned Public Prosecutor and to the learned defence counsel and seek their assistance in ensuring that every relevant material circumstance appearing against the accused is put to him. Where the judge seeks the assistance of the prosecutor and the defence lawyer, the lawyers must act as officers of the court and not as mouthpieces of their respective clients. While recording the statement under Section 313 in cases involving a large number of prosecution witnesses, judicial officers will be well advised to take the benefit of Section 313(5) of the Cr.P.C. (now Section 351 of the BNSS), which will ensure that the chances of committing errors and omissions are minimised.

***Sunil v. State of NCT of Delhi*, Criminal Appeal No. 688 of 2011, 21 September 2023**

To enable an accused to explain the circumstances appearing in the evidence against him, all the incriminating circumstances appearing against him in the evidence must be put to him. But where there has been a failure to put those circumstances to the accused, that would not ipso facto vitiate the trial unless it is shown that the non-compliance has prejudiced him. Where there is delay in raising the plea, or the plea is raised for the first time in the Supreme Court, it may be assumed that no prejudice had been felt by the accused.

Section 358

Hardeep Singh v. State of Punjab, (2014) 3 SCC 92

The Supreme Court laid down the following guidelines with respect to Section 319 (now Section 358 of the BNSS):

- The word evidence has to be broadly understood and must not be restricted to the evidence brought during the trial. Material coming before the court in the course of inquiries may be used for corroboration of the evidence recorded in court after the trial commences, for the exercise of the power under Section 319 (now Section 358 of the BNSS).
- The evidence need not be tested by cross-examination; the power may be exercised even on the basis of the examination-in-chief.
- The degree of satisfaction required for summoning a person under Section 319 (now Section 358 of the BNSS) is the same as that for framing a charge.
- A person not named in the FIR, or a person named in the FIR but not charge-sheeted, or a person who has been discharged, may be summoned under Section 319 (now Section 358 of the BNSS).

Sagar v. State of U.P., Criminal Appeal No. 397 of 2022, 10 March 2022

Referring to Hardeep Singh v. State of Punjab, (2014) 3 SCC 92, the Court observed that the Constitution Bench has given a caution that the power under Section 319 of the Code of Criminal Procedure (now Section 358 of the BNSS) is a discretionary and extraordinary power which should be exercised sparingly, and only in those cases where the circumstances of the case so warrant. The crucial test to be applied is one which is more than a prima facie case as exercised at the time of framing of charge, but short of satisfaction to an extent that the evidence, if it goes unrebutted, would lead to conviction.

Rajesh v. State of Haryana, (2019) 6 SCC 368

A trial court may summon under Section 319 (now Section 358 of the BNSS) persons named in the FIR but not charge-sheeted, even where the stage of giving an opportunity to the complainant to file a protest petition is over.

Sartaj Singh v. State of Haryana, (2021) 5 SCC 337

An accused may be summoned under Section 319 of the Code of Criminal Procedure (now Section 358 of the BNSS) on the basis even of the examination-in-chief of a witness, and the court need not wait until his cross-examination. If on the basis of the examination-in-chief the court is satisfied that there is a prima facie case against the proposed accused, it may in exercise of its powers under Section 319 array such a person as an accused and summon him to face the trial.

Ramesh Chandra Srivastava v. State of U.P., AIR 2021 SC 5107

The power under Section 319 of the Code of Criminal Procedure (now Section 358 of the BNSS) should be exercised only where strong and cogent evidence appears against a person from the evidence. The power cannot be exercised in a casual and cavalier manner, and the test to be applied is one which is more than the prima facie case applied at the time of framing of charge.

S. Mohammad Ispahani v. Yogendra Chandak, (2017) 16 SCC 226

Section 319 (now Section 358 of the BNSS) is meant to rope in those persons who were not implicated when the charge-sheet was filed, but against whom, during the trial, the court finds that sufficient evidence has come on record to summon them and face the trial. The power under Section 319 is discretionary and extraordinary, and has to be used sparingly.

***Saeeda Khatoon Arshi v. State of U.P.*, (2020) 2 SCC 323**

The fact that a protest petition was not filed when the report under Section 173(2) (now Section 193(3) of the BNSS) was submitted does not prohibit the court from summoning the accused under Section 319 of the Cr.P.C. (now Section 358 of the BNSS) on the basis of the evidence which emerges at the trial.

Guidelines for exercising powers under Section 358

***Sukhpal Singh Khaira v. State of Punjab*, (2022) 16 SCC 507**

The power under Section 319 of the Cr.P.C. (now Section 358 of the BNSS) is to be invoked and exercised before the pronouncement of the order of sentence where there is a judgment of conviction of the accused; in the case of acquittal, the power should be exercised before the order of acquittal is pronounced. The trial court has power to summon an additional accused when the trial proceeds in respect of the absconding accused after securing his presence, subject to the evidence recorded in the split up (bifurcated) trial pointing to the involvement of the accused sought to be summoned. But the evidence recorded in the main concluded trial cannot be the basis of the summoning order if such power has not been exercised in the main trial till its conclusion. The Court laid down the following guidelines which the competent court must follow while exercising power under Section 319:

- If the competent court finds evidence, or if an application under Section 319 is filed, regarding the involvement of any other person in committing the offence based on evidence recorded at any stage in the trial before the passing of the order on acquittal or sentence, it shall pause the trial at that stage.
- The court shall thereupon first decide the need or otherwise to summon the additional accused and pass orders thereon.
- If the decision of the court is to exercise the power under Section 319 and summon the accused, such summoning order shall be passed before proceeding further with the trial in the main case.
- If the summoning order of the additional accused is passed, then depending on the stage at which it is passed, the court shall also apply its mind to the fact as to whether such summoned accused is to be tried along with the other accused or separately.
- If the decision is for a joint trial, the fresh trial shall be commenced only after securing the presence of the summoned accused.
- If the decision is that the summoned accused can be tried separately, on such order being made there will be no impediment for the court to continue and conclude the trial against the accused who were being proceeded with.
- If the proceeding paused as above is in a case where the accused who were tried are to be acquitted, and the decision is that the summoned accused can be tried afresh separately, there will be no impediment to pass the judgment of acquittal in the main case.
- If the power is not invoked or exercised in the main trial, the power under Section 319 can be invoked or exercised only if there is evidence to that effect pointing to the involvement of the additional accused to be summoned in the split up (bifurcated) trial.
- If, after arguments are heard and the case is reserved for judgment, the occasion arises for the court to invoke and exercise the power under Section 319, the appropriate course is to set it down for re-hearing.
- On setting it down for re-hearing, the above laid down procedure to decide about summoning, holding of joint trial or otherwise shall be decided and proceeded with accordingly.
- Even in such a case, at that stage, if the decision is to summon an additional accused and hold a joint trial, the trial shall be conducted afresh and de novo proceedings be held.
- If in that circumstance the decision is to hold a separate trial in the case of the summoned accused as indicated earlier, the main case may be decided by pronouncing the conviction and sentence and then proceed afresh against the summoned accused; and in the case of acquittal, the order shall be passed to that effect in the main case and then proceed afresh against the summoned accused.

Section 358

***Yashodhan Singh v. State of U.P.*, (2023) 9 SCC 108**

The contention that a summoned person must be given an opportunity of being heard before being added as an accused to face the trial is clearly not contemplated under Section 319 of the Cr.P.C. (now Section 358 of the BNSS). The principle of hearing a person who is summoned cannot be read into Section 319. The lateral entry of a person summoned in exercise of the power under Section 319 is only to face the trial along with the other accused.

COMPOUNDING OF OFFENCES

***Prakash Gupta v. Securities and Exchange Board of India*, (2021) 10 SCC 731**

The power of compounding must be expressly conferred by the statute which creates the offence. In respect of offences lying outside the Indian Penal Code (now the BNS), compounding may be permitted only if the statute creating the offence contains an express provision for compounding before such an offence can be made compoundable. This is because Section 320 of the Cr.P.C. (now Section 359 of the BNSS) provides for the compounding of offences only under the IPC (now the BNS).

***Pravat Chandra Mohanty v. State of Odisha*, (2021) 3 SCC 529**

The grant of leave as contemplated by Section 320(5) of the Cr.P.C. (now Section 359 of the BNSS) is neither automatic nor is it to be mechanical on receipt of a request by the appellant which may be agreed to by the victim. The statutory requirement makes it the clear duty of the court to look into the nature of the offence and the evidence, and to satisfy itself whether permission should or should not be granted.

***Bhagyan Das v. State of Uttarakhand*, (2019) 4 SCC 354**

A court has discretion to reject a plea to compound an offence having a social impact, even where the offence is compoundable under Section 320 of the Code of Criminal Procedure (now Section 359 of the BNSS).

WITHDRAWAL FROM PROSECUTION

***Sheodhan Paswan v. State of Bihar*, (1987) 1 SCC 288**

Where an application under Section 321 (now Section 360 of the BNSS) is made, it is not necessary for the court to assess the evidence to discover whether the case would end in conviction or acquittal. The court has to see whether the application is made in good faith, in the interest of public policy and justice, and not to thwart or stifle the process of law.

Guidelines for withdrawal of prosecution

***State of Kerala v. K. Ajith*, (2021) 9 SCC 175**

While deciding a plea to withdraw a prosecution, the court must be satisfied that the grant of consent subserves the administration of justice, and that the permission has not been sought with an ulterior purpose. The court may also scrutinise the nature and gravity of the offence and its impact upon public life, especially where matters involving public funds and the discharge of a public trust are implicated. The following principles were formulated:

- Section 321 (now Section 360 of the BNSS) entrusts the decision to withdraw from a prosecution to the public prosecutor, but the consent of the court is required for a withdrawal of the prosecution.
- The public prosecutor may withdraw from a prosecution not merely on the ground of paucity of evidence, but also to further the broad ends of public justice.
- The public prosecutor must formulate an independent opinion before seeking the consent of the court to withdraw from the prosecution.
- While the mere fact that the initiative has come from the government will not vitiate an application for withdrawal, the court must make an effort to elicit the reasons for withdrawal so as to ensure that the public prosecutor was satisfied that the withdrawal of the prosecution is necessary for good and relevant reasons.
- In deciding whether to grant its consent to a withdrawal, the court exercises a judicial function, but it has been described to be supervisory in nature. Before deciding whether to grant its consent the court must be satisfied that the function of the public prosecutor has not been improperly exercised and that it is not an attempt to interfere with the normal course of justice for illegitimate reasons or purposes; that the application has been made in good faith, in the interest of public policy and justice, and not to thwart or stifle the process of law; that the application does not suffer from such improprieties or illegalities as would cause manifest injustice if consent were to be given; that the grant of consent subserves the administration of justice; and that the permission has not been sought with an ulterior purpose unconnected with the vindication of the law which the public prosecutor is duty bound to maintain.
- While determining whether the withdrawal of the prosecution subserves the administration of justice, the court would be justified in scrutinising the nature and gravity of the offence and its impact upon public life, especially where matters involving public funds and the discharge of a public trust are implicated.
- Where both the trial judge and the revisional court have concurred in granting or refusing consent, the Supreme Court while exercising its jurisdiction under Article 136 of the Constitution would exercise caution before disturbing concurrent findings. The Court may, in exercise of the well settled principles attached to the exercise of this jurisdiction, interfere in a case where there has been a failure of the trial judge or of the High Court to apply the correct principles in deciding whether to grant or withhold consent.

***Abdul Karim v. State of Karnataka*, (2000) 8 SCC 710**

Withdrawal from prosecution cannot be allowed where it will stifle or thwart the process of law or cause manifest injustice.

***M/s. V.L.S. Finance Ltd. v. S.P. Gupta*, 2016 Cri LJ 1296 (SC)**

There can be no cavil over the proposition that when an application for withdrawal from the prosecution under Section 321 of the Cr.P.C. (now Section 360 of the BNSS) is filed by the Public Prosecutor, he has the sole responsibility, and the law casts an obligation that he should be satisfied on the basis of the material on record, keeping in view certain legal parameters.

GENERAL PROVISIONS AS TO INQUIRIES AND TRIALS

Others

***Ajay Singh v. State of Chhattisgarh*, (2017) 3 SCC 330**

A trial judge should remember that he has immense responsibility, as he has a lawful duty to record the evidence in the prescribed manner keeping in mind the command postulated in Section 309 of the Cr.P.C. (now Section 346 of the BNSS), and to pronounce the judgment as provided under the Code.

***Archana v. State of West Bengal*, (2023) 9 SCC 493**

The power under Section 323 of the Cr.P.C. (now Section 362 of the BNSS) may be invoked by the Magistrate at any stage of the proceeding prior to the signing of the judgment. It is thus a settled provision of law that the said power may be invoked even after the deposition or the examination-in-chief of a witness. The key requirement for the invocation of the power under Section 323 is that the Magistrate concerned must feel that the case is one which ought to be tried by the Court of Session.

BAIL

Regular bail: general

Moti Ram v. State of M.P., AIR 1978 SC 1594

Bail is a process by which a person under arrest or detention is set free by taking security for his appearance. The expression bail covers both release on one's own bond, with or without sureties. The right to be released on bail cannot be nullified indirectly by fixing too high an amount of bond or bail-bond to be furnished by the person seeking release.

Sunil Fulchand v. Union of India, AIR 2000 SC 1023

Personal liberty is one of the most valuable fundamental rights given under the Constitution. The principle underlying release on bail is that the accused is presumed innocent until proven guilty. A person released on bail is considered to be in the constructive custody of the court.

Gudikanti v. Public Prosecutor, AIR 1978 SC 429

The basic rule should be bail not jail, except where there are circumstances suggesting that the accused may flee from justice, or the possibility of his repeating the offence, and the like.

Gurucharan Singh v. State (Delhi Administration), AIR 1978 SC 179

The two paramount considerations for granting bail are the likelihood of the accused fleeing from justice and of his tampering with the evidence. It is essential that due and proper weight be given to these two factors apart from others.

Jagjeet Singh v. Ashish Mishra @ Monu, (2022) 9 SCC 321

A court, while deciding an application for bail, should refrain from evaluating or undertaking a detailed assessment of the evidence, as that is not a relevant consideration at the threshold stage. While a court may examine prima facie issues, including any reasonable grounds whether the accused committed the offence or the severity of the offence itself, an extensive consideration of the merits, which has the potential to prejudice either the case of the prosecution or the defence, is undesirable.

Anil Kumar Yadav v. State (NCT of Delhi), (2018) 12 SCC 129

The relevant considerations for the grant of bail are:

- whether there is any prima facie or reasonable ground to believe that the accused had committed the offence;
- the nature and gravity of the charge;
- the severity of the punishment in the event of conviction;
- the danger of the accused absconding or fleeing;
- the character, behaviour, means, position and standing of the accused;
- the likelihood of the offence being repeated;
- a reasonable apprehension of the witnesses being tampered with; and
- the danger of justice being thwarted by the grant of bail.

***Mohd. Kunju v. State of Karnataka*, (1999) 8 SCC 660**

Where the accused are more than one, the execution of separate bail bonds should be insisted upon. The duty of the surety is the production of the accused for bail. If any change in the terms and conditions under which the accused is granted bail is not acceptable to the surety, he should communicate the same to the court, failing which he will be held liable.

***State of Jharkhand v. Salauddin Khan*, Criminal Appeal Nos. 1535-1536 of 2022, 9 September 2022**

An offer of payment of ad interim compensation to the victim cannot be a ground to release the accused on bail, and only the parameters given in Section 439 of the Cr.P.C. (now Section 483 of the BNSS) have to be considered while granting bail.

***Ramesh Bhavan Rathod v. Vishanbhai Hirabhai Makwana (Koli)*, (2021) 6 SCC 230**

The consent of parties cannot obviate the duty of the High Court to indicate its reasons why it has either granted or refused bail.

***Sudha Singh v. State of Uttar Pradesh*, (2021) 4 SCC 781**

It is necessary for courts to consider the impact on the witnesses or victims in a criminal case while granting bail to an accused.

***Mauji Ram v. State of Uttar Pradesh*, (2019) 8 SCC 17**

Bail cannot be granted without assigning any reason as to on what grounds, even though of a prima facie nature, it is considered just and proper to grant bail.

Guidelines for grant of bail in writ jurisdiction by High Courts

***Arnab Manoranjan Goswami v. State of Maharashtra*, (2020) 14 SCC 12**

High Courts may grant bail even in a writ petition under Article 226 of the Constitution in an appropriate case. The High Court should not foreclose itself from the exercise of that power where a citizen has been arbitrarily deprived of personal liberty by an excess of State power. The High Court must consider the following settled factors while considering an application for the grant of bail under Article 226 in a suitable case:

- the nature of the alleged offence, the nature of the accusation and the severity of the punishment in the case of a conviction;
- whether there exists a reasonable apprehension of the accused tampering with the witnesses or being a threat to the complainant or the witnesses;
- the possibility of securing the presence of the accused at the trial, or the likelihood of his fleeing from justice;
- the antecedents of, and circumstances peculiar to, the accused;
- whether prima facie the ingredients of the offence are made out on the basis of the allegations as they stand in the FIR; and
- the significant interests of the public or the State and other similar considerations.
- The High Court must exercise this power with caution and circumspection, cognizant of the fact that this jurisdiction is not a ready substitute for recourse to the remedy of bail under Section 439 of the Cr.P.C. (now Section 483 of the BNSS).

Conditions of bail

***Ankita Kailash Khandelwal v. State of Maharashtra*, (2020) 10 SCC 670**

Section 437(3)(c) of the Cr.P.C. (now Section 480 of the BNSS) allows courts to impose conditions in the interest of justice. Such conditions should not be arbitrary, fanciful or extend beyond the end of the provision. The object of imposing conditions is to avoid the possibility of a person hampering the investigation, and any condition which has no reference to the fairness or propriety of the investigation or trial cannot be countenanced as permissible under the law.

***Mahadev Meena v. Praveen Rathore*, 2021 INSC 548**

The role attached to the accused has to be considered while deciding a plea seeking bail on the ground of parity. The seriousness and gravity of the crime alleged has to be considered while granting bail to the accused.

***Dilip Singh v. State of Madhya Pradesh*, (2021) 2 SCC 779**

A criminal court exercising jurisdiction to grant bail or anticipatory bail is not expected to act as a recovery agent to realise the dues of the complainant. The Court set aside a condition imposed by the Madhya Pradesh High Court on an accused while granting him anticipatory bail.

***Prashant Dagajirao Patil v. Vaibhav @ Sonu Arun Pawar*, 2021 Supreme (SC) 912**

A High Court, while exercising bail jurisdiction, cannot issue directions which will have a direct bearing upon the trial.

***Union of India v. K.A. Najeeb*, (2021) 3 SCC 713**

Section 43D(5) of the UAPA does not per se oust the ability of the constitutional courts to grant bail on the ground of violation of the fundamental right to a speedy trial. Where a timely trial would not be possible and the accused has suffered incarceration for a significant period, the courts would ordinarily be obliged to enlarge him on bail, regardless of the statutory restrictions imposed on the right to bail.

***Dharmesh v. State of Gujarat*, (2021) 7 SCC 198**

A condition for the payment of compensation to victims cannot be imposed at the stage of bail.

***High Court of Judicature for Rajasthan v. State of Rajasthan*, 2021 INSC 578**

Disapproving the blanket orders passed by a single judge of the Rajasthan High Court not to list applications for bail and for suspension of sentence as urgent matters during the lockdown, the Court observed that the right to apply for bail is an individual right implicit in Articles 14, 19 and 21 of the Constitution. Such a blanket order would suspend the fundamental rights of individuals and block access for seekers of liberty to apply for bail.

Guidelines on grant of bail to accused who are not arrested during investigation

***Satender Kumar Antil v. CBI*, (2021) 10 SCC 773**

The Supreme Court issued guidelines on the grant of bail to an accused who is not arrested during the investigation, on the charge-sheet being filed. The requisite conditions for the guideline to apply are that the accused was not arrested during the investigation, and that he cooperated throughout the investigation, including appearing before the investigating officer whenever called. The Court laid down guidelines by reference to categories of offences:

- Category A: offences punishable with imprisonment of seven years or less, not falling in Categories B and D.
- Category B: offences punishable with death, imprisonment for life, or imprisonment for more than seven years.
- Category C: offences punishable under special Acts containing stringent provisions for bail, such as the NDPS Act (Section 37), the PMLA (Section 45), the UAPA (Section 43D(5)) and the Companies Act (Section 212(6)).
- Category D: economic offences not covered by special Acts.
- For Category A, after the filing of the charge-sheet or complaint and the taking of cognizance: ordinary summons at the first instance, including permitting appearance through a lawyer; if such an accused does not appear despite service of summons, a bailable warrant for physical appearance may be issued; a non-bailable warrant on failure to appear despite issuance of a bailable warrant; the non-bailable warrant may be cancelled or converted into a bailable warrant or summons without insisting on the physical appearance of the accused, if such an application is moved on his behalf before execution of the warrant, on an undertaking to appear physically on the next date or dates of hearing; and bail applications of such an accused on appearance may be decided without his being taken into physical custody, or by granting interim bail till the bail application is decided.
- For Categories B and D: on the appearance of the accused in court pursuant to the process issued, the bail application is to be decided on merits.
- For Category C: the same as Categories B and D, with the additional condition of compliance with the provisions as to bail under the NDPS Act, the PMLA, the Companies Act, the UAPA, the POCSO Act and the like. The Court also agreed with the suggestion that, in considering bail, the trial court is not precluded from granting interim bail taking into consideration the conduct of the accused during the investigation which has not warranted arrest.

Conditions of bail

***Kamla Devi v. State of Rajasthan*, (2022) 6 SCC 725**

It is not necessary for a court to give elaborate reasons while granting bail, particularly where the case is at the initial stage and the allegations of the offences by the accused have not been crystallised as such. The court deciding a bail application cannot, however, completely divorce its decision from the material aspects of the case, such as the allegations made against the accused; the severity of the punishment if the allegations are proved beyond reasonable doubt and result in a conviction; a reasonable apprehension of the witnesses being influenced by the accused; tampering with the evidence; the frivolity in the case of the prosecution; the criminal antecedents of the accused; and a prima facie satisfaction of the court in support of the charge.

***Bimla Tiwari v. State of Bihar*, 2023 SCC OnLine SC 51**

The process of criminal law cannot be employed as a tool for arm-twisting or for the recovery of money, particularly while considering or opposing a prayer for pre-arrest or regular bail. The question of the grant or refusal of bail must be decided solely on the basis of the material on record and the settled parameters governing bail. Payment of the alleged amount, or an offer to make such payment, is neither a determinative factor for the grant of bail nor a ground for its rejection; bail may be refused despite payment or granted irrespective of it. Recovery of money lies essentially within the domain of civil proceedings.

***Guddan @ Roop Narayan v. State of Rajasthan*, 2023 SCC OnLine SC 151**

Excessive conditions cannot be imposed while granting bail or suspension of sentence, as in their practical manifestation they act as a refusal of the grant of bail.

***Ramesh Kumar v. State NCT of Delhi*, (2023) 7 SCC 461**

The willingness of an accused to deposit money as a bail condition must be considered only in exceptional cases, such as one involving public money, and must not be allowed in private cases. The process of criminal law cannot be pressed into service for settling a civil dispute.

***Ramadhar Sahu v. State of Madhya Pradesh*, Criminal Appeal (arising from SLP (Crl.) No. 11130/2023), 16 October 2023**

An order rejecting a prayer for bail does not disempower the court from considering such a plea afresh if there is any alteration of the circumstances. Conditions of bail may also be varied if a case is made out for such variation based on that factor. The prohibition contemplated in Section 362 of the Cr.P.C. (now Section 403 of the BNSS), which prohibits the modification of a judgment or final order, would not apply in such cases and will not be applicable to an order refusing bail.

Anticipatory bail

***Union of India v. Padam Narain*, (2008) 13 SCC 305**

The term anticipatory bail has not been defined in the Code. The bail is granted in anticipation of arrest, and where anticipatory bail is granted, in the event of arrest the person arrested is released on bail. Only after arrest does the order granting anticipatory bail become operative.

***S. Senthil Kumar v. State of Tamil Nadu*, SLP (Crl) 2693/2022, 24 March 2022**

While rejecting a prayer for anticipatory bail, no mandatory direction for the arrest of the accused should be issued, as arresting the accused is the prerogative of the investigating officer, depending upon the facts and circumstances of the case, the nature of the offence, the background of the accused, the facts disclosed in the course of investigation and other relevant considerations.

***Gurubaksh Singh Sibbia v. State of Punjab*, (1980) 2 SCC 565**

The Supreme Court laid down the following principles in respect of anticipatory bail:

- Registration of an FIR is not a condition precedent to the exercise of the power under Section 438 (now Section 482 of the BNSS).
- An interim order may be passed without notice to the Public Prosecutor, but before passing the final order notice must be given.
- An order under Section 438 (now Section 482 of the BNSS) would not affect the right of the police to conduct the investigation.
- Where a case has been made out for remand under Section 167(2) (now Section 187 of the BNSS), or there is a reasonable claim to secure incriminating material under Section 27 of the Evidence Act (now the proviso to Section 23(2) of the BSA), the power under Section 438 (now Section 482 of the BNSS) should not be exercised.
- A blanket order of anticipatory bail should not be made.

***Naresh Kumar Yadav v. Ravindra Kumar*, (2008) 1 SCC 632**

The applicant must show that he has reason to believe that he may be arrested in a non-bailable offence. The use of the expression reason to believe shows that the applicant may be arrested must be founded on reasonable grounds. Mere fear is not belief, for which reason it is not enough for the applicant to show that he has some sort of vague apprehension that someone is going to make an accusation against him, in pursuance of which he may be arrested.

***Manish Jain v. Haryana Pollution Control Board*, SLP (Crl) 5385/2020, decided on 20 November 2020**

A person cannot file an anticipatory bail application apprehending arrest following the cancellation of his regular bail. This is because a person released on bail remains under the constructive custody of law, and a person in custody cannot seek anticipatory bail.

***Vinod Kumar Sharma v. State of Uttar Pradesh*, [SC-2021], SLP (Crl.) No. 6057/21**

Merely because it was kept open for the parties to surrender and apply for regular bail after the filing of the charge-sheet, the same did not preclude them from applying for anticipatory bail under Section 438 of the Cr.P.C. (now Section 482 of the BNSS) after the filing of the charge-sheet.

Guidelines for grant of anticipatory bail

Sushila Aggarwal v. State of NCT of Delhi, (2020) SCC OnLine SC 98

The protection granted to a person under Section 438 of the Cr.P.C. (now Section 482 of the BNSS) should not invariably be limited to a fixed period; it should be in favour of the accused without any restriction on time. Conditions may be imposed by the court concerned while granting a pre-arrest bail order, including limiting the operation of the order in relation to a period of time if the circumstances so warrant, more particularly the stage at which the anticipatory bail application is moved. The life or duration of an anticipatory bail order does not normally end at the time and stage when the accused is summoned by the court, or when charges are framed, but can continue till the end of the trial; if there are any special or peculiar features necessitating the court to limit the tenure of anticipatory bail, it is open for it to do so. The points to be kept in mind by courts dealing with applications under Section 438 are:

- Where a person complains of apprehension of arrest and approaches for an order, the application should be based on concrete facts, such as relating to the offence and why the applicant reasonably apprehends arrest, and not on vague or general allegations, relatable to one or other specific offence.
- Depending on the seriousness of the threat of arrest, the court should issue notice to the public prosecutor and obtain facts, even while granting limited interim anticipatory bail.
- Courts ought to be generally guided by considerations such as the nature and gravity of the offences, the role attributed to the applicant, and the facts of the case, while considering whether to grant anticipatory bail or to refuse it.
- An order of anticipatory bail should not be blanket, in the sense that it cannot operate in respect of a future incident involving the commission of an offence.
- An order of anticipatory bail does not in any manner limit or restrict the rights or duties of the police or investigating agency to investigate the charges against the person who seeks and is granted pre-arrest bail.
- If and when the occasion arises, it may be possible for the prosecution to claim the benefit of Section 27 of the Evidence Act (now the proviso to Section 23(2) of the BSA) in regard to a discovery of facts made in pursuance of information supplied by a person released on bail.
- It is open to the police or the investigating agency to move the court concerned, which granted anticipatory bail, for a direction under Section 439(2) to arrest the accused in the event of violation of any term.

Anticipatory bail

Prathvi Raj Chauhan v. Union of India, (2020) 5 SCC 421

Section 438 of the Cr.P.C. (now Section 482 of the BNSS) cannot be considered to be an integral part of Article 21. Anticipatory bail cannot be granted as a matter of right. It cannot be considered to be an essential ingredient of Article 21, and its non-application to a certain special category of offences cannot be considered as violative of Article 21.

Rukmani Mahto v. State of Jharkhand, (2017) 15 SCC 574

Where the Supreme Court or the High Court or even the Sessions Court grants interim anticipatory bail and the matter is pending before the court, the accused cannot surrender and seek regular bail before the trial court. Such surrender and bail application is an abuse of the process of the court and must be discouraged.

***G.R. Ananda Babu v. State of Tamil Nadu*, 2021 SCC OnLine (SC) 176**

Successive anticipatory bail applications ought not to be entertained, and more so where the case diary and the status report clearly indicate that the accused is absconding and not cooperating with the investigation. The specious reason of a change in circumstances cannot be invoked for successive anticipatory bail applications once it has been rejected by a speaking order, and that too by the same judge.

***Dr. Rajesh Pratap Giri v. State of U.P.*, 2021 SCC OnLine (SC) 140**

Anticipatory bail once granted does not automatically end on the filing of the charge-sheet. The Court noted that in Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1, it was observed that the mere fact that an accused is given relief under Section 438 (now Section 482 of the BNSS) at one stage does not per se mean that upon the filing of a charge-sheet he is necessarily to surrender or to apply for regular bail.

***Rahna Jalal v. State of Kerala*, (2021) 1 SCC 733**

Anticipatory bail may be granted to a person apprehending arrest under the Muslim Women (Protection on Rights of Marriage) Act, 2019, subject to the condition that the competent court must hear the married Muslim woman upon whom triple talaq is pronounced, and all the requirements of Section 7(c) of the Act are satisfied.

***Nathu Singh v. State of Uttar Pradesh*, (2021) 6 SCC 64**

A High Court, while dismissing anticipatory bail applications, may issue protective orders only where there are exceptional circumstances.

***Mohammed Zubair v. State of NCT of Delhi*, AIR 2022 SC 3649**

Section 438(2) of the Cr.P.C. (now Section 482 of the BNSS) stipulates that the High Court or the Court of Session may direct a person to be released on conditional bail. The bail conditions imposed by the court must not only have a nexus to the purpose they seek to serve, but must also be proportional to the purpose of imposing them. The courts, while imposing bail conditions, must balance the liberty of the accused and the necessity of a fair trial.

***State of Haryana v. Dharamraj*, 2023 INSC 784**

A proclaimed offender would be entitled to anticipatory bail only in an exceptional and rare case by the Supreme Court or the High Courts. Otherwise, a proclaimed offender is not entitled to anticipatory bail.

***Pratibha Manchanda v. State of Haryana*, 2023 INSC 612**

The relief of anticipatory bail is aimed at safeguarding individual rights. While it serves as a crucial tool to prevent the misuse of the power of arrest and protects innocent individuals from harassment, it also presents challenges in maintaining a delicate balance between individual rights and the interests of justice. The tight rope that must be walked lies in striking a balance between safeguarding individual rights and protecting the public interest. While the right to liberty and the presumption of innocence are vital, the court must also consider the gravity of the offence, the impact on society, and the need for a fair and free investigation. The court's discretion in weighing these interests in the facts and circumstances of each individual case becomes crucial to ensure a just outcome.

***State of Jharkhand v. Md. Sufiyan*, SLP (Crl.) No. 1960 of 2022, 16 January 2024**

Merely because the accused is willing to pay some amount as interim compensation cannot be a ground for the grant of anticipatory bail.

***Ashok Kumar v. State of Union Territory Chandigarh*, 2024 SCC OnLine (SC) 274**

It is equally true that just because custodial interrogation is not required, that by itself may also not be a ground to release an accused on anticipatory bail if the offences are of a serious nature. However, a mere assertion on the part of the State, while opposing the plea for anticipatory bail, that custodial interrogation is required would not be sufficient. The State would have to show or indicate, more than prima facie, why the custodial interrogation of the accused is required for the purpose of investigation.

***Srikant Upadhyay v. State of Bihar*, 2024 INSC 202**

An accused against whom a non-bailable warrant is pending and the process of proclamation under Sections 82 and 83 of the Cr.P.C. (now Sections 84 and 85 of the BNSS) has been issued is not entitled to the relief of anticipatory bail. The filing of an anticipatory bail application through an advocate would not and could not be treated as appearance before a court by a person against whom such proceedings are instituted.

***Serious Fraud Investigation Office v. Aditya Sarda*, AIR 2025 SC 2431**

Granting anticipatory bail is certainly not the rule. Accused who have continuously avoided following the due process of law, by avoiding attendance in court and by concealing themselves, thereby attempting to derail the proceedings, would not be entitled to anticipatory bail. If the rule of law is to prevail in society, every person must abide by the law, respect the law and follow the due process of law.

Cancellation of bail

***Raghubir v. State of Bihar*, (1986) 4 SCC 481**

The Supreme Court laid down the following circumstances in which bail may be cancelled, where the accused:

- hampers the investigation;
- tampers with the evidence;
- commits the same or a similar offence;
- absconds or goes beyond the control of his sureties; or
- misuses the liberty granted to him.

***State (Delhi Administration) v. Sanjay Gandhi*, (1978) 2 SCC 411**

The rejection of bail when bail is applied for is one thing, and the cancellation of bail another. It is easier to reject bail in a non-bailable case than to cancel bail once granted. Cancellation of bail involves reviewing the earlier decision granting bail; it should be sparingly exercised and only in supervening circumstances.

***X v. State of Telangana*, (2018) 16 SCC 511**

The rejection of bail in a non-bailable case at the initial stage, and the cancellation of bail so granted, have to be considered and dealt with on a different basis. Very cogent and overwhelming circumstances are necessary for an order directing the cancellation of bail. Bail once granted should not be cancelled in a mechanical and routine manner, and supervening circumstances should be considered before cancelling bail.

***Myakala Dharmarajam v. State of Telangana*, (2020) 2 SCC 743**

Cancellation of bail is a harsh order because it interferes with the liberty of the individual, and hence it must not be lightly resorted to.

***Vipan Kumar Dhir v. State of Punjab*, (2021) SCC OnLine SC 854**

Bail granted to an accused may be revoked by a superior court if the court has considered irrelevant factors, or has ignored relevant material available on record, which renders the order granting bail legally untenable. The gravity of the offence, the conduct of the accused, and the societal impact of an undue indulgence by the court when the investigation is at the threshold, are also among the situations in which a superior court may interfere with an order of bail to prevent the miscarriage of justice and to bolster the administration of the criminal justice system.

***Jayaben v. Tejas Kanubhai Zala*, (2022) 3 SCC 230**

The cancellation of bail, and the quashing and setting aside of a wrong order passed by the High Court releasing the accused on bail, stand on different footings. There are different considerations while considering an application for cancellation of bail for breach of conditions, and while considering an order passed by the court releasing the accused on bail. Once it is found that the order passed by the High Court releasing the accused on bail is unsustainable, the necessary consequences shall have to follow and the bail has to be cancelled.

Guidelines on cancellation of bail

***Deepak Yadav v. State of U.P.*, (2022) 8 SCC 559**

Bail once granted should not be cancelled in a mechanical manner without considering whether any supervening circumstances have rendered it no longer conducive to a fair trial to allow the accused to retain his freedom by enjoying the concession of bail during trial. The Court has, however, inherent power to allow the cancellation of bail even in the absence of supervening circumstances, and observed the following illustrative circumstances in which bail may be cancelled:

- where the court granting bail takes into account irrelevant material of a substantial and not trivial nature while ignoring relevant material on record;
- where the court granting bail overlooks the influential position of the accused in comparison with the victim of abuse or the witnesses, especially where there is prima facie misuse of position and power over the victim;
- where the past criminal record and conduct of the accused is completely ignored while granting bail;
- where bail has been granted on untenable grounds;
- where serious discrepancies are found in the order granting bail, thereby causing prejudice to justice;
- where the grant of bail was not appropriate in the first place, given the very serious nature of the charges against the accused, which disentitles him to bail and thus cannot be justified; and
- where the order granting bail is apparently whimsical, capricious and perverse on the facts of the given case.

Cancellation of bail

***Ravish Kumar v. State of Bihar*, 2023 INSC 791**

High Courts should endeavour to ensure that all the basic essentials, that is to say the FIR number, the date, the police station concerned and the offences allegedly committed, are duly recorded or reflected in the format of bail orders.

***Krishna Sharma alias Krishna Kumar Sharma v. State of West Bengal*, Criminal Appeal No. 383/2024, 24 January 2024**

Merely because the accused did not appear personally could not be a ground for cancellation of bail. The parameters for the grant of bail and for cancellation of bail are totally different. Bail already granted may be cancelled if it is found that the person who has been granted the benefit of bail has violated any of the conditions, or misused the liberty by influencing the witnesses or tampering with the evidence.

DISPOSAL OF PROPERTY

***Bharat Sanchar Nigam Ltd. v. Suryanarayanan*, (2018) 12 SCC 415**

Where a claim is made before the court that the property does not belong to the person from whom it was seized, Section 452 of the Cr.P.C. (now Section 498 of the BNSS) does not mandate that its custody should be handed over to the person from whose possession it was seized, overriding the claim of genuine title asserted on behalf of a third party.

***Mahesh Dube v. Shivbodh Dubel*, (2019) 4 SCC 160**

The limitation of thirty days would not apply to the preferring of an application under Section 456 of the Criminal Procedure Code (now Section 502 of the BNSS) seeking restoration of immovable property, where the trial court had passed an order directing the handing over of the case property while convicting the accused.

PROVISIONS AS TO OFFENCES AFFECTING THE ADMINISTRATION OF JUSTICE

***Narendra Kumar Srivastava v. State of Bihar*, (2019) 3 SCC 318**

The object of Section 340 is to ascertain whether any offence affecting the administration of justice was committed in relation to any document produced or given in evidence in court during the time when the document or evidence was in custodia legis, and whether it is also expedient in the interest of justice to take such action. The court is not only to ascertain a prima facie case, but also to see whether it is in the public interest to allow criminal proceedings to be instituted.

***Prem Sagar Manocha v. State (NCT of Delhi)*, 2016 Cri LJ 1090 (SC)**

The mere rejection of expert evidence by itself may not warrant the initiation of proceedings under Section 340 of the Code (now Section 379 of the BNSS).

JUDGMENT AND SUBMISSION OF DEATH SENTENCES FOR CONFIRMATION

***Ganesh Patel v. Umakant Rajoria*, S.L.P. (Crl.) No. 9313 of 2021, 7 March 2022**

An application for recall of an order is maintainable if it is an application seeking a procedural review, and not a substantive review to which Section 362 of the Code of Criminal Procedure, 1973 (now Section 403 of the BNSS) would be attracted.

***Munna Pandey v. State of Bihar*, 2023 SCC OnLine 1103**

In a reference for confirmation of the sentence of death, the High Court is under an obligation to proceed in accordance with Sections 367 and 368 of the Cr.P.C. (now Sections 408 and 409 of the BNSS). Under these sections the High Court must not only see whether the order passed by the Sessions Court is correct, but is under an obligation to examine the entire evidence for itself, apart from and independently of the Sessions Court's appraisal and assessment of that evidence. The Court must examine the appeal record for itself, arrive at a view whether a further enquiry or the taking of additional evidence is desirable or not, and then come to its own conclusion on the entire material on record whether the conviction of the condemned prisoner is justified and the sentence of death should be confirmed.

***Neeraj Sharma v. State of Chhattisgarh*, 2024 INSC 6**

A victim of a crime cannot be treated merely as a prosecution witness. Section 357(1) of the Cr.P.C. (now Section 395 of the BNSS) empowers the court to order that the fine amount recovered be given as compensation to any person who has suffered loss or injury caused by that offence. Section 357A (now Section 396 of the BNSS) was therefore introduced in the Criminal Procedure Code, under which compensation to victims may be paid out of State funds, as the State had the responsibility to protect the victim against the offence committed against him. For an act of kidnapping or abduction, the prosecution must prove the demand of ransom coupled with the threat to the life of the person kidnapped or abducted.

APPEAL

***Md. Sajjad @ Raju @ Salim v. State of West Bengal*, 2017 (1) RCR (Criminal) 748**

Two persons were convicted of committing murder; only one of the accused filed an appeal against the conviction and was acquitted. The conviction of the second accused, who did not file an appeal, was also set aside. Where, on an evaluation of the case, the conclusion is reached that no conviction of any accused was possible, the benefit of that decision must be extended to a similarly situated co-accused even though he had not challenged the order by way of appeal.

***Brijesh Singh v. State of Uttar Pradesh*, (2021) 8 SCC 392**

Brief reasons must be given in an order disposing of an application for leave to appeal under Section 378 of the Code of Criminal Procedure, 1973 (now Section 419 of the BNSS) against an order of acquittal. Merely observing that the order of the trial judge has taken a possible view, without an application of mind to the evidence and the findings, is not consistent with the duty cast upon the High Court while determining whether leave should be granted to appeal against an order of acquittal.

***Ghurey Lal v. State of U.P.*, (2008) 10 SCC 405**

The appellate court may review the evidence in appeals against acquittal under Sections 378 and 386 of the Criminal Procedure Code, 1973 (now Sections 419 and 427 of the BNSS). Its power of reviewing evidence is wide, and the appellate court may re-appreciate the entire evidence on record and review the trial court's conclusion with respect both to facts and to law. The accused is presumed innocent until proven guilty, and he possessed this presumption when he was before the trial court. The trial court's acquittal bolsters the presumption that he is innocent. The appellate court may only overrule or otherwise disturb the trial court's acquittal if it has very substantial and compelling reasons for doing so.

***Jafarudheen v. State of Kerala*, (2022) 8 SCC 440**

While dealing with an appeal against acquittal by invoking Section 378 of the Cr.P.C. (now Section 419 of the BNSS), the appellate court has to consider whether the trial court's view can be termed a possible one, particularly when the evidence on record has been analysed. The reason is that an order of acquittal adds to the presumption of innocence in favour of the accused. Thus the appellate court has to be relatively slow in reversing the order of the trial court rendering acquittal. The presumption in favour of the accused does not get weakened but only strengthened; such a double presumption in favour of the accused has to be disturbed only by thorough scrutiny on the accepted legal parameters.

Principles governing the power of the appellate court in an appeal against acquittal

Chandrappa v. State of Karnataka, (2007) 4 SCC 415; 2007 Cri LJ 2136 (SC)

The general principles governing the powers of an appellate court when considering an appeal against an acquittal are:

- The appellate court possesses full authority to review, reassess and reconsider the evidence upon which the acquittal is based.
- There are no limitations, restrictions or conditions imposed by the Code (now the BNSS) on the exercise of this power, and the appellate court may arrive at its own conclusions on both factual and legal aspects based on the evidence before it.
- Expressions such as substantial and compelling reasons, good and sufficient grounds, very strong circumstances, distorted conclusions and glaring mistakes are not intended to limit the broad powers of the appellate court; they serve rather to highlight the court's general reluctance to interfere with acquittals, and do not restrict its authority to review the evidence and reach independent conclusions.
- The appellate court must consider the double presumption in favour of the accused in cases of acquittal: first, the initial presumption of innocence, and second, the reinforcement of that presumption by the trial court's verdict.
- If the evidence on record allows for two reasonable conclusions, the appellate court should not overturn the trial court's finding of acquittal.

Sidhartha Vashisht @ Manu Sharma v. State (NCT of Delhi), AIR 2010 SC 2352

The appellate court has all the necessary powers to re-evaluate the evidence led before the trial court as well as the conclusions reached. It has a duty to specify the compelling and substantial reasons in case it reverses the order of acquittal passed by the trial court.

Yeruva Sayireddy v. State of Andhra Pradesh, (2022) 3 SCC 575

Counsel appearing as amicus cannot be treated as a near relative of the deceased appellant or convict, and if no application for continuance of the appeal is made within thirty days, or even thereafter, by any near relative, then under Section 394 of the Cr.P.C. (now Section 435 of the BNSS) the appeal would abate.

Celestium Financial v. A. Gnanasekaran, 2025 INSC 804

A complainant in a cheque dishonour case for the offence under Section 138 of the Negotiable Instruments Act is a victim within the meaning of Section 2(wa) of the Cr.P.C. (now Section 2(1)(y) of the BNSS). The complainant may proceed under the proviso to Section 372 of the Cr.P.C. (now Section 413 of the BNSS), and need not invoke Section 378(4) of the Cr.P.C. (now Section 419 of the BNSS); he could file an appeal as a victim under the proviso to Section 372. Where a complainant is not a victim and the case is instituted upon a complaint, Section 378(4) of the Cr.P.C. (now Section 419 of the BNSS) requires special leave to appeal to be sought. If the complainant is also a victim, he may choose to proceed under the proviso to Section 372 of the Cr.P.C. (now Section 413 of the BNSS), which confers a right of appeal as a victim without the need for special leave.

Suspension of sentence

***Kishori Lal v. Rupa*, AIR 2005 SC 1481**

The bail granted during the trial becomes irrelevant once the trial concludes with a conviction. The fact that the accused did not misuse his liberty while on bail does not by itself justify the suspension of the sentence and the granting of bail. The crucial factor for the High Court to consider is whether there are valid reasons to suspend the execution of the sentence before granting bail.

***Surinder Singh Deswal v. Virender Gandhi*, (2020) 2 SCC 514**

Where the suspension of sentence under Section 389 (now Section 430 of the BNSS) is granted on certain conditions, non-compliance with those conditions has an adverse effect on the continuance of the suspension of sentence. The court which has suspended the sentence may hold that the suspension stands vacated due to non-compliance with the conditions.

***Pankajakshi v. Chandrika*, AIR 2016 SC 1213**

If a Division Bench delivers a split verdict, the appeal, along with their opinions, must be referred to another judge of the same court, and the final decision will be based on the opinion of that judge, who hears the matter individually. However, under the proviso to Section 392 of the Cr.P.C. (now Section 433 of the BNSS), any judge of the Division Bench or the third judge has authority to direct that the appeal be heard by a larger Bench.

***State of U.P. v. Dan Singh*, AIR 1997 SC 1654**

Where the appeal as a whole is heard by the third judge, he not only has the option of delivering his opinion but, under the proviso to Section 392 of the Code (now Section 433 of the BNSS), he may require the appeal to be reheard and decided by a larger Bench of judges.

***Accused X v. State of Maharashtra*, Cr. Appeal No. 680/2007, decided 12 April 2017; 2019 SCC OnLine SC 543**

Post-conviction mental illness will be a mitigating factor while considering appeals of death convicts.

***Krishan Kumar v. State of Haryana*, (SC, 2022)**

Seeking relief of suspension of execution of sentence and to be released on bail being a statutory right of the accused, a time-specific debarment on the same cannot be created by judicial orders.

***Fedrick Cutinha v. State of Karnataka*, AIR 2023 SC 2102**

Where an order of acquittal is reversed by the appellate court into one of conviction, the appellate court is obliged under law to hear the accused on the quantum of sentence, in accordance with the mandate of Section 235(2) of the Cr.P.C. (now Section 258 of the BNSS), before pronouncing any sentence against him.

***Jitendra Kumar Rode v. Union of India*, (2023) 4 SCR 512**

The Registrar General of every High Court was directed to ensure that in all criminal trials and civil suits the digitization of records is duly undertaken with promptitude at all District Courts, preferably within the time prescribed for filing an appeal within the laws of procedure, and District Judges were directed to ensure that the records so digitized are verified as expeditiously as possible, once the system of digitization along with the system of authentication of digitized records is in place in their judgeship. The language of Section 385 of the Cr.P.C. (now Section 426 of the BNSS) shows that the court sitting in appeal governed thereby is required to call for the records of the case from the court below. The same is an obligation, a power coupled with a duty, and only after the perusal of such records would an appeal be decided.

Suspension of sentence

***Omprakash Sahni v. Jai Shankar Chaudhary*, 2023 SCC OnLine (SC) 557**

Under Section 389 of the Cr.P.C. (now Section 430 of the BNSS) the endeavour on the part of the court should be to see whether the case presented by the prosecution and accepted by the trial court can be said to be a case in which, ultimately, the convict stands fair chances of acquittal. The appellate court should not re-appreciate the evidence at the stage of Section 389 and try to pick up a few lacunae or loopholes here or there in the case of the prosecution; such would not be a correct approach.

REVISION

***Malkeet Singh Gill v. State of Chhattisgarh*, (2022) 8 SCC 204**

The High Court in criminal revision against conviction is not supposed to exercise the jurisdiction alike to the appellate court, and the scope of interference in revision is extremely narrow. The object of the provision of revision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-founded error, which is to be determined on the merits of the individual case. It is also well settled that, while considering the same, the revisional court does not dwell at length upon the facts and evidence of the case to reverse those findings.

***Joseph Stephen v. Santhanasamy*, AIR 2022 SC 670**

Section 401(3) of the Cr.P.C. (now Section 442 of the BNSS) bars the High Court from converting a finding of acquittal into one of conviction. Under Section 401 of the Cr.P.C. (now Section 442 of the BNSS) the High Court has revisional power only to examine whether there is a manifest error of law or procedure; but after giving its own findings on the findings recorded by the court acquitting the accused, and after setting aside the order of acquittal, the High Court has to remit the matter to the trial court or to the first appellate court, as the case may be. Under the said section the High Court has no power to quash the order of acquittal and convict the accused.

***Honnaiah T.H. v. State of Karnataka*, 2022 SCC OnLine (SC) 1001**

As the power of revision can be exercised by the High Court even suo motu, there can be no bar on a third party invoking the revisional jurisdiction and inviting the attention of the High Court to the fact that an occasion to exercise the power has arisen. The revisional jurisdiction under Section 397 of the Cr.P.C. (now Section 438 of the BNSS) may be exercised where the interest of public justice requires interference for the correction of a manifest illegality or the prevention of a gross miscarriage of justice. A court may exercise its revisional jurisdiction against a final order of acquittal or conviction, or an intermediate order not being interlocutory in nature. An order of the trial court declining to mark the statement of the informant as an exhibit is an intermediate order affecting important rights of the parties and cannot be said to be purely of an interlocutory nature.

***State of Rajasthan v. Fatehkaran Mehdu*, (2017) 3 SCC 198**

The scope of interference under Section 397 of the Cr.P.C. (now Section 438 of the BNSS) after charges have been framed is well established. At this stage the court is not required to determine the proof of the allegations, but rather to assess the available material and decide whether there is a strong suspicion that the accused has committed an offence. If such suspicion exists, and a trial could potentially establish guilt, charges should be framed. This stage does not involve applying the final test of guilt.

***R. Kalai Selvi v. Bheemappa*, AIR 2021 SC 361**

The deposit of a fine amount cannot be made a condition precedent for hearing a revision petition under Section 397 of the Criminal Procedure Code (now Section 438 of the BNSS).

EXECUTION, SUSPENSION, REMISSION AND COMMUTATION OF SENTENCES

***Union of India v. V. Sriharan*, 2016 Cri LJ 845 (SC)**

The difference between earned remissions for good behaviour and the remission of sentence under Section 432 of the Code (now Section 473 of the BNSS) is clear. The first depends upon the Jail Manual or the policy in question, and normally accrues and accumulates to the credit of the prisoner without there being any specific order by the appropriate Government in an individual case, while the one under Section 432 requires specific assessment in an individual matter and is case specific.

- The sentence of life imprisonment means imprisonment for the rest of life, or the remainder of the life, of the convict. Such a convict may always apply for obtaining remission, either under Article 72 or Article 161 of the Constitution or under Section 432 of the Cr.P.C. (now Section 473 of the BNSS), and the authority would be obliged to consider the same reasonably.

***Ram Chander v. State of Chhattisgarh*, AIR 2022 SC 2017**

While considering a matter of remission under Section 432(2) of the Cr.P.C. (now Section 473 of the BNSS), if the opinion of the presiding judge does not comply with the requirements of Section 432(2), or if the judge does not consider the relevant factors for the grant of remission laid down in Laxman Naskar v. Union of India, (2000) 7 SCC 626, the Government may request the presiding judge to consider the matter afresh.

***State of Rajasthan v. Mohammad Muslim Tagala*, 2015 Cri LJ 252 (SC)**

When the appropriate Government commutes a sentence, it does so in exercise of its sovereign powers. The court cannot direct the appropriate Government to exercise its sovereign powers; it can merely give a direction to the appropriate Government to consider the case for commutation of sentence and nothing more. This legal position is no more res integra.

***Manoharan v. State By Inspector of Police, Variety Hall Police Station, Coimbatore*, AIR 2020 SC 3521**

Mere young age and the presence of aged parents cannot be grounds for commutation of a death sentence. One may view that such young age poses a continuous burden on the State and presents a longer risk to society, hence warranting more serious intervention by courts.

***State of Haryana v. Rajkumar @ Bittu*, (2021) 9 SCC 292**

The power of the Governor under Article 161 of the Constitution to commute a sentence or to pardon will override the restrictions imposed under Section 433-A of the Criminal Procedure Code (now Section 473 of the BNSS). Even if the prisoner has not undergone fourteen years or more of actual imprisonment, the Governor has power to grant pardons, reprieves, respites and remissions of punishment, or to suspend, remit or commute the sentence of any person.

***Shatrughan Baban Meshram v. State of Maharashtra*, (2021) 1 SCC 596**

The imposition of a life sentence simpliciter does not put any restraint on the power of the executive to grant remission and commutation in exercise of statutory power, subject to Section 433-A of the Cr.P.C. (now Section 473 of the BNSS). But a life sentence with the statutory prescription that it shall mean the remainder of that person's life will certainly restrain the executive from exercising any such statutory power, and thus amounts to greater punishment.

***Union of India v. Dharam Pal*, (2019) 15 SCC 388**

The solitary confinement of a person sentenced to death prior to the rejection of his mercy petition is palpably illegal.

***A.G. Perarivalan v. State*, 2022 SCC OnLine (SC) 635**

The Governor in the matter of remission was bound by the State cabinet decision. Observing that the inordinate delay by the Governor in taking a decision warranted Perarivalan's release, the Supreme Court invoked its special powers under Article 142 to order his release.

Guidelines for entertaining an application for remission

***Bilkis Yakub Rasool v. Union of India*, 2024 INSC 24**

The Supreme Court indicated the following factors which must be taken into account while entertaining an application for remission under the provisions of the Cr.P.C. (now the BNSS):

- The application for remission under Section 432 of the Cr.P.C. (now Section 473 of the BNSS) could be made only before the Government of the State within whose territorial jurisdiction the applicant was convicted, and not before any other Government within whose territorial jurisdiction the applicant may have been transferred on conviction, or where the offence occurred.
- A consideration for remission must be by way of an application under Section 432 of the Cr.P.C. (now Section 473 of the BNSS), which has to be made by the convict or on his behalf.
- The guidelines under Section 432(2) (now Section 473 of the BNSS) with regard to the opinion to be sought from the presiding judge of the court which had convicted the applicant must be complied with mandatorily.
- The policy of remission applicable would therefore be the policy of the State which is the appropriate Government and which has the jurisdiction to consider that application. The policy of remission applicable at the time of the conviction could apply, and only if for any reason the said policy cannot be made applicable, a more benevolent policy, if in vogue, could apply.
- While considering an application for remission, there cannot be any abuse of discretion.
- There has also to be consultation in accordance with Section 435 of the Cr.P.C. (now Section 477 of the BNSS) wherever the same is necessitated.
- The Jail Advisory Committee which has to consider the application for remission may not have the District Judge as a member, inasmuch as the District Judge, being a judicial officer, may coincidentally be the very judge who may have to render an opinion independently in terms of Section 432(2) of the Cr.P.C. (now Section 473 of the BNSS).
- Reasons for the grant or refusal of remission should be clearly delineated in the order by passing a speaking order.

***Radheshyam Bhagwandas Shah @ Lala Vakil v. State of Gujarat*, (2022) 8 SCC 552**

Under Section 432(7) of the Cr.P.C. (now Section 473 of the BNSS) the appropriate Government can be either the Central or the State Government, but there cannot be a concurrent jurisdiction of two State Governments. Proceedings such as remission or premature release have to be considered in terms of the policy which is applicable in the State where the crime was committed, and not the State where the trial stands transferred and concluded for exceptional reasons under the orders of this Court.

***Vinay Prakash Singh v. Sameer Gehlaut*, 2022 INSC 1200**

For applying the beneficial provisions of Section 428 of the Cr.P.C. (now Section 468 of the BNSS), the detention undergone by the convict during investigation, enquiry or trial should be in the same case in which he is convicted.

***Abu Salem v. State of Maharashtra*, 2022 SCC OnLine (SC) 786**

When reference is made in a set off under Section 428 of the Cr.P.C. (now Section 468 of the BNSS) for the adjustment of periods, the reference is to proceedings within the country.

Factors to be considered while deciding a convict's period of sentence before remission

***Navas @ Mulanavas v. State of Kerala*, 2024 INSC 215**

The Supreme Court summarised certain factors which the courts should consider while deciding a convict's period of sentence before remission could be sought:

- the number of deceased who are victims of that crime and their age and gender;
- the nature of the injuries, including sexual assault if any;
- the motive for which the offence was committed;
- whether the offence was committed when the convict was on bail in another case;
- the premeditated nature of the offence;
- the relationship between the offender and the victim;
- the abuse of trust, if any; and
- the criminal antecedents, and whether the convict, if released, would be a menace to society.
- Some of the positive factors are: the age of the convict; the probability of his reformation; the convict not being a professional killer; the socio-economic condition of the accused; the composition of the family of the accused; and conduct expressing remorse.

***Rajkumar v. State of Uttar Pradesh*, Miscellaneous Application No. 2169/2022 in W.P. (Crl.) No. 36/2022, 6 February 2023**

The State, having formulated Rules and a Standing Policy for deciding cases of premature release, is bound by its own formulations of law, and it is not open to the State to adopt an arbitrary yardstick for picking up cases for premature release. It must strictly abide by the terms of its policies, bearing in mind the fundamental principle of law that each case for premature release has to be decided on the basis of the legal position as it stands on the date of the conviction, subject to a more beneficial regime being provided in terms of a subsequent policy determination. The provisions of the law must be applied equally to all persons.

***State of Andhra Pradesh v. Vijayanagram Chinna Redappa*, (2023) 5 SCR 485**

Section 426(2)(b) of the Cr.P.C. (now Section 466 of the BNSS) states that, insofar as an escaped convict is concerned, the sentence imposed in the second or subsequent conviction shall take effect only after the escaped convict has suffered imprisonment for a further period equal to that which at the time of escape remained unexpired of his former sentence. But insofar as a life convict is concerned, in law no part of the sentence remains unexpired. The remission granted by the Government to a life convict cannot be taken to mean that there is some portion of the life sentence that remains unexpired in the same sense as in the case of other convicts. A life sentence is a sentence for life; therefore Section 426(2)(b) cannot be taken to have included within its fold the case of a life convict, since in the case of a life convict no portion of the sentence remains unexpired in the technical sense.

IRREGULAR PROCEEDINGS

***Kaushik Chatterjee v. State of Haryana*, (2020) 10 SCC 92**

If an offender is tried by a Magistrate not empowered by law in that behalf, the proceedings shall be void under Section 461 (now Section 507 of the BNSS). Proceedings which are void under Section 461 cannot be saved by Section 462 (now Section 508 of the BNSS), because Section 462 does not make the principle contained in it have force notwithstanding anything contained in Section 461.

***Pradeep S. Wodeyar v. State of Karnataka*, (2021) 19 SCC 62**

An irregularity in the order taking cognizance will not vitiate the proceedings in a criminal trial. Referring to Section 465 of the Cr.P.C. (now Section 511 of the BNSS), the Court held that the objective is to prevent delay in the commencement and completion of trial. Section 465 is applicable to interlocutory orders such as an order taking cognizance and a summons order as well. Therefore, even if the order taking cognizance is irregular, it would not vitiate the proceedings in view of Section 465 of the Cr.P.C. (now Section 511 of the BNSS).

LIMITATION FOR TAKING COGNIZANCE

***Amritlal v. Shantilal Soni*, (2022) 1 SCR 721**

For the purpose of computing the limitation period under Section 468 of the Cr.P.C. (now Section 514 of the BNSS), the relevant date is the date of filing of the complaint or the date of institution of the prosecution, and not the date on which the Magistrate takes cognizance of the offence.

***Kamatchi v. Lakshmi Narayanan*, AIR 2022 SC 2932**

Where a complaint was filed within the period prescribed by Section 468 of the Code (now Section 514 of the BNSS) from the commission of the offence, but cognizance was taken after the expiry of that period, the terminal point for the prescribed period for the purposes of Section 468 was shifted from the date of taking cognizance to the filing of the complaint or the initiation of proceedings, so that a complaint ought not to be discarded for reasons beyond the control of the complainant or the prosecution.

***Bharat Damodar Kale v. State of A.P.*, AIR 2003 SC 4560**

The period of limitation for the filing of a complaint, or for the initiation of the prosecution, in relation to an offence shall commence either from the date of the offence or from the date when the offence is detected.

***State of H.P. v. Tara Dutt*, AIR 2000 SC 297**

Where a court exercises its discretion to take cognizance of an offence after the limitation period has expired, it must issue a reasoned order explicitly stating its satisfaction that the delay was adequately explained and that condoning it serves the interest of justice. Without a clear and affirmative order to this effect, a higher court cannot assume that cognizance was taken with an implied condonation of delay in a case where it was otherwise time-barred.

INHERENT POWERS OF COURT

***Kartar Singh v. State of Haryana*, AIR 1982 SC 1433**

The benefit of set-off under Section 428 (now Section 468 of the BNSS) is not available to life convicts.

***New India Assurance Co. Ltd. v. Krishna Kumar Pandey*, Cr. Appeal No. 1852/2019, decided 6 December 2019**

The High Court has inherent power under Section 482 of the Code of Criminal Procedure (now Section 528 of the BNSS) to recall an order, and the provisions of Section 362 of the Cr.P.C. (now Section 403 of the BNSS) would not bar it from the exercise of such powers.

***Ravuri Krishna Murthy v. State of Telangana*, [SC-2021] Cr. Appeal Nos. 274-275/21**

A blanket order of protection from arrest cannot be passed by the High Court while dismissing a petition filed under Section 482 of the Code of Criminal Procedure (now Section 528 of the BNSS) seeking quashing of an FIR.

***Priti Saraf v. State of NCT of Delhi*, AIR 2021 SC 1531**

The existence of civil remedies by itself is not a ground to quash criminal proceedings. Simply because a remedy is provided for breach of contract, or arbitral proceedings have been initiated at the instance of the complainant, that does not by itself clothe the court to come to the conclusion that the civil remedy is the only remedy, and that the initiation of criminal proceedings would in any manner be an abuse of the process of the court for exercising the inherent powers of the High Court under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) for quashing such proceedings.

Directions with respect to the exercise of inherent power

***M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra*, AIR 2021 SC 1918**

The High Court, while dismissing or disposing of a quashing petition under Section 482 of the Cr.P.C. (now Section 528 of the BNSS), or under Article 226 of the Constitution of India, shall not pass an order of not to arrest or no coercive steps, either during the investigation or till the investigation is completed, or till the final report or charge-sheet is filed. Where the investigation is in progress and the facts are hazy, and the entire evidence or material is not before the High Court, the High Court should restrain itself from passing an interim order of not to arrest or no coercive steps to be adopted, and the accused should be relegated to apply for anticipatory bail under Section 438 of the Cr.P.C. (now Section 482 of the BNSS) before the competent court.

- Subsequently, in A.P. Mahesh Cooperative Urban Bank Shareholders Welfare Association v. Ramesh Kumar Bung, (2021) 9 SCC 152, the Court held that High Courts may pass an interim protection order in Section 482 Cr.P.C. petitions in exceptional cases by giving brief reasons. What is frowned upon in Neeharika Infrastructure is the tendency of the courts to pass blanket, cryptic, laconic, non-speaking orders reading no coercive steps shall be adopted.

***Jagmohan Singh v. Vimlesh Kumar*, Criminal Appeal No. 741 of 2022, 5 May 2022**

While exercising jurisdiction under Section 482 of the Cr.P.C. (now Section 528 of the BNSS), the High Court should not ordinarily embark upon an enquiry into whether there is reliable evidence or not. The jurisdiction has to be exercised sparingly, carefully and with caution, and only when such exercise is justified by the specific provisions of Section 482 itself.

***Parbatbhai Aahir v. State of Gujarat*, AIR 2017 SC 4843**

The inherent power of the High Court under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) has a wide ambit and plenitude, and has to be exercised to prevent an abuse of the process of any court. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers; it only recognises and preserves powers which inhere in the High Court.

***Saranya v. Bharati*, (2021) 8 SCC 583**

At the stage of Section 482 of the Cr.P.C. (now Section 528 of the BNSS) a High Court is not required to appreciate the evidence to find out whether the accused is likely to be convicted or not.

***Ramgopal v. State of Madhya Pradesh*, 2021 SCC OnLine (SC) 834**

A High Court may quash criminal proceedings in exercise of its inherent powers under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) even where the offences are non-compoundable and the compromise is reached after conviction. Criminal proceedings involving non-heinous offences, or where the offences are predominantly of a private nature, may be quashed irrespective of the fact that the trial has already been concluded or the appeal stands dismissed against conviction.

***Ramawatar v. State of Madhya Pradesh*, (2021) 7 SCC 473**

Criminal proceedings arising out of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989 may be quashed by invoking the powers under Article 142 of the Constitution or Section 482 of the Criminal Procedure Code (now Section 528 of the BNSS). The mere fact that the offence is covered under a special statute would not restrain the Supreme Court or the High Court from exercising their respective powers under Article 142 of the Constitution or Section 482 of the Cr.P.C.

***Jitul Jentilal Kotecha v. State of Gujarat*, [SC-2021] Cr. Appeal Nos. 1328-1333/21**

A High Court cannot place reliance on a draft charge-sheet which is yet to be placed before the Magistrate in order to quash criminal proceedings under Section 482 of the Criminal Procedure Code (now Section 528 of the BNSS). The High Court can neither direct an investigating agency to submit the investigation report before it, nor can it quash a criminal proceeding under Section 482 relying on such a report when the report has not been submitted to the Magistrate.

***Gayatri Prasad Prajapati v. State of Uttar Pradesh*, WP (Crl) 457/2021, 21 February 2022**

The reliefs prayed for to quash and set aside criminal proceedings or an FIR can be considered by the High Court under Section 482 of the Cr.P.C. (now Section 528 of the BNSS), and must be avoided being considered by the Supreme Court in exercise of its powers under Article 32 of the Constitution of India.

Directing further investigation or re-investigation in exercise of inherent power

***Devendra Nath Singh v. State of Bihar*, AIR 2022 SC 5344**

In an appropriate case, where the High Court feels that the investigation is not in the proper direction, and to do complete justice where the facts of the case so demand, the inherent powers under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) could be exercised to direct further investigation or even reinvestigation. The provisions of Section 173(8) of the Cr.P.C. (now Section 193(9) of the BNSS) do not limit or affect such powers of the High Court to pass an order under Section 482 for further investigation or reinvestigation, if the High Court is satisfied that such a course is necessary to secure the ends of justice. Such powers are, however, to be exercised sparingly, with circumspection, and in exceptional cases.

***Daxaben v. State of Gujarat*, 2022 INSC 770**

The inherent power of the High Court under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) is wide and may even be exercised to quash criminal proceedings relating to non-compoundable offences, to secure the ends of justice or to prevent abuse of the process of court. Thus, where the victim and offender have compromised disputes essentially civil and personal in nature, the High Court may exercise its power under Section 482 to quash the criminal proceedings; but heinous or serious crimes, such as Section 306 of the IPC (now Section 108 of the BNS), which are not private in nature and have a serious impact on society, cannot be quashed on the basis of a compromise between the offender and the complainant or the victim.

***State represented by the Inspector of Police v. Maridoss*, 2023 SCC OnLine SC 47**

It is a settled position of law that while exercising powers under Section 482 of the Cr.P.C. (now Section 528 of the BNSS) the High Court is not required to conduct a mini trial. What is required to be considered at that stage is the nature of the accusations and allegations in the FIR, and whether the averments or allegations in the FIR prima facie disclose the commission of the cognizable offence or not.

MISCELLANEOUS

***Suresh Chandra Jana v. State of West Bengal*, (2017) 16 SCC 466**

An accused is entitled to the benefit of doubt. Such doubt must be a reasonable doubt, that is to say a doubt which a rationally thinking man would reasonably and honestly entertain. A doubt of a timid mind which is afraid of logical consequences cannot be said to be a reasonable doubt.

***Arnab Ranjan Goswami v. Union of India*, (2020) 14 SCC 12**

The power to transfer an investigation from the State police to the CBI is an extraordinary power and must be exercised sparingly, in exceptional circumstances. Routine transfers should not be made. So long as the investigation proceeds in accordance with law, the accused person has no choice or discretion in choosing the investigating agency.

***Nazma Naz v. Rukhsana Bano*, Criminal Appeal No. 820 of 2022, 17 May 2022**

While considering the matter of transfer of a criminal case to some other station due to any fault or shortcoming on the part of the staff of the subordinate court, any delay in compliance by the court cannot be a good enough ground.

Guidelines for dealing with persons aggrieved of sexual offences

***XYZ v. State of Maharashtra*, AIR 2022 SC 3957**

It is the duty and responsibility of trial courts to deal with persons aggrieved of sexual offences in an appropriate manner, and the following guidelines were laid down:

- Allowing proceedings to be conducted in camera, where appropriate, either under Section 327 of the Cr.P.C. (now Section 366 of the BNSS), or when the case otherwise involves the aggrieved person or other witness testifying as to their experience of sexual harassment or violence.
- Allowing the installation of a screen to ensure that the aggrieved woman does not have to see the accused while testifying, or in the alternative directing the accused to leave the room while the aggrieved woman's testimony is being recorded.
- Ensuring that counsel for the accused conducts the cross-examination of the aggrieved woman in a respectful fashion and without asking inappropriate questions, especially regarding her sexual history. Cross-examination may also be conducted such that counsel for the accused submits his questions to the court, which then poses them to the aggrieved woman.
- Completing cross-examination in one sitting, as far as possible.

***Prakash Nayi @ Sen v. State of Goa*, (2023) 5 SCC 673**

Chapter XXV of the Code of Criminal Procedure, 1973 (now Chapter XXVI of the BNSS), though procedural in nature, also becomes substantive when it deals with an accused person of unsound mind. A well-laid procedure is contemplated under Sections 328 to 339 of the Cr.P.C. (now Sections 367 to 378 of the BNSS). There is not even a need for an application under Section 329 of the Cr.P.C. (now Section 368 of the BNSS) in finding out whether an accused would be sound enough to stand a trial; rather it is the mandatory duty of the court.

***Rajesh v. State of M.P.*, 2023 INSC 839**

Where witnesses to the panchnamas and the seizures acted as mere attestors to the documents and did not disclose in their own words how these objects were discovered, that is to say at whose instance and how, no lawful validity attaches to the proceedings recorded by the police in the context of the collection of all this evidence.

***Sharif Ahmed v. State of Uttar Pradesh*, 2024 INSC 363**

The power to grant exemption from personal appearance under the Cr.P.C. should not be read in a restrictive manner as applicable only after the accused has been granted bail. Thus, the court may excuse an accused from personal appearance even before the grant of bail.

***State, represented by Inspector of Police, Chennai v. N.S. Gnaneswaran*, AIR 2013 SC 3673**

An order or inquiry remains valid despite a minor legal violation, unless the aggrieved party proves that it caused prejudice or injustice. In determining prejudice, the court should adopt a broader approach, prioritising the essence of the matter over technicalities.